SHARI'AH AND BANGSAMORO GOVERNANCE

How to Research, Legislate, and Apply Shari'ah in BARMM

Saidamen R. Mambayao

BANGSAMORO AUTONOMOUS REGION
IN MUSLIM MINDANAO

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About This Guidebook

Purpose

This guidebook teaches you how to research, legislate, and apply Shari'ah in the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM). It is a practitioner's guide — written for the people who draft bills, analyze legislation, manage cooperatives, write policy, and advise government agencies.

The Bangsamoro Organic Law recognizes Shari'ah as part of the Bangsamoro justice system. BOL Article X dedicates 20 sections to the Shari'ah court system, the sources of Islamic law, Parliament's legislative power over Shari'ah matters, and the relationship between traditional justice and the formal court system. PD 1083 (the Code of Muslim Personal Laws) provides 190 articles governing marriage, divorce, inheritance, family relations, and property for Muslims. The complete Kutub al-Sittah (the six major Hadith collections) and the Qur'an are publicly accessible in digital form.

These are powerful tools. But they are underused — not because practitioners lack competence, but because no guidebook has shown them how to connect scriptural sources to legislative drafting, how to navigate PD 1083 alongside the BOL, or how to produce Shari'ah legal analysis with the same rigor applied to secular law.

This guidebook fills that gap.

What This Guidebook Is

- A **research methodology** for finding relevant Qur'anic verses, Hadith narrations, and enacted law on any Shari'ah topic
- A **legislative strategy framework** for deciding how Parliament should legislate Shari'ah — as standalone BAAs, as mainstreamed provisions, or as a hybrid approach
- A **legal analysis toolkit** for producing Shari'ah legal opinions using IRAC methodology grounded in scriptural and enacted sources
- A **compliance guide** for checking draft legislation against Shari'ah principles and constitutional constraints

- A **development practitioner's reference** for Islamic finance, halal economy, and Maqasid al-Shari'ah as a policy framework

What This Guidebook Is Not

This guidebook does not issue *fatawa* (binding religious rulings). That is the institutional mandate of the Bangsamoro Darul-Ifta (BDI), established under BAA 13, Secs. 52-56. The distinction is the same one that applies to all legal work: a legal researcher can analyze constitutional provisions without being a Supreme Court justice. They read, analyze, and advise — but the authoritative ruling comes from the court.

This guidebook produces legal analysis. The BDI issues binding religious rulings. Both are necessary. They serve different functions.

Intended Audience

- **Legislative staff** — committee analysts, bill drafters, parliamentary researchers
- **MOA legal officers** — ministry counsel, legal division staff
- **Development practitioners** — cooperative organizers, social enterprise consultants, program managers
- **Policy analysts** — PRLS staff, BPDA planners, OOBC consultants
- **Governance consultants** — external advisors working with BARMM entities

How to Use This Guidebook

Part I (Foundations) gives you the constitutional, legal, and philosophical framework. Read it first — everything else builds on it.

Part II (Researching Shari'ah) teaches you how to find and analyze primary Islamic sources. Use it when you need to research a Shari'ah topic from scratch.

Part III (Legislating Shari'ah) addresses the strategic and practical questions of how Parliament should enact Shari'ah-related legislation. Use it when drafting, reviewing, or planning legislation.

Part IV (Applying Shari'ah in Development) covers Islamic finance and halal economy. Use it when your development work has a Shari'ah dimension.

Part V (Practical Tools) provides detachable checklists, worksheets, and quick references. Use them on the job.

Each chapter ends with a **Worked Example**, **Common Pitfalls**, and a **Quality Checklist** you can use before submitting your work.

Acknowledgments

This guidebook draws on the Bangsamoro Organic Law (RA 11054), PD 1083 (Code of Muslim Personal Laws), the Bangsamoro Administrative Code (BAA 13), and the 2nd Bangsamoro Development Plan 2023-2028. Scriptural citations reference the Qur'an (Sahih International translation) and the Kutub al-Sittah (six major Hadith collections). All legal citations follow the Philippine Manual of Legal Citations (Feliciano, 10th Ed., 2019), with Bangsamoro extensions for Islamic jurisprudence.

AI Declaration

This guidebook was drafted with AI assistance using Claude (Anthropic). The author designed the structure, directed the research, verified all factual claims against primary sources, and made all editorial decisions. AI was used for research assistance, drafting, and citation verification — not for interpretation of Shari'ah or issuance of religious opinions.

Every Qur'anic verse and Hadith citation was verified against digital source files. Every BOL and PD 1083 provision was verified against verbatim transcriptions of the enacted law. Every BAA reference was verified against the Bangsamoro legislative archive.

For more on how AI was used in this publication, see Appendix F (AI Declaration) and Chapter 16, Section 16.10 (AI in Practice).

About the Author

Saidamen "Sayeed" R. Mambayao has worked in governance, legislation, and cooperative development across the Bangsamoro region for over a decade.

Before the establishment of the Bangsamoro Autonomous Region, he served as a Consultant of the Cooperative Development Authority under the former Autonomous Region in Muslim Mindanao, where he led programs on cooperative development, Islamic finance, and executive leadership. He also served as Secretariat Head and Program Director of the Bangsamoro Executives and Leaders League (BELL), Inc., and held leadership roles in the ARMM Islamic Finance Sub-Cluster and the Bangsamoro Coalition on Social Enterprise.

When the Bangsamoro Transition Authority was established in 2019, he led the development and implementation of two BARMM flagship programs: the Access to Higher and Modern Education (AHME) Scholarship Program under the Ministry of Basic, Higher, and Technical Education, and the Engaging the SK, Empowering the Youth (ESKEY) Program under the Ministry of the Interior and Local Government. He later served as Chief of Staff at the Office of a Member of Parliament, where he assisted on legislative portfolios covering women, youth, children, persons with disabilities, cooperatives, social enterprises, and halal industries. He drafted and reviewed legislative measures on scholarships, cultural heritage preservation, assistance to Other Bangsamoro Communities, and cooperative and social enterprise development. He also served as OIC-Legislative Affairs at the Office of MP Sittie Fahanie S. Uy-Oyod.

He is the Founder of MoroTech and MoroAcademy, social enterprises empowering Bangsamoro organizations and communities through knowledge and technology, and the Founding Chairperson of the Bangsamoro Scholars Association. He also founded the SEED Initiative, a consultancy and training firm focused on cooperative and social enterprise development. He is an Active Citizen and graduate of the British Council's CSO-SEED Business and Investment Readiness Program.

01

Why Shari'ah Matters in Bangsamoro Governance

The Bangsamoro Organic Law does something no previous Philippine law has done at this scale: it recognizes Shari'ah as part of the formal justice system of an autonomous region, defines its sources, creates a three-tiered Shari'ah court structure, and grants Parliament the power to legislate on Islamic law matters.[1]

This is not symbolic. It is an operational mandate. Every bill that touches personal law, family relations, property among Muslims, Islamic finance, halal certification, or criminal offenses under *ta'zir* has a Shari'ah dimension that practitioners must identify, research, and address.

Yet most governance practitioners in BARMM — legislative staff, legal officers, planners, cooperative organizers — have not been trained to work with Shari'ah as a legal system. They can navigate the Civil Code, the Revised Penal Code, and the Local Government Code. They cannot navigate PD 1083 or BOL Article X with the same confidence.

This guidebook exists to close that gap.

1.1 What This Guidebook Is — and What It Is Not

This guidebook is a **practitioner's manual** for working with Shari'ah in BARMM governance. It teaches you three things:

1. **How to research** — find relevant Qur'anic verses, Hadith narrations, enacted law, and *fiqh* positions on any Shari'ah topic
2. **How to legislate** — determine whether Parliament should enact standalone Shari'ah BAAs, mainstream Shari'ah into existing legislation, or pursue a hybrid approach
3. **How to apply** — integrate Islamic finance principles into cooperatives, navigate halal economy regulation, and use Maqasid al-Shari'ah as a policy framework

It is **not** a *fiqh* treatise. It does not teach Islamic theology, jurisprudential theory, or the internal debates of the classical schools. Those belong to the *'ulama* and the scholarly tradition. What it teaches is how to **use** the outputs of that tradition — enacted law, scriptural sources, and established scholarly positions — in governance work.

1.2 The Bangsamoro Identity and Islamic Governance

The Bangsamoro people's relationship with Islamic governance predates the Philippine state by centuries. The Sultanate of Sulu was established in 1457 — the oldest Islamic institution in the Philippines. The Sultanate of Maguindanao followed, controlling much of mainland Mindanao. Both administered justice according to Shari'ah and customary law long before Spanish colonization.[2]

The BOL recognizes this heritage. Its preamble affirms the Bangsamoro people's "right to conserve and develop their patrimony, reflective of their system of life as prescribed by their faith" and their right to "genuine and meaningful self-governance."[3] Article II defines the Bangsamoro people as those who "at the advent of the Spanish colonization, were considered natives or original inhabitants of Mindanao and the Sulu archipelago and its adjacent islands."[^3b]

This identity shapes governance. The 12 Pillars of Moral Governance adopted by the BTA government include "Unwavering Loyalty to God" and "Justice" — principles rooted in Islamic values.[5] The Mas Matatag na Bangsamoro Agenda includes "Mas Matatag na Paniniwala" (Stronger Faith) as one of its five pillars.

Shari'ah is not an add-on to Bangsamoro governance. It is foundational.

1.3 Who This Guidebook Is For

Legislative staff — You draft bills, prepare committee reports, and analyze proposed legislation. When a bill touches marriage, inheritance, zakat, halal, or any subject under BOL Article X, you need to know what PD 1083 already covers, what Parliament can legislate on, and how to cite scriptural sources in footnotes.

MOA legal officers — You review contracts, draft memoranda, and advise your Minister on legal questions. When a contract involves Shari'ah-compliant financing or a program serves Muslim communities, you need to identify the Shari'ah dimensions and know when to recommend BDI consultation.

Development practitioners — You design programs, manage cooperatives, and write project proposals. When your cooperative needs Shari'ah-compliant bylaws or your project operates in a community that expects Islamic governance principles, you need the legal framework and practical tools.

Policy analysts — You produce briefers, policy notes, and recommendations. When your analysis involves health, education, social welfare, or any sector that intersects with Muslim personal law or Islamic institutions, you need the Shari'ah checkpoint.

Governance consultants — You advise BARMM entities on institutional development. When your client is the BDI, a Shari'ah court, or any agency with Islamic mandate, you need the full picture.

1.4 The Institutional Boundary: Legal Analysis vs. Binding Religious Rulings

This guidebook teaches you to produce **Shari'ah legal analysis** — research, opinions, compliance reviews, and legislative recommendations. This is the same kind of analytical work you do for secular law. You read the sources, identify the relevant provisions, analyze how they apply, and present your findings.

What you produce is **legal analysis**. It is not a *fatwa*.

A *fatwa* is a binding religious ruling issued by a qualified Islamic legal scholar (*mufti*) in response to a specific question. The Bangsamoro Darul-Ifta (BDI), established under BAA 13, Secs. 52-56, is the institutional authority for issuing *fatawa* in BARMM.[6] The BDI is headed by the Bangsamoro Mufti, assisted by Islamic jurists and a Secretariat headed by an Executive Director.

The distinction is the same one that applies to all legal work: a legal researcher can analyze constitutional provisions without being a Supreme Court justice. They read, analyze, and advise — but the authoritative ruling comes from the court.

When to refer to the BDI:

- The legal question turns on a disputed point of *fiqh* with no enacted law resolution
- The matter involves novel circumstances (*nawazil*) not addressed by classical scholarship
- The output will create binding policy affecting Muslim religious practice
- Multiple *madhhab* positions lead to materially different legal outcomes

When you can proceed with your own analysis:

- The question is answered by enacted law (BOL, PD 1083, BAAs)
- The *fiqh* position is well-established and uncontested
- You are identifying Shari'ah dimensions, not issuing rulings
- You are presenting evidence for decision-makers, not making the decision

1.5 How to Use This Guidebook

Read Part I first. Chapters 1-5 give you the constitutional framework, the court system, and the Maqasid policy lens. Everything else builds on these foundations.

Use Part II when you need to research. Chapter 6 teaches you how to build your own searchable Islamic source library and find relevant verses and narrations. Chapter 7 teaches you how to turn that research into a legal opinion using IRAC methodology.

Use Part III when you need to legislate. Chapter 8 addresses the strategic question of how Parliament should legislate Shari'ah. Chapter 9 gives you the practical checkpoint for bill drafting. Chapter 10 maps the current legislative landscape — what exists, what's pending, and what's missing.

Use Part IV when you need to apply. Chapters 11-15 cover how Shari'ah should be legislated and implemented across all BOL powers — from social services and health (Chapter 11) to economy, finance, and natural resources (Chapter 13) to governance and administration (Chapter 14). Chapter 15 provides a complete sector directory mapping all 55 powers.

Use Part V on the job. Chapter 16 is a toolkit of detachable checklists, worksheets, and quick references. Print the ones you need and keep them at your desk.

Every chapter ends with a **Worked Example** that walks through a realistic scenario, a **Common Pitfalls** section that flags the mistakes practitioners make, and a **Quality Checklist** you can use before submitting your work.

Worked Example

Scenario: You are a legislative staff member. The Committee on Bangsamoro Justice System has received a proposed bill creating a "Bangsamoro Waqf Authority." The committee chair asks you to prepare a preliminary analysis.

What you need from this guidebook:

1. **Chapter 2** — Does Parliament have the power to legislate on waqf? (Yes — BOL Art. X, Sec. 4 authorizes legislation on property law matters)
2. **Chapter 3** — Does PD 1083 already cover waqf? (Partially — check the property provisions)
3. **Chapter 6** — What do the Qur'an and Hadith say about waqf? (Search your source library for relevant verses and narrations)
4. **Chapter 7** — How do you structure a legal opinion on the proposed bill's Shari'ah basis?
5. **Chapter 8** — Should this be a standalone BAA or should waqf provisions be mainstreamed into existing legislation?
6. **Chapter 9** — Use the Shari'ah checkpoint to review the draft bill
7. **Chapter 16** — Use the Shari'ah Compliance Flags template

Common Pitfalls

- **Treating Shari'ah as optional.** If a bill affects Muslim personal law, property, or family relations, the Shari'ah dimension is not optional — it is legally mandated by BOL Article X.
- **Confusing PD 1083 scope with Parliament's power.** PD 1083 covers personal and family law. Parliament can legislate on matters "not provided for" under PD 1083 — but if PD 1083 already covers it, PD 1083 governs.[7]
- **Citing *fiqh* as enacted law.** Arabic legal terms (mudarabah, waqf, sulh) are *fiqh* concepts from Islamic jurisprudence. The BOL authorizes Parliament to legislate on them, but most have not been codified by any BAA. Do not present them as enacted BARMM law.
- **Using "Shari'ah Appellate Court."** The correct name is **Shari'ah High Court** (BOL Art. X, Sec. 7). This is a common error to watch for — always use the BOL's terminology.
- **Ignoring the "exclusively Muslim" boundary.** Shari'ah applies only to cases involving Muslims. Non-Muslims must voluntarily submit to Shari'ah court jurisdiction.[8] This is a hard constitutional limit.

Quality Checklist

Before submitting any work product with a Shari’ah dimension:

- ☐ Have you identified whether the subject falls under BOL Article X?
- ☐ Have you checked whether PD 1083 already covers the subject?
- ☐ Have you verified all BAA numbers against the enacted BAA index?
- ☐ Have you cited scriptural sources from authoritative texts with exact references?
- ☐ Have you distinguished between enacted law and *fiqh* concepts not yet codified?
- ☐ Have you noted which *madhhab* position you are presenting?
- ☐ Have you flagged any matter that requires BDI consultation?
- ☐ Have you used “Shari’ah High Court” — not “Shari’ah Appellate Court”?

Footnotes

1. Rep. Act No. 11054, art. X, secs. 1-20. ↩
2. The Sultanate of Sulu was established c. 1457, the oldest Islamic institution in the Philippines. The Sultanate of Maguindanao followed in the 16th century. Both predated Spanish colonization. ↩
3. Rep. Act No. 11054, Preamble. ↩
4. Rep. Act No. 11054, art. II, sec. 1. ↩
5. The 12 Pillars of Moral Governance are: Integrity, Accountability, Transparency and Honesty, Sense of Patriotism, Striving for Excellence, Cultural Understanding and Tolerance, Unwavering Loyalty to God, Justice, Inclusivity, Objectivity, Dialogue and Meaningful Engagement, and Balance Between Practical Life and Moral Side. ↩
6. BAA No. 13 (Bangsamoro Administrative Code), Book III, Title III, Chapter 1, Section G, secs. 52-56. ↩
7. Rep. Act No. 11054, art. X, sec. 4. ↩
8. Rep. Act No. 11054, art. X, sec. 1. ↩

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02

The Constitutional and Legal Framework

Every Shari'ah provision in BARMM exists within a legal architecture. The 1987 Constitution authorizes autonomous regions. The BOL creates BARMM within the framework of that Constitution. BOL Article X establishes the Shari'ah justice system within the framework of the BOL. And PD 1083 continues to govern Muslim personal law unless Parliament legislates on matters "not provided for."[1]

You cannot work with Shari'ah in BARMM without understanding this architecture. This chapter walks you through it — from the Constitution down to the specific sections that define what Parliament can and cannot do.

2.1 The 1987 Constitution and Autonomous Regions

The constitutional basis for BARMM is Article X of the 1987 Constitution, titled "Local Government." Sections 15 through 21 specifically address autonomous regions.

Three provisions matter most for Shari'ah:

Section 15 authorizes the creation of autonomous regions "in Muslim Mindanao and in the Cordilleras" through organic acts that define "the basic structure of government for the region consisting of the executive department and legislative assembly."[2]

Section 18 establishes the critical constraint: autonomous regions are created "within the framework of this Constitution and the national sovereignty as well as territorial integrity of the Republic of the Philippines."[3] This means BARMM legislation — including Shari'ah-based legislation — must comply with the Constitution.

Section 20 provides that the organic act defines the legislative powers of the autonomous region "subject to the provisions of this Constitution and national laws."[4]

These three sections establish what practitioners call **nested sovereignty**: BARMM governs itself, but within the Philippine constitutional framework. This is not a limitation to resent — it is the legal foundation that makes Shari'ah legislation possible within a unitary republic.

2.2 The BOL as Social Compact — Nested Sovereignty

Republic Act No. 11054, the Bangsamoro Organic Law, was signed on July 27, 2018 and ratified by plebiscite in January-February 2019.[5] Its preamble frames the relationship:

> Imploring the aid of Almighty God, in recognition of the aspirations of the Bangsamoro people and other inhabitants in the autonomous region in Muslim Mindanao to establish an enduring peace on the basis of justice, balanced society and asserting their right to conserve and develop their patrimony, reflective of their system of life as prescribed by their faith, in harmony with their customary laws, cultures and traditions, **within the framework of the Constitution and the national sovereignty as well as territorial integrity of the Republic of the Philippines**...[6]

The bolded phrase appears twice in the BOL — once in the preamble and once in Art. I, Sec. 3 (Purpose). It is the constitutional anchor for everything that follows, including Shari'ah legislation.

The BOL has **18 Articles**. Article X ("Bangsamoro Justice System") is dedicated entirely to Shari'ah courts, traditional justice, and Parliament's power to legislate on Islamic law.[7]

2.3 BOL Article X: The 20 Sections

Article X contains 20 sections. Every practitioner working with Shari'ah should know what each section covers. Here is the complete map:

Section	Title	What It Covers
1	Justice System in the Bangsamoro	Scope: Shari'ah applies "exclusively to cases involving Muslims"; voluntary submission for non-Muslims
2	Shari'ah Courts	Courts are part of the Philippine judicial system under Supreme Court supervision
3	Sources of Shari'ah	Principal: Qur'an, Sunnah. Secondary: Ijma' (Consensus), Qiyas (Analogy)
4	Power of Parliament	Personal, family, property law; commercial/civil not in PD 1083; criminal (*ta'zir*/*arresto menor*)
5	Shari'ah Circuit Courts	Exclusive original jurisdiction — PD 1083 offenses, marriage/divorce/dower, *ta'zir*, civil (real ≤ P400K, other ≤ P200K)
6	Shari'ah District Courts	Custody/guardianship, estate settlement, Muslim Registry, contracts, civil (real > P400K, other > P200K), appellate over Circuit
7	Shari'ah High Court	Annulment of District judgments, auxiliary writs, appellate over District; decisions final except questions of law to SC
8	Qualifications of Judges	Requirements for Circuit, District, and High Court judges
9	Composition of High Court	Five Justices including the Presiding Justice
10	Compensation and Benefits	Same rank and privileges as Court of Appeals Justices
11	Shari'ah Rules of Court	Existing rules continue until SC promulgates new ones
12	Special Bar Examinations	SC administers Shari'ah bar exam; successful examinees become counselors-at-law
13	Practice of Law	Who may practice before Shari'ah courts

Section	Title	What It Covers
14	Court Personnel	SC appoints and disciplines Shari'ah court personnel
15	Integrated Bar	SC may integrate the Shari'ah Bar
16	Creation of New Offices	Parliament may create: Shari'ah public assistance office, prosecution service, academy, Office of the Jurisconsult
17	Traditional Justice	Parliament shall promote traditional/tribal justice for indigenous peoples
18	Office for Tribal Justice	Created to oversee study, preservation, and development of tribal justice
19	Regular Courts	Continue to function under national law
20	Alternative Dispute Resolution	Parliament shall legislate ADR mechanisms; Shari'ah courts may use ADR

Key observation: Sections 1-16 deal with Shari'ah. Sections 17-18 deal with traditional/tribal justice. Sections 19-20 deal with regular courts and ADR. The three justice systems coexist within the same constitutional framework.[8]

2.4 Sources of Shari'ah Recognized by the BOL

Section 3 is brief but foundational. It recognizes four sources of Shari'ah, divided into two tiers:

Principal Sources: - **Al-Qur'an** — the holy book of Islam, containing divine revelation - **Al-Sunnah** — the traditions of Prophet Muhammad (SAW), preserved in Hadith collections[9]

Secondary Sources: - **Al-Ijma'** — scholarly consensus on a point of law - **Al-Qiyas** — analogical reasoning applied to new situations[10]

For practitioners, this hierarchy matters. When you research a Shari'ah topic, you search the sources in this order. A Qur'anic verse carries higher authority than a Hadith narration. A well-established *ijma'* carries higher authority than a novel *qiyas*. And enacted BARMM law (which codifies these sources into legislation) takes precedence for legal purposes — because it is the BOL's own framework that authorizes the legislation.

2.5 The "Exclusively Muslim" Scope and Voluntary Submission

Section 1 establishes the most important boundary in BARMM Shari'ah law:

> *Shari'ah* shall apply exclusively to cases involving Muslims. Where a case involves a non-Muslim, *Shari'ah* law may apply only if the non-Muslim voluntarily submits to the jurisdiction of the *Shari'ah* court.[11]

This is both a **scope rule** and a **constitutional safeguard**.

As a scope rule, it tells you: before doing any Shari'ah analysis, confirm that the parties are Muslim. If they are not, Shari'ah does not apply — unless the non-Muslim voluntarily submits.

As a constitutional safeguard, it preserves freedom of religion. The Constitution guarantees that no one shall be compelled to follow a religion they do not profess. The voluntary submission mechanism ensures that non-Muslims are never subjected to Shari'ah without consent.

Practical implication: If you are drafting a bill that applies Shari'ah obligations, check whether it could affect non-Muslims. If it could, the bill must include a voluntary submission provision — or risk unconstitutionality.

Section 1 also adds two important protections:

> The traditional or tribal laws shall be applicable to disputes of indigenous peoples within the Bangsamoro Autonomous Region.[12]
>
> The provisions of this Article shall not prejudice the rights of non-Muslims and nonindigenous peoples.[13]

2.6 Constitutional Constraints on Shari'ah Legislation

Shari'ah legislation operates within three constitutional constraints. Understanding them prevents drafting bills that will be struck down.

Constraint 1: The Bill of Rights (Art. III)

All BARMM legislation must comply with the Bill of Rights. Key provisions that intersect with Shari'ah:

Right	Implication for Shari'ah Legislation
Due process (Sec. 1)	A BAA imposing *ta'zir* penalties must provide notice, hearing, and proportionality
Equal protection (Sec. 1)	Shari'ah provisions treating Muslims differently from non-Muslims are permissible because the BOL explicitly authorizes them and the "exclusively Muslim" boundary ensures non-Muslims are not subjected without consent
Freedom of religion (Sec. 5)	Non-Muslim submission to Shari'ah must be genuinely voluntary — not coerced, not presumed
Right against unreasonable searches (Sec. 2)	Shari'ah enforcement mechanisms (e.g., halal compliance inspection) must satisfy constitutional search and seizure standards

Constraint 2: Autonomous Region Limits (Constitution Art. X)

Provision	What It Means
Sec. 18	BARMM is created "within the framework of this Constitution" — not outside it
Sec. 20	The organic act defines legislative powers "subject to the provisions of this Constitution and national laws"

Constraint 3: Supreme Court Supervision

Section 2 of BOL Article X provides:

> *Shari'ah* courts within the Bangsamoro territorial jurisdiction shall form part of the Philippine judicial system subject to the supervision of the Supreme Court.[14]

This means the Supreme Court has final authority over questions of law arising from Shari'ah court decisions. The Shari'ah High Court's decisions are "final and executory except on questions of law which may be raised before the Supreme Court."[15]

Practical implication: When drafting Shari'ah-related legislation, always verify that the bill does not diminish Supreme Court supervisory authority over Shari'ah courts. Any provision that attempts to make Shari'ah courts independent of the SC would be unconstitutional.

2.7 Worked Example

Scenario: You are reviewing a draft bill titled "Bangsamoro Halal Regulatory Act." Section 12 of the draft provides that "All food establishments in BARMM shall obtain halal certification from the Bangsamoro Halal Board."

Constitutional analysis using this chapter:

1. **Scope check (Sec. 2.5):** Does this bill apply Shari'ah to non-Muslims? Yes — "all food establishments" includes non-Muslim-owned businesses. This triggers the constitutional question.
2. **Bill of Rights check (Sec. 2.6, Constraint 1):** Requiring non-Muslim food establishments to obtain halal certification could violate freedom of religion (Art. III, Sec. 5) if it compels compliance with Islamic dietary standards without voluntary submission.
3. **Fix:** The bill should either (a) limit the mandatory certification requirement to establishments that choose to market products as halal, or (b) create a voluntary certification program for all establishments with mandatory certification only for those marketing to Muslim consumers.
4. **BOL basis:** Parliament has the power to legislate on this under Art. X, Sec. 4 (commercial matters) — the question is not whether Parliament *can* legislate, but whether this specific provision respects constitutional constraints.

Common Pitfalls

- **Assuming Shari'ah operates outside the Constitution.** It does not. BOL Article X exists within the constitutional framework — not parallel to it.
- **Forgetting the voluntary submission requirement.** Every bill that could affect non-Muslims must include a voluntary submission mechanism or limit its scope to Muslims only.
- **Conflating Parliament's power with unlimited authority.** Section 4 grants specific powers — personal, family, property, commercial (not in PD 1083), and *ta'zir*. Parliament cannot legislate beyond these categories under Article X.
- **Ignoring Supreme Court supervision.** Shari'ah courts are part of the Philippine judicial system. The SC has the final word on questions of law.
- **Citing "Art. X" without specifying the section.** Article X has 20 sections covering very different subjects. Always cite the specific section.

Quality Checklist

Before submitting any work that relies on the constitutional framework:

- ☐ Have you confirmed the constitutional basis (Constitution Art. X, Secs. 15-21)?
- ☐ Have you cited the specific BOL Art. X section — not just “Article X”?
- ☐ Have you checked whether the subject affects non-Muslims (voluntary submission)?
- ☐ Have you verified compliance with the Bill of Rights?
- ☐ Have you confirmed Supreme Court supervisory authority is preserved?
- ☐ Have you used verbatim BOL text for direct quotes — not paraphrases from memory?

Footnotes

1. Rep. Act No. 11054, art. X, sec. 4. ↩
2. 1987 Const. art. X, sec. 15. ↩
3. 1987 Const. art. X, sec. 18. ↩
4. 1987 Const. art. X, sec. 20. ↩
5. Rep. Act No. 11054, signed July 27, 2018; ratified by plebiscite January 21, 2019 (Bangsamoro core areas) and February 6, 2019 (Cotabato City and 63 barangays in North Cotabato). ↩
6. Rep. Act No. 11054, Preamble. ↩
7. Rep. Act No. 11054, art. X, secs. 1-20. ↩
8. Rep. Act No. 11054, art. X, secs. 1-20. ↩
9. Rep. Act No. 11054, art. X, sec. 3. ↩
10. *Id.* ↩
11. Rep. Act No. 11054, art. X, sec. 1. ↩
12. *Id.* ↩
13. *Id.* ↩
14. Rep. Act No. 11054, art. X, sec. 2. ↩
15. Rep. Act No. 11054, art. X, sec. 7. ↩

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03

PD 1083: The Code of Muslim Personal Laws

Presidential Decree No. 1083, signed on February 4, 1977, is the foundational law governing Muslim personal, family, and property relations in the Philippines.[1] It has 190 articles organized across 5 Books. It predates the BOL by four decades — and it remains in force.

Every practitioner working with Shari'ah in BARMM must understand PD 1083 for one critical reason: **Parliament can only legislate on matters "not provided for" under PD 1083.**[2] If PD 1083 already covers a subject, PD 1083 governs. Parliament's legislative power under BOL Art. X, Sec. 4 is supplementary — it fills gaps, it does not override.

This chapter maps PD 1083 so you know what is already covered and where Parliament can act.

3.1 What PD 1083 Covers (5 Books, 190 Articles)

PD 1083 is organized into five Books:

Book	Title	Articles	Key Subjects
One	General Provisions	1-12	Purpose, construction, definitions, applicability, conflict-of-law rules
Two	Persons and Family Relations	13-88	Marriage, divorce, *mahr* (dower), parental authority, legitimacy, support, Muslim Registry
Three	Succession	89-136	Intestate succession, order of successors, exclusion rules, shares, legacies, debts
Four	Adjudication and Settlement of Disputes	137-168	Shari'ah court jurisdiction, *agama* arbitration council, Jurisconsult of Islamic Law
Five	Miscellaneous and Transitory Provisions	169-190	Applicability rules, repealing clause, effectivity

Key structural insight: Books Two and Three (marriage through inheritance) are the substantive personal law provisions. Book Four establishes the court system and dispute resolution mechanisms. Book Five handles transitions and applicability.[3]

3.2 PD 1083 and the BOL: The Supplementary Relationship

The relationship between PD 1083 and the BOL is the single most misunderstood aspect of Shari'ah legislation in BARMM.

BOL Art. X, Sec. 4 grants Parliament power to enact laws on: - **Personal, family, and property law** jurisdiction - **Commercial and other civil actions** not provided for under PD 1083 - **Criminal jurisdiction** on minor offenses punishable by *arresto menor* or *ta'zir* equivalent to *arresto menor*[4]

The operative phrase is **"not provided for under Presidential Decree No. 1083."** This means:

1. **If PD 1083 covers it** — PD 1083 governs. Parliament cannot enact a conflicting BAA on the same subject.
2. **If PD 1083 does not cover it** — Parliament can legislate. This is where the legislative opportunity lies.
3. **Commercial and civil matters** — Parliament has explicit power here, because PD 1083 focuses on personal law, not commercial law.

What PD 1083 covers (Parliament cannot override): - Marriage requirements and formalities (Art. 13-26) - Effects of marriage, rights of spouses (Art. 27-44) - Divorce: by *talaq*, *khul'*, *faskh*, and *li'an* (Art. 45-54) - *Iddah* (waiting period), *mahr* (dower) (Art. 55-61) - Parental authority, legitimacy, support (Art. 62-83) - Succession and inheritance rules (Art. 89-136)

What PD 1083 does NOT cover (Parliament can legislate): - Islamic finance instruments (*mudarabah*, *musharakah*, *murabaha*) - *Waqf* (Islamic endowment) — beyond basic property provisions - *Zakat* (obligatory alms) administration - Halal regulation and certification - Islamic banking and insurance (*takaful*) - Criminal offenses beyond *ta'zir* equivalent to *arresto menor*

3.3 Navigating PD 1083 by Subject

When a Shari'ah question arises, use this quick-reference to find the relevant PD 1083 provisions:

Marriage: | Question | PD 1083 Provision | |----------|----------| | What are the requirements for a valid Muslim marriage? | Art. 13-16 (requisites, capacity, consent, solemnization) | | Who can perform a Muslim marriage? | Art. 17-18 (solemnizing officers) | | What are the effects of marriage? | Art. 27-44 (property, support, obligations) | | What is *mahr* (dower)? | Art. 55-61 |

Divorce: | Question | PD 1083 Provision | |----------|----------| | What kinds of divorce are recognized? | Art. 45 (*talaq*), Art. 46 (*khul'*), Art. 47-54 (judicial decree) | | What is the *iddah* waiting period? | Art. 55-57 | | What are the effects of divorce? | Art. 54 |

Inheritance: | Question | PD 1083 Provision | |----------|----------| | Who inherits under Muslim law? | Art. 89-109 (classes of heirs) | | What are the shares (*faraid*)? | Art. 110-128 | | What about debts of the deceased? | Art. 136 (liability limited to estate) |

Courts and Dispute Resolution: | Question | PD 1083 Provision | |----------|----------| | What cases can Shari'ah courts hear? | Art. 137-156 (jurisdiction) | | What is the *agama* arbitration council? | Art. 157-163 | | Who is the Jurisconsult of Islamic Law? | Art. 164-168 |

3.4 When PD 1083 Governs vs. When Parliament Can Legislate

The decision tree:

1. **Identify the subject matter.** Is it personal law (marriage, divorce, inheritance, family relations, property between spouses)? Or is it commercial/civil?
2. **If personal law:** Check PD 1083. If PD 1083 has provisions on this subject, PD 1083 governs. Parliament cannot enact a conflicting BAA.
3. **If commercial/civil not in PD 1083:** Parliament can legislate under BOL Art. X, Sec. 4.
4. **If criminal (*ta'zir*):** Parliament can legislate, but the offense must be punishable by *arresto menor* or its equivalent — and fines must be commensurate to the offense.[5]
5. **If the subject falls in a gap** — PD 1083 touches the area but does not fully address it — Parliament may enact supplementary legislation. The key is that the new BAA must not conflict with existing PD 1083 provisions.

Example: PD 1083 covers succession and inheritance. But it does not comprehensively address *waqf* (Islamic endowment) as a separate institution. Parliament could enact a "Bangsamoro Waqf Act" to establish a waqf registry, administration framework, and regulatory body — as long as it does not conflict with PD 1083's property and succession provisions.

3.5 Worked Example

Scenario: A Member of Parliament wants to file a bill requiring mandatory pre-marriage counseling for all Muslim marriages in BARMM.

Analysis using this chapter:

1. **Subject identification:** This is personal law — marriage.
2. **PD 1083 check:** PD 1083, Art. 13-26, covers marriage requirements and formalities. Does it require pre-marriage counseling? No — it specifies requisites (capacity, consent, *mahr*), solemnization, and registration, but does not address counseling.
3. **Supplementary or conflicting?** A mandatory counseling requirement does not conflict with PD 1083's existing requirements — it adds a new procedural step that PD 1083 does not address.
4. **Conclusion:** Parliament can legislate on this under BOL Art. X, Sec. 4 (personal and family law jurisdiction). The bill is supplementary to PD 1083, not conflicting. However, the bill should explicitly state that it applies "in addition to the requirements under Presidential Decree No. 1083" to make the supplementary relationship clear.
5. **Constitutional check (Chapter 2):** Since the bill applies only to Muslim marriages, the "exclusively Muslim" scope is satisfied. No voluntary submission issue arises.

Common Pitfalls

- **Saying PD 1083 has "4 Books."** It has **5 Books**. Book Five (Miscellaneous and Transitory Provisions) is often overlooked but contains important applicability rules.
- **Assuming Parliament can amend PD 1083.** Parliament cannot amend a national law. It can enact supplementary BAAs on matters not provided for — but it cannot change PD 1083's text. Only Congress can amend PD 1083.
- **Confusing PD 1083's court jurisdiction with BOL Art. X.** PD 1083, Book Four establishes the original Shari'ah court jurisdiction. BOL Art. X, Secs. 5-7 update and expand it. When the two overlap, check which is more recent and more specific.
- **Overlooking Art. 3(3).** PD 1083, Art. 3(3) states: "The provisions of this Code shall be applicable only to Muslims and nothing herein shall be construed to operate to the prejudice of a non-Muslim." This mirrors BOL Art. X, Sec. 1 — both establish the "exclusively Muslim" boundary.
- **Presenting PD 1083 as outdated.** PD 1083 was enacted in 1977, but it remains good law. The BOL supplements it — it does not replace it.

Quality Checklist

Before submitting any work product that involves PD 1083:

- ☐ Have you identified the specific PD 1083 article(s) that apply?
- ☐ Have you determined whether the subject is “provided for” under PD 1083?
- ☐ If drafting a bill, have you confirmed it supplements rather than conflicts with PD 1083?
- ☐ Have you cited the correct Book and Title — not just the article number?
- ☐ Have you checked whether BOL Art. X, Secs. 5-7 update PD 1083’s court jurisdiction provisions?
- ☐ Have you used “5 Books” — not “4 Books”?

Footnotes

1. Pres. Decree No. 1083, signed February 4, 1977. ↩
2. Rep. Act No. 11054, art. X, sec. 4. ↩
3. Pres. Decree No. 1083, Books I-V. ↩
4. Rep. Act No. 11054, art. X, sec. 4. ↩
5. *Id.* ↩

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04

The Shari'ah Court System

The BOL creates a three-tiered Shari'ah court system: Circuit Courts at the base, District Courts in the middle, and the Shari'ah High Court at the apex.[1] All three are part of the Philippine judicial system under Supreme Court supervision.[2]

This chapter maps the jurisdictional boundaries so you can determine which court handles which case — and what happens when cases move up the appellate chain.

4.1 Shari'ah Circuit Courts (Art. X, Sec. 5)

The Circuit Court is the first-level Shari'ah court. It handles the most common cases that Muslim communities bring: marriage disputes, divorce, *mahr*, property upon divorce, and minor criminal offenses.

Exclusive original jurisdiction:

Category	Scope
PD 1083 offenses	All offenses defined and punished under PD 1083, committed in BARMM
Marriage and family	Disputes on marriage, divorce, betrothal, *mahr* (dower), property upon divorce, maintenance, restitution of marital rights
Communal property	Disputes relative to communal properties
Ta'zir offenses	Offenses under Shari'ah law enacted by Parliament, punishable by *arresto menor* or corresponding fine
Civil (real property)	Assessed value does not exceed P400,000
Civil (other)	Demand or claim does not exceed P200,000

Key points: - The Circuit Court has **no appellate jurisdiction** — it only hears cases at first instance. - The monetary thresholds (P400K for real property, P200K for other civil) determine whether a case goes to Circuit or District Court.[3]

4.2 Shari'ah District Courts (Art. X, Sec. 6)

The District Court handles more complex matters — custody, guardianship, estate settlement, and higher-value civil cases. It also serves as the appellate court for Circuit Court decisions.

Exclusive original jurisdiction:

Category	Scope
Custody and guardianship	All cases involving custody, guardianship, legitimacy, and paternity under PD 1083
Estate settlement	All actions involving the disposition, distribution, and settlement of the estate of deceased Muslims
Muslim Registry	Petitions for declaration of absence/death, cancellation or correction of Muslim Registry entries
Contracts	All actions from customary and Shari'ah-compliant contracts between Muslims
Special civil actions	Petitions for *mandamus*, prohibition, injunction, *certiorari*, *habeas corpus*, and auxiliary writs
Family matters	Constitution of family home, change of name, commitment of insane person
Other civil	All personal and real actions not under Circuit Court jurisdiction (except forcible entry/unlawful detainer — those go to Municipal Trial Court)
Civil (real property)	Assessed value exceeds P400,000
Civil (other)	Demand or claim exceeds P200,000

Appellate jurisdiction: All cases decided by Shari'ah Circuit Courts within its territorial jurisdiction.[4]

4.3 The Shari'ah High Court (Art. X, Sec. 7)

The High Court is the apex of the Shari'ah court system in BARMM. It exercises both original and appellate jurisdiction.

Exclusive original jurisdiction: - Petitions for *mandamus*, prohibition, injunction, *certiorari*, *habeas corpus*, and auxiliary writs (in aid of its appellate jurisdiction) - Actions for annulment of judgments of Shari'ah District Courts

Appellate jurisdiction: All cases under the jurisdiction of the Shari'ah District Courts, within or outside BARMM.

Composition: Five Justices, including the Presiding Justice. They have the same rank, salaries, benefits, and privileges as Court of Appeals Justices.[5]

Finality: The decisions of the Shari'ah High Court are **final and executory except on questions of law** which may be raised before the Supreme Court following the procedure for appeals from the Court of Appeals to the Supreme Court.[6]

4.4 The Jurisdictional Matrix

Use this matrix to determine which court handles a case:

Factor	Circuit Court	District Court	High Court
Marriage/divorce/mahr	Yes (original)	No (unless on appeal)	No (unless on appeal)
Custody/guardianship	No	Yes (original)	No (unless on appeal)
Estate settlement	No	Yes (original)	No (unless on appeal)
Communal property	Yes (original)	No	No
Ta'zir (arresto menor)	Yes (original)	No (unless on appeal)	No
Real property ≤ P400K	Yes (original)	No	No
Real property > P400K	No	Yes (original)	No
Other civil ≤ P200K	Yes (original)	No	No
Other civil > P200K	No	Yes (original)	No
Annulment of District judgment	No	No	Yes (original)
Auxiliary writs	No	Yes	Yes

4.5 Appellate Pathway

Cases move through the system in one direction:

Shari'ah Circuit Court → **Shari'ah District Court** → **Shari'ah High Court** → **Supreme Court** (questions of law only)

At each level, the higher court reviews the lower court's decision. The Supreme Court is the final arbiter — but only on questions of law, not questions of fact.[7]

4.6 Qualifications of Judges

BOL Art. X, Secs. 8-10 set the qualifications:

- **Circuit Court judges** and **District Court judges** must meet qualifications prescribed by law
- **High Court Justices** have the same rank and prerogatives as Court of Appeals Justices
- The Supreme Court appoints and disciplines all Shari'ah court personnel[8]
- The SC administers special Shari'ah bar examinations — successful examinees become counselors-at-law authorized to practice before Shari'ah courts[9]

4.7 Traditional and Tribal Justice (Art. X, Secs. 17-18)

The BOL does not limit its justice framework to Shari'ah. Sections 17-18 recognize traditional and tribal justice systems for indigenous peoples.

Section 17 directs Parliament to "enact laws to promote and support the traditional or tribal justice systems that are appropriate for the indigenous peoples." Indigenous peoples have the right to use their own "commonly accepted justice systems, conflict resolution institutions, peace building processes or mechanisms, and other customary laws and practices."[10]

Section 18 creates an **Office for Tribal Justice System** to oversee the study, preservation, and development of tribal justice within BARMM.[11]

Practical implication: If your work involves indigenous peoples in BARMM (Teduray, Lambangian, Dulangan Manobo, B'laan), the traditional justice system — not Shari'ah — is the applicable framework. The two systems are parallel, not hierarchical.

4.8 Alternative Dispute Resolution (Art. X, Secs. 19-20)

Section 19 confirms that regular courts continue to function in BARMM under national law.[12]

Section 20 directs Parliament to legislate ADR mechanisms — conciliation and mediation. Shari'ah courts and traditional tribunals may both use ADR. PD 1083 also provides an ADR mechanism: the *agama* arbitration council (Art. 157-163), which mediates family disputes before they reach court.[13]

4.9 The Interim Pathway

The Shari'ah High Court, while created by the BOL, requires full organization before it can operate. Until it is fully organized, District Court decisions are appealable to the Court of Appeals.[14]

Practical implication: When advising on appellate strategy, verify whether the Shari'ah High Court is operational. If not, the appellate path is: Circuit Court → District Court → Court of Appeals → Supreme Court.

4.10 Worked Example: Determining Court Jurisdiction

Scenario: A Muslim couple in Cotabato City is divorcing. The wife claims *mahr* (dower) of P150,000 and wants custody of their two children, ages 5 and 8.

Analysis:

1. **Party check:** Both Muslim — Shari'ah jurisdiction applies (Art. X, Sec. 1).
2. **Divorce and mahr (P150,000):** This falls under Shari'ah Circuit Court jurisdiction — marriage, divorce, dower, property upon divorce; civil claim ≤ P200,000 (Art. X, Sec. 5).
3. **Custody of children:** This falls under Shari'ah District Court jurisdiction — custody, guardianship, legitimacy, paternity under PD 1083 (Art. X, Sec. 6).
4. **Result:** Two courts are involved. The divorce and mahr go to Circuit Court. Custody goes to District Court. The District Court also has appellate jurisdiction over the Circuit Court's decision on divorce/mahr.
5. **Consolidation question:** The BOL does not explicitly address consolidation of related Shari'ah cases across court levels. In practice, the District Court may hear both matters if consolidation is sought for judicial economy.

4.11 Common Pitfalls

- **Using "Shari'ah Appellate Court."** The correct name is **Shari'ah High Court** (Art. X, Sec. 7). There is no "Appellate Court" in the Shari'ah system.
- **Confusing monetary thresholds.** P400,000 for real property, P200,000 for other civil actions. Mix these up and you file in the wrong court.
- **Forgetting the "exclusively Muslim" requirement.** Both parties must be Muslim — or the non-Muslim must voluntarily submit. This applies at every court level.
- **Assuming the High Court is operational.** Verify its status before planning an appellate strategy. The interim pathway goes through the Court of Appeals.
- **Overlooking the *agama* arbitration council.** PD 1083's ADR mechanism should be considered before filing in court — especially for family disputes.

Quality Checklist

Before submitting any jurisdictional analysis:

- ☐ Have you confirmed the parties are Muslim (or voluntary submission applies)?
- ☐ Have you identified the correct court based on subject matter AND monetary threshold?
- ☐ Have you used “Shari’ah High Court” — not “Shari’ah Appellate Court”?
- ☐ Have you verified the High Court’s operational status?
- ☐ Have you considered whether ADR or *agama* arbitration applies first?
- ☐ Have you mapped the full appellate pathway for the case?

Footnotes

1. Rep. Act No. 11054, art. X, secs. 5-7. ↩
2. Rep. Act No. 11054, art. X, sec. 2. ↩
3. Rep. Act No. 11054, art. X, sec. 5(e)-(f). ↩
4. Rep. Act No. 11054, art. X, sec. 6. ↩
5. Rep. Act No. 11054, art. X, secs. 9-10. ↩
6. Rep. Act No. 11054, art. X, sec. 7. ↩
7. *Id.* ↩
8. Rep. Act No. 11054, art. X, sec. 14. ↩
9. Rep. Act No. 11054, art. X, sec. 12. ↩
10. Rep. Act No. 11054, art. X, sec. 17. ↩
11. Rep. Act No. 11054, art. X, sec. 18. ↩
12. Rep. Act No. 11054, art. X, sec. 19. ↩
13. Rep. Act No. 11054, art. X, sec. 20; Pres. Decree No. 1083, art. 157-163. ↩
14. Rep. Act No. 11054, art. X, sec. 7 (transitional provision). ↩

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05

Maqasid al-Shari'ah as a Policy Framework

Chapters 2-4 gave you the legal architecture: the Constitution, the BOL, PD 1083, and the court system. This chapter gives you the **philosophical lens** through which Muslim scholars have understood the purpose of Shari'ah itself.

The Maqasid al-Shari'ah — the objectives or higher purposes of Islamic law — is a framework developed by classical scholars to evaluate whether laws and policies serve the fundamental values that Shari'ah aims to protect. It is not enacted law. No BAA codifies it. But it is the most widely used analytical tool in Islamic governance for evaluating legislation, development programs, and public policy.

This chapter teaches you how to use it — and how to know when you are outside your depth and need the BDI.

5.1 The Five Objectives

Classical Islamic scholars, most notably Imam Abu Hamid al-Ghazali (d. 1111 CE) and Imam Abu Ishaq al-Shatibi (d. 1388 CE), identified five fundamental objectives that Shari'ah seeks to protect:

#	Arabic	English	What It Protects
1	*Hifz al-Din*	Protection of Faith	Freedom of religion, religious practice, Islamic institutions
2	*Hifz al-Nafs*	Protection of Life	Right to life, health, physical security, dignity
3	*Hifz al-'Aql*	Protection of Intellect	Education, mental health, prohibition of intoxicants
4	*Hifz al-Nasl*	Protection of Lineage	Family integrity, marriage, child welfare, reproductive rights
5	*Hifz al-Mal*	Protection of Property	Economic rights, fair trade, prohibition of exploitation

These five objectives operate at three levels of necessity:

1. ***Daruriyyat*** (necessities) — what is essential for survival and social order
2. ***Hajiyyat*** (needs) — what removes hardship and facilitates life

3. ***Tahsiniyyat*** (enhancements) — what improves quality of life and embellishes society

A policy that protects life at the necessity level (emergency healthcare) takes priority over one that enhances property at the improvement level (tourism promotion).[1]

5.2 Maqasid as a Legislative Lens

Maqasid is not a substitute for enacted law. It is a lens for evaluating whether proposed legislation aligns with the broader purposes of Shari'ah. Here is how practitioners can use it:

When drafting a bill: Ask whether the proposed legislation serves one or more of the five objectives. A Bangsamoro Waqf Act serves *hifz al-mal* (property protection) and *hifz al-din* (faith — through endowment for religious purposes). A Bangsamoro Education Code serves *hifz al-'aql* (intellect). Making this connection explicit in the bill's explanatory note strengthens its Shari'ah foundation.

When analyzing a policy: Evaluate whether the policy protects or threatens any of the five objectives. A health program that improves maternal care serves *hifz al-nafs* (life) and *hifz al-nasl* (lineage). A budget cut that defunds Islamic schools threatens *hifz al-din* (faith) and *hifz al-'aql* (intellect).

When resolving competing interests: Use the hierarchy. Necessities take priority over needs, which take priority over enhancements. Protection of life (*nafs*) generally takes priority over protection of property (*mal*).

What Maqasid cannot do: It cannot tell you the specific legal ruling on a contested question. If scholars disagree on whether a particular financial instrument is Shari'ah-compliant, Maqasid analysis cannot resolve the disagreement — that requires *fiqh* expertise and, in the BARMM context, a BDI consultation.

5.3 How Maqasid Aligns with the BDP and Mas Matatag Agenda

The Maqasid framework maps naturally onto BARMM's development goals. This alignment is not accidental — Islamic governance and development planning share common aspirations.

Maqasid	BDP Goal	Mas Matatag Pillar
Hifz al-Din (Faith)	Goal 5: Culture and identity preserved	Mas Matatag na Paniniwala (Stronger Faith)
Hifz al-Nafs (Life)	Goal 4: Inclusive social services	Mas Matatag na Pamayanan
Hifz al-'Aql (Intellect)	Goal 4: Inclusive social services (education)	Mas Matatag na Pamayanan
Hifz al-Nasl (Lineage)	Goal 3: Peaceful communities	Mas Matatag na Seguridad
Hifz al-Mal (Property)	Goal 2: Equitable economy	Mas Matatag na Kabuhayan (Stronger Livelihood)
Cross-cutting	Goal 1: Stable governance	Mas Matatag na Gobyerno

Practical use: When writing a policy recommendation or legislative briefer, mapping the proposed policy to both the BDP goal AND the corresponding Maqasid objective gives the document a dual foundation — one in the secular development framework, one in the Islamic governance tradition. This dual grounding is particularly effective for the Bangsamoro context, where governance operates at the intersection of both traditions.[2]

5.4 Application in Program Design and Policy Analysis

For development practitioners: When designing a program for BARMM, consider which Maqasid objectives it serves. This is especially relevant for programs that will operate in communities where Islamic governance principles are expected.

Example — Cooperative development program: - *Hifz al-mal* (property): Builds economic capacity through collective enterprise - *Hifz al-nasl* (lineage): Strengthens family livelihoods - *Hifz al-'aql* (intellect): Provides financial literacy and skills training

Example — Halal industry development: - *Hifz al-din* (faith): Ensures food compliance with Islamic dietary requirements - *Hifz al-mal* (property): Creates economic opportunities in halal markets - *Hifz al-nafs* (life): Promotes food safety standards

For policy analysts: When evaluating a proposed BAA or resolution, assess its Maqasid impact as part of the Shari'ah analysis section (Section VII of a legislative briefer). This goes beyond checking whether the bill mentions Shari'ah — it evaluates whether the bill's substance aligns with Islamic governance principles.

5.5 When Maqasid Analysis Needs BDI Consultation

Maqasid is a useful policy lens. But it has limits.

You can apply Maqasid analysis yourself when: - You are mapping a proposed policy to the five objectives (descriptive analysis) - You are comparing competing policy options using the necessity hierarchy - You are writing an explanatory note that articulates a bill's Islamic governance rationale - The connection between the policy and the Maqasid objective is straightforward and uncontested

You should recommend BDI consultation when: - Two Maqasid objectives conflict and the resolution requires *fiqh* reasoning (e.g., protecting faith vs. protecting life in a public health context) - The policy involves a novel application of Maqasid to a modern issue with no classical precedent - The analysis will be used to argue that a specific legislative provision is "Shari'ah-compliant" — this is a religious compliance claim that requires scholarly authority - Stakeholders disagree on which Maqasid objective should take priority

The boundary: You are an analyst, not a *mufti*. You can identify the Maqasid dimensions of a policy. You can map the connections. You can present the framework. But when the question shifts from "which objectives does this policy serve?" to "is this policy Shari'ah-compliant?" — that is a BDI question.

5.6 Worked Example

Scenario: The Ministry of Health is proposing a mandatory vaccination program for children in BARMM. Some community leaders raise concerns that the program may conflict with Islamic principles. You are asked to prepare a Maqasid analysis.

Analysis:

1. **Maqasid mapping:**
2. *Hifz al-nafs* (protection of life): Vaccination directly protects children's lives and health — this is a *daruriyyat* (necessity) level concern
3. *Hifz al-nasl* (protection of lineage): Protecting children's health preserves future generations
4. *Hifz al-din* (protection of faith): Some community leaders question whether vaccine ingredients comply with Islamic dietary standards — this is a legitimate *hajiyyat* (need) level concern
5. **Priority analysis:** Protection of life at the necessity level takes priority over dietary compliance at the need level. The stronger Maqasid argument supports vaccination.
6. **Practical recommendation:** The program should proceed, but with accommodations: (a) verify vaccine ingredients against halal standards where possible, (b) engage the BDI to issue guidance on the permissibility of vaccines, (c) communicate the Maqasid analysis to community leaders.
7. **BDI referral:** The specific question of whether vaccines with non-halal-certified ingredients are permissible under Islamic law requires a *fatwa* from the BDI. The analyst can present the Maqasid framework; the BDI issues the ruling.

Common Pitfalls

- **Treating Maqasid as enacted law.** It is a scholarly framework, not legislation. No BAA codifies it. Use it as an analytical lens, not a legal authority.
- **Using Maqasid to bypass enacted law.** If PD 1083 or a BAA addresses a subject, the enacted law governs — regardless of what a Maqasid analysis might suggest.
- **Oversimplifying the five objectives.** Each objective has depth and nuance. "Protection of property" does not mean all economic activity is Shari'ah-compliant — it means the Shari'ah framework prioritizes fair, non-exploitative economic relations.
- **Claiming Shari'ah compliance based on Maqasid alone.** Maqasid analysis can show that a policy aligns with Islamic values. It cannot certify that the policy is Shari'ah-compliant — that requires *fiqh* analysis and, for binding determinations, BDI authority.
- **Ignoring the three levels of necessity.** Not all Maqasid applications are equal. A policy that serves a *tahsiniyyat* (enhancement) should not be prioritized over one that serves a *daruriyyat* (necessity).

Quality Checklist

Before submitting any work product that uses Maqasid analysis:

- ☐ Have you identified which of the five objectives the policy serves?
- ☐ Have you specified the necessity level (*daruriyyat*, *hajiyyat*, *tahsiniyyat*)?
- ☐ Have you mapped the policy to both BDP goals AND Maqasid objectives?
- ☐ Have you labeled the analysis as “Maqasid framework analysis” — not as a compliance determination?
- ☐ Have you recommended BDI consultation where the question shifts from analysis to compliance?
- ☐ Have you avoided presenting Maqasid as enacted law?

Footnotes

1. The Maqasid al-Shari'ah framework is attributed primarily to Imam Abu Hamid al-Ghazali (*Al-Mustasfa*, c. 1109 CE) and further developed by Imam Abu Ishaq al-Shatibi (*Al-Muwafaqat*, c. 1388 CE). The five objectives and three levels of necessity are widely accepted across the four Sunni schools of jurisprudence. ↩
2. The 2nd Bangsamoro Development Plan 2023-2028 articulates 6 development goals. The Mas Matatag na Bangsamoro Agenda (OCM EO No. 2, s. 2026) establishes 5 pillars for the 2026-2028 period. ↩

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06

Using Primary Islamic Sources

Part I gave you the legal architecture. This chapter teaches you how to use the **primary sources** that the BOL itself recognizes: the Qur'an, the Sunnah (Hadith collections), and the scholarly tradition built on them.

BOL Art. X, Sec. 3 names four sources of Shari'ah: the Qur'an and Sunnah as principal sources, and Ijma' (consensus) and Qiyas (analogy) as secondary sources.[1] If you are going to research Shari'ah topics, draft legislation with Islamic references, or produce legal analysis that cites scriptural authority, you need to know how to find, verify, and cite these sources.

This chapter shows you how.

6.1 Why Practitioners Need Access to Primary Sources

Three situations require you to work with primary Islamic sources:

Legislative drafting. When a bill has a Shari'ah dimension, the explanatory note or WHEREAS clauses may cite Qur'anic verses or Hadith narrations as the scriptural basis for the legislation. These citations must be exact — the Arabic text and its English translation, with a proper source reference.

Legal analysis. When producing a Shari'ah legal opinion (Chapter 7), you need to trace the scriptural basis for a legal position. "Islamic law prohibits interest" is a claim. The Qur'anic verse that supports it — Surah Al-Baqarah (2):275 — is the evidence.

Policy work. When writing a legislative briefer's Shari'ah analysis section or a policy recommendation that invokes Islamic principles, sourcing those principles from the primary texts gives the analysis authority. An unsourced claim about "what Islam says" has no weight in a professional document.

6.2 Building Your Own Islamic Source Library

You need two categories of sources: the Qur'an and the major Hadith collections.

The Qur'an

The Qur'an has **114 surahs** (chapters) containing over 6,200 ayat (verses). For legislative and legal research, you need a searchable text with both Arabic and English.

Recommended translations: - **Sahih International** — the most widely used English translation for legal and academic purposes. Clear, literal, with minimal interpretation. - **Muhammad Muhsin Khan** — used alongside Sahih al-Bukhari translations. More interpretive, includes parenthetical explanations.

Digital sources: - **quran.com** — free, searchable, multiple translations. Provides API access for bulk download. - **Tanzil.net** — plain-text Quran in multiple scripts and translations. Designed for data use.

What to look for: A format where each ayah is individually addressable (you can find Surah 2, Ayah 282 directly), with Arabic text and English translation side by side. This is essential for accurate citation.

Tafsir (Commentary): Classical Qur'anic commentary helps you understand the context and scholarly interpretation of verses. The most widely referenced is **Tafsir Ibn Kathir (Abridged)** — a standard reference across the Sunni schools. It is available digitally through quran.com and other platforms.

The Kutub al-Sittah (Six Major Hadith Collections)

The Hadith collections preserve the sayings, actions, and approvals of Prophet Muhammad (SAW). Six collections are recognized as the most authoritative in Sunni Islam:

#	Collection	Arabic	Compiler	Books	Authority
1	**Sahih al-Bukhari**	صحيح البخاري	Imam al-Bukhari (d. 870 CE)	97	Highest — most rigorously authenticated
2	**Sahih Muslim**	صحيح مسلم	Imam Muslim (d. 875 CE)	57	Second highest — paired with Bukhari as the "Two Sahihs"

#	Collection	Arabic	Compiler	Books	Authority
3	**Sunan Abu Dawud**	سنن أبي داود	Imam Abu Dawud (d. 889 CE)	43	Strong on legal rulings (*ahkam*)
4	**Jami' at-Tirmidhi**	جامع الترمذي	Imam at-Tirmidhi (d. 892 CE)	49	Includes hadith grading commentary
5	**Sunan an-Nasa'i**	سنن النسائي	Imam an-Nasa'i (d. 915 CE)	51	Detailed on worship and transactions
6	**Sunan Ibn Majah**	سنن ابن ماجه	Imam Ibn Majah (d. 887 CE)	38	Broadest coverage; some unique narrations

Digital sources: - **sunnah.com** — free, searchable, Arabic + English. The standard digital reference for all six collections. - **hadith-api** (fawazahmed0 on GitHub) — JSON API for bulk download. Enables building your own searchable local library.

Format: Each collection is organized by *kitab* (book) and individual hadith number. A citation reads: "Sahih al-Bukhari, Book 34, Hadith 19." You need a format where each hadith has the Arabic text and English translation with this numbering.

Organizing Your Sources

For effective research, organize your source library so you can **search by keyword** across collections. The ideal setup: - One file per book within each collection (e.g., "01-Revelation.md" through "97-Tawhid.md" for Bukhari) - Arabic text in blockquotes, English translation below - Consistent heading format (`### Hadith N`) so you can grep across files - An INDEX.md for each collection listing all books with hadith ranges

This structure lets you search for a topic (e.g., "debt" or "marriage") across all collections and find every relevant narration with its exact text.

6.3 Hierarchy of Authority

When you find relevant sources, their weight depends on their position in the hierarchy:

Tier 1: Qur'an — the highest authority. A clear Qur'anic verse on a subject settles the matter unless scholarly interpretation (*tafsir*) indicates otherwise.

Tier 2: Sahih al-Bukhari and Sahih Muslim — a hadith found in both collections is called *muttafaq 'alayh* (agreed upon) and carries the strongest hadith authority. A hadith in Bukhari alone is still very strong; Muslim alone slightly less so.

Tier 3: Sunan collections (Abu Dawud, Tirmidhi, Nasa'i, Ibn Majah) — authoritative, but individual narrations must be assessed for authentication grade. Tirmidhi helpfully includes his own grading for many hadith.

For practitioners: Search Bukhari and Muslim first. If you find the narration there, you have the strongest possible hadith evidence. Then search the Sunan collections for additional narrations or for topics that the Two Sahihs do not cover.[2]

6.4 Research Methodology: Finding Relevant Scriptural Sources

When you need to find what the Qur'an and Hadith say about a topic, follow this method:

Step 1: Identify search terms. Start with the obvious English keyword. Then add synonyms and related concepts. For "trade," also search "commerce," "buying," "selling," "merchant," "market."

Step 2: Search the Qur'an. Search your Qur'an files by English keyword. When you find a match, read the full ayah — the surrounding verses often provide context. Check whether the surah is Makki (revealed in Makkah — typically theological) or Madani (revealed in Madinah — often contains legal provisions). Madani verses are more likely to contain provisions relevant to legislation.

Step 3: Check the Tafsir. For each relevant verse, read the classical commentary. Ibn Kathir provides the scholarly context: why the verse was revealed, how the early community understood it, and how scholars have applied it.

Step 4: Search the Hadith collections. Start with Bukhari and Muslim. Search by keyword in the English translations. When you find a relevant narration, note the book name and hadith number.

Step 5: Cross-collection verification. When you find a hadith in one collection, search the others for the same narration. A hadith reported in multiple collections is stronger. Note all occurrences.

6.5 Cross-Collection Verification and *Muttafaq 'Alayh*

A hadith reported in both Sahih al-Bukhari and Sahih Muslim is called ***muttafaq 'alayh*** — agreed upon by the two most rigorous compilers. This status carries special weight.

How to verify: When you find a hadith in Bukhari, search Muslim for the same narration (it may use slightly different wording but convey the same meaning). If found in both, cite the Bukhari version as primary and note "Also reported in Sahih Muslim, Book [N], Hadith [N]."

Why this matters for legislation: When citing a hadith as the scriptural basis for a bill or resolution, a *muttafaq 'alayh* narration is practically unchallengeable on grounds of authenticity. A hadith from a single Sunan collection may face questions about its authentication grade.

6.6 The Madhhab Dimension: Shafi'i/Hanafi Practice in the Philippines

PD 1083 predominantly reflects the Hanafi and Shafi'i schools of jurisprudence as practiced by Filipino Muslims. The Shafi'i school is dominant in maritime Southeast Asia — including the Bangsamoro region.

Practical implications: - When multiple *madhhab* positions exist on a subject, note which school's position is most relevant to the Philippine context - When PD 1083 codifies a position, that position becomes enacted law regardless of which school it originates from - For matters beyond PD 1083, present the Shafi'i/Hanafi position as the default with other school positions noted where they differ materially

When to present all four schools: If you are drafting a bill on a subject where the schools disagree and the disagreement affects the legal outcome (e.g., the rules for *waqf* irrevocability), present all four positions so Parliament can make an informed legislative choice.[3]

6.7 Worked Example: Researching a Shari'ah Topic from Scratch

Scenario: You are asked to find the scriptural basis for *waqf* (Islamic endowment) to support a proposed "Bangsamoro Waqf Act."

Step 1: Search terms. "Endowment," "waqf," "charity," "sadaqah jariyah" (ongoing charity).

Step 2: Qur'an search. Search for "charity" and "spend" in the Qur'an files. Key finds: - Surah Al-Baqarah (2):261 — "The example of those who spend their wealth in the way of Allah is like a seed of grain that sprouts seven ears..." - Surah Al-Imran (3):92 — "Never will you attain the good until you spend from that which you love."

Step 3: Hadith search. Search Bukhari and Muslim for "endowment" and "charity": - Sahih Muslim — narration of 'Umar ibn al-Khattab endowing land in Khaybar: the Prophet (SAW) advised him to "give it in charity with the condition that it not be sold, gifted, or inherited" — widely considered the foundational hadith for *waqf*.

Step 4: Cross-collection. The Khaybar endowment hadith appears in multiple collections — verify in Bukhari, Abu Dawud, and others.

Step 5: Compile results. Present the Qur'anic verses and the foundational hadith with exact Arabic text and English translation. Note that all four Sunni schools recognize *waqf*, though they differ on irrevocability (Hanafi allows revocation under certain conditions; Shafi'i holds waqf is irrevocable).

Step 6: Cite. Format citations per the footnote protocol (Chapter 7, Section 7.1).

Common Pitfalls

- **Citing from memory.** Never cite a Qur'anic verse or Hadith from memory. Always verify against the source text. Misquoting scripture in an official document is a serious error.
- **Using only one collection.** If a hadith exists in Bukhari, check Muslim too. Cross-collection verification strengthens the citation and may reveal additional relevant narrations.
- **Ignoring the Makki/Madani distinction.** A Makki verse about general principles may be less directly applicable to legislation than a Madani verse about specific legal provisions.
- **Presenting one school's position as universal.** If the Shafi'i school holds a position, say "the Shafi'i school holds..." — not "Islamic law requires..."
- **Skipping the Tafsir.** A verse read in isolation can be misunderstood. The classical commentary provides the scholarly context that practitioners need.

Quality Checklist

Before submitting any work product with scriptural citations:

- ☐ Have you verified every Qur'anic verse against the source text (Arabic + translation)?
- ☐ Have you verified every Hadith against the source text with collection, book, and hadith number?
- ☐ Have you checked whether the Hadith appears in multiple collections (*muttafaq 'alayh*)?
- ☐ Have you noted which *madhhab* position you are presenting?
- ☐ Have you checked the Tafsir for context on Qur'anic verses?
- ☐ Have you used the correct citation format (Surah name, number:ayah for Qur'an; Collection, Book, Hadith for Hadith)?

Footnotes

1. Rep. Act No. 11054, art. X, sec. 3. ↩
2. The hierarchical ranking of Hadith collections (Bukhari highest, followed by Muslim, then the four Sunan) is the standard classification in Sunni Hadith scholarship. A narration found in both Bukhari and Muslim (*muttafaq ‘alayh*) carries the strongest possible Hadith authority. ↩
3. The predominance of Shafi’i jurisprudence in maritime Southeast Asia, including the Bangsamoro, is documented in scholarship on Islam in the Philippines. PD 1083’s provisions on marriage, divorce, and inheritance reflect Hanafi and Shafi’i positions. ↩

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07

Producing Shari'ah Legal Analysis

Chapter 6 taught you how to find scriptural sources. This chapter teaches you how to turn those sources into a **professional legal analysis** — the same kind of structured, evidence-based opinion that lawyers produce for secular law.

The methodology is IRAC: Issue, Rule, Application, Conclusion. You already use it (or should) for constitutional and statutory analysis. Shari'ah legal analysis follows the same structure — with additional layers for scriptural evidence, *madhhab* positions, and the interplay between enacted law and *fiqh*.

7.1 Citing Scriptural Sources in Official Documents

Before you analyze, you need to know how to cite. All BARMM official documents — bills, resolutions, briefers, legal opinions — follow the Philippine Manual of Legal Citations (Feliciano, 10th Ed., 2019) for Philippine law. For Islamic jurisprudence, we use a Bangsamoro extension of the same protocol.[1]

The Footnote Protocol

The rule: Express the principle in **general legislative language** in the body text. Place the specific Qur'anic or Hadith source in a **footnote** with the exact Arabic text and English translation.

Why footnotes? This protocol respects the constitutional "separation of church and state" while honoring the BOL's authorization of Shari'ah legislation. The legislative text uses neutral, general language; the footnote provides the exact religious source for scholarly verification.

Qur'an Citation Format

```
[n] Qur'an, Surah [Name] ([Number]):[Ayah]. Arabic: "[exact Arabic text]".
    Translation: "[English translation]".
```

Example:

```
1 Qur'an, Surah Al-Baqarah (2):282. Arabic: "يَا أَيُّهَا الَّذِينَ آمَنُوا إِذَا تَدَايَنتُم
  بِدَيْنٍ إِلَىٰ أَجَلٍ مُّسَمًّى فَاكْتُبُوهُ".
  Translation: "O you who believe, when you contract a debt for a specified
term, write it down."
```

Hadith Citation Format

```
[n] [Collection Name], Book [Number], Hadith [Number]. "[Arabic text]".
    Translation: "[English translation]".
```

Example:

```
2 Sahih al-Bukhari, Book 34, Hadith 2. "الذهب بالذهب والفضة بالفضة...".
  Translation: "Gold for gold, silver for silver... each like for like, hand
to hand."
```

Accuracy Requirement

The accuracy of Qur'anic verses and Hadith is **critical**. If you cannot verify a citation against the source text, mark it as `[VERIFY: Qur'an/Hadith citation]` and flag it for review. A wrong scriptural citation in an official document is far more damaging than a missing one.

7.2 Shari'ah Legal Opinions: IRAC Methodology with Islamic Sources

A Shari'ah legal opinion follows the same IRAC structure as any legal memo. The difference is in the sources.

I — Issue

Frame the specific Shari'ah legal question. Be precise.

- **Vague:** "Is Islamic finance permissible in BARMM?"
- **Precise:** "Can a BARMM cooperative structured under RA 9520 offer *mudarabah* (profit-sharing) investment accounts to its members without violating the prohibition of *riba* (interest)?"

R — Rule (Sources)

Gather all applicable rules from four source tiers:

1. **Enacted law** — BOL, PD 1083, BAAs. These are binding. If an enacted provision answers the question, the analysis may end here.
2. **Scriptural sources** — Qur'anic verses and Hadith narrations relevant to the question. Found using the methodology in Chapter 6.
3. **Fiqh positions** — How have the schools of jurisprudence (*madhahib*) addressed this question? Present each relevant school's position with its evidence (*dalil*).
4. **Scholarly consensus** — Is there *ijma'* (consensus) on this point? Consensus carries strong authority in Islamic jurisprudence.

A — Application (Analysis)

Apply the rules to the specific question. This is where the analytical work happens:

- **Start with enacted law.** If BOL or PD 1083 addresses the question, state what it says.
- **Layer in scriptural evidence.** What do the Qur'an and Hadith say about the underlying principle?

- **Present *madhhab* positions.** If the schools agree, note the *ijma'*. If they disagree, present each position with its evidence.
- **Address legislative gaps.** Has Parliament enacted legislation on this specific subject? If not, note the gap and what Art. X, Sec. 4 authorizes.
- **Identify the strongest position.** Based on the evidence, which position has the strongest support? From which school? Supported by which sources?

C — Conclusion

State your legal opinion:

- The strongest position and why
- Minority positions and their evidence (if the question is contested)
- Practical recommendation for the BARMM context
- BDI consultation recommendation if the matter requires binding authority

---

7.3 When Scholarly Disagreement Affects Your Work

Ikhtilaf — scholarly disagreement — is normal in Islamic jurisprudence. The four Sunni schools agree on fundamentals but differ on specifics. When disagreement exists, your job is to **present it transparently**, not resolve it.

How to handle *ikhtilaf* in your analysis:

1. **Identify the point of disagreement.** State exactly where the schools diverge.
2. **Present each position with its evidence.** Name the school, state its position, cite its *dalil* (evidence — Qur'anic verse, Hadith, or analogical reasoning).
3. **Note the Philippine context.** If PD 1083 codifies one school's position, that position is enacted law in the Philippines — regardless of what other schools hold.
4. **If no enacted law resolves the disagreement:** Present all positions and recommend that Parliament (for legislation) or the BDI (for religious ruling) make the determination.

Example: The Hanafi school permits revocation of *waqf* under certain conditions; the Shafi'i school holds that *waqf* is irrevocable once established. If Parliament is drafting a Waqf Act, this disagreement must be surfaced — Parliament chooses which position to codify.

7.4 The BDI Referral: When Analysis Reaches Its Limit

Your analysis reaches its limit when the question shifts from “what does the law say?” to “what does Islam require?” The first is legal analysis. The second is a religious ruling.

Refer to the BDI when:

- The question involves novel circumstances (*nawazil*) with no classical precedent
- Multiple *madhhab* positions lead to materially different outcomes and no enacted law resolves the matter
- The output will create binding policy affecting Muslim religious practice
- The question turns on interpretation of Qur’an or Sunnah that scholars dispute

How to frame a BDI referral:

Do not send vague questions to the BDI. Frame the referral with:

1. **The specific question** — precise, not open-ended
2. **The enacted law context** — what the BOL, PD 1083, and BAAs say (or don’t say)
3. **The scriptural evidence you found** — Qur’anic verses and Hadith with citations
4. **The *madhhab* positions** — what each school holds
5. **Why a ruling is needed** — what decision depends on the answer

A well-framed referral respects the BDI’s time and enables a precise *fatwa*.[2]

7.5 Worked Example: From Research to Legal Opinion

Issue: Can the Bangsamoro Government issue *sukuk* (Islamic bonds) to finance infrastructure projects under the BOL's fiscal autonomy provisions?

Rule — Enacted Law: - BOL Art. XII, Sec. 24 authorizes the Bangsamoro Government to contract foreign and domestic loans, subject to national law requirements - No BAA has been enacted on Islamic finance instruments - BOL Art. X, Sec. 4 grants Parliament power over commercial matters not in PD 1083 — *sukuk* is not in PD 1083

Rule — Scriptural Sources: - Qur'an, Surah Al-Baqarah (2):275 — prohibits *riba* (interest/usury): "Allah has permitted trade and has forbidden interest" - Sahih Muslim — narrations on the prohibition of *riba* in financial transactions - The prohibition of *riba* is one of the most well-established rulings in Islamic finance — *ijma'* exists across all four schools

Rule — Fiqh Positions: - All four schools agree that *riba* is prohibited - *Sukuk* (asset-backed certificates) are the Shari'ah-compliant alternative to conventional bonds — structured as ownership shares in an underlying asset, not debt instruments - The Accounting and Auditing Organization for Islamic Financial Institutions (AAOIFI) has issued standards for *sukuk* structuring

Application: - The BOL authorizes borrowing but does not specify the instrument - Conventional bonds involve interest payments — this triggers the *riba* prohibition - *Sukuk* avoid *riba* by structuring returns as profit-sharing from an underlying asset - Parliament has the power to enact a "Bangsamoro Sukuk Act" under Art. X, Sec. 4 (commercial matters not in PD 1083) - No current BAA authorizes *sukuk* — this is a legislative gap

Conclusion: - The Bangsamoro Government can explore *sukuk* issuance, but needs enabling legislation - Parliament should enact a BAA establishing the legal framework for *sukuk*, including: eligible assets, structuring requirements, Shari'ah governance, and investor protections - BDI consultation is recommended on the specific *sukuk* structure to ensure Shari'ah compliance — different *sukuk* types (*ijarah*, *murabaha*, *musharakah*) have different compliance requirements

7.6 Common Pitfalls

- **Skipping enacted law.** Always check BOL, PD 1083, and BAAs first. If enacted law answers the question, you may not need scriptural analysis at all.
- **Presenting a legal opinion as a *fatwa*.** Your output is analysis, not a binding religious ruling. Label it as a "Shari'ah Legal Opinion" or "Legal Analysis" — never as a *fatwa*.
- **Using unsourced fiqh claims.** Every *fiqh* position must be attributed to a specific school. "Islamic law holds..." is insufficient — say "the Shafi'i school holds... based on..." with evidence.
- **Ignoring the BDI referral trigger.** If your analysis reveals a genuine *ikhtilaf* that materially affects the conclusion, do not pick a side — present the positions and recommend BDI consultation.
- **Citing scriptural sources without verification.** Every Qur'anic verse and Hadith must be verified against the source text. A fabricated or misquoted citation destroys credibility.

Quality Checklist

Before submitting a Shari’ah legal opinion:

- ☐ Does the IRAC structure follow: Issue → Rule (enacted law + scriptural + fiqh) → Application → Conclusion?
- ☐ Have you checked enacted law (BOL, PD 1083, BAAs) before turning to scriptural sources?
- ☐ Is every Qur’anic verse cited with Surah name, number, ayah, Arabic text, and translation?
- ☐ Is every Hadith cited with collection, book, hadith number, and translation?
- ☐ Is every *fiqh* position attributed to a specific school with evidence?
- ☐ Have you flagged *ikhtilaf* where it exists — presenting all positions?
- ☐ Have you recommended BDI consultation where the question requires binding authority?
- ☐ Is the document labeled as “legal analysis” — not as a *fatwa*?

Footnotes

1. The citation protocol follows the Philippine Manual of Legal Citations (Feliciano, 10th Ed., 2019) for Philippine law, with Bangsamoro extensions for Islamic jurisprudence (Qur'an and Hadith footnote protocol). ↩
2. BAA No. 13 (Bangsamoro Administrative Code), Book III, Title III, Chapter 1, Section G, sec. 54(a) authorizes the BDI to "Promulgate *fatwa* (religious edicts) pertaining to the whole breadth of Islamic jurisprudence." ↩

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08

Legislative Strategy: Standalone vs. Mainstreaming

This is the chapter that addresses the question the Bangsamoro Parliament must answer: **How should Shari'ah be legislated in BARMM?**

The BOL gives Parliament the power. PD 1083 covers personal law. The court system is in place. The primary sources are accessible. But Parliament has not yet developed a coherent strategy for *how* to exercise its Shari'ah legislative power. Should it enact standalone Shari'ah BAAs? Should it mainstream Shari'ah provisions into every relevant piece of legislation? Or should it pursue a hybrid approach?

This chapter analyzes the three options and recommends a path forward.

8.1 The Strategic Question

BOL Art. X, Sec. 4 grants Parliament power to legislate on personal, family, and property law; commercial and civil actions not provided for under PD 1083; and *ta'zir* criminal offenses.[1] This is a broad mandate. But a mandate without a strategy produces fragmented legislation.

Consider the current situation: of the 89 BAAs enacted through February 2026, none is a dedicated Shari'ah law.[2] Shari'ah provisions appear *within* other legislation — the BDI is established within BAA 13 (the Administrative Code), halal certification is referenced in BAA 13's provisions on the Halal Board, and the Hijri calendar is mandated by BAA 20. But no standalone "Bangsamoro Shari'ah Code," "Bangsamoro Waqf Act," or "Bangsamoro Zakat Act" exists.

Is this a problem? Or is it a design choice? The answer depends on which legislative strategy Parliament adopts.

8.2 Standalone Approach — Dedicated Shari'ah BAAs

The standalone approach enacts dedicated legislation for each Shari'ah subject area: a Waqf Act, a Zakat Act, an Islamic Finance Act, a Halal Regulatory Act, and potentially a comprehensive Bangsamoro Shari'ah Code.

Advantages:

- **Clarity.** Each subject gets a complete, self-contained law. Practitioners know exactly where to find the rules for waqf, zakat, or Islamic finance.
- **Institutional framework.** A standalone BAA can create dedicated institutions — a Waqf Board, a Zakat Authority, an Islamic Finance Commission — with defined mandates, budgets, and accountability structures.
- **Comprehensive treatment.** A dedicated act can address a subject in full depth — definitions, procedures, administration, penalties, implementing rules — without competing for space within a broader law.
- **Symbolic weight.** Standalone Shari'ah legislation signals that Parliament takes its Art. X mandate seriously and is actively exercising the legislative power the BOL grants.

Risks:

- **Slow pace.** Drafting comprehensive standalone legislation takes time — research, consultation with *'ulama*, committee deliberations, BDI review. With the BTA transition period pressing, slow legislation means missed deadlines.
- **Resource-intensive.** Each standalone BAA requires its own drafting team, committee hearings, and implementing rules. Parliament's technical capacity is finite.
- **Potential isolation.** If Shari'ah legislation exists only in standalone BAAs, mainstream legislation (budget, education, health, environment) may ignore Shari'ah dimensions entirely — creating a two-track system where Islamic principles apply only in "Islamic" laws.

Models: Malaysia has enacted standalone Islamic finance legislation (Islamic Financial Services Act 2013), a separate Zakat administration framework, and dedicated Waqf laws at the state level. Indonesia enacted a national Zakat Law (Law No. 23 of 2011) as standalone legislation.

8.3 Mainstreaming Approach — Shari'ah Provisions in Every BAA

The mainstreaming approach embeds Shari'ah provisions within every relevant piece of legislation rather than creating separate Shari'ah laws.

How it works: Every bill that passes through Parliament would undergo a Shari'ah checkpoint (Chapter 9). If the bill has a Shari'ah dimension, the drafters add provisions that address it — halal compliance in a food safety BAA, Shari'ah-compliant options in a cooperative code, *waqf* provisions in a property law, zakat considerations in a fiscal policy.

Advantages:

- **Immediate impact.** Shari'ah provisions take effect as soon as each mainstreamed BAA is enacted — no waiting for a separate dedicated law.
- **Integration.** Shari'ah becomes part of the fabric of all governance, not a separate silo. Budget law considers zakat. Education law considers Islamic education. Health law considers halal.
- **Faster enactment.** Adding Shari'ah provisions to bills that are already being drafted is faster than drafting entirely new standalone legislation.

Risks:

- **Fragmentation.** Shari'ah provisions scattered across dozens of BAAs are harder to find, harder to keep consistent, and harder to amend.
- **Inconsistency.** Different drafters may interpret Shari'ah requirements differently across bills, leading to contradictions.
- **Shallow treatment.** A few sections within a broader BAA cannot provide the same depth as a dedicated standalone law. Complex subjects like waqf administration or Islamic finance need comprehensive treatment.

Models: BARMM already uses this approach informally — the BDI in BAA 13, Hijri calendar in BAA 20. Indonesia mainstreams Shari'ah compliance into its banking regulations through Bank Indonesia circulars rather than standalone Islamic banking laws.

8.4 Hybrid Approach — Foundational Code + Mainstreaming Checklist

The hybrid approach combines both strategies:

1. **Enact a foundational "Bangsamoro Shari'ah Code"** as a standalone BAA that establishes the general principles, institutional framework, and cross-cutting provisions for Shari'ah in BARMM governance.
2. **Mainstream Shari'ah provisions** into all subsequent legislation through a mandatory Shari'ah checkpoint in the bill-drafting process (Chapter 9).
3. **Enact standalone BAAs** for subjects that require comprehensive treatment (waqf, zakat, Islamic finance) — but anchor them in the foundational code.

The foundational code would cover: - Declaration of principles: how Shari'ah relates to BARMM governance - Institutional framework: BDI's role in legislative review (building on BAA 13, Secs. 52-56) - Shari'ah checkpoint mandate: requirement that every bill undergo Shari'ah review - General provisions on Islamic finance, waqf, and zakat — with authorization for detailed standalone BAAs - Citation protocol for scriptural sources in legislation - Relationship between PD 1083 and BARMM Shari'ah legislation

The mainstreaming checklist would require: - Every bill to be reviewed against the Shari'ah checkpoint (Chapter 9) - Shari'ah dimensions to be addressed in the bill text where identified - BDI consultation for bills with significant Shari'ah implications - A Shari'ah analysis section in every legislative briefer (Section VII of the CSW format)

8.5 Analysis: Which Approach Fits BARMM's Legislative Reality?

Parliament's track record tells us something important. In 89 enacted BAAs, Parliament has prioritized administrative codes (BAA 13), education (BAA 18), civil service (BAA 17), electoral law (BAA 35), local governance (BAA 49), budget legislation, and municipality creation. Shari'ah has been addressed incidentally — within BAA 13 — not as a primary legislative agenda item.

This is not neglect. It reflects a sequencing choice: build the governance infrastructure first, then legislate on more specialized matters. The administrative code had to come before a Shari'ah code because the BDI needed an institutional home.

BOL Art. X, Sec. 4 scope is specific: personal/family/property law, commercial matters not in PD 1083, and *ta'zir*. This is not unlimited. Parliament cannot legislate on criminal matters beyond *arresto menor*, cannot override PD 1083, and cannot extend Shari'ah to non-Muslims without voluntary submission.

PD 1083 as baseline means that personal law is already covered. Parliament's opportunity lies in the gaps: Islamic finance, waqf administration, zakat regulation, halal certification, and commercial matters. These are all subjects that benefit from standalone legislation.

The BDI's capacity is a practical constraint. A comprehensive Shari'ah legislative review function requires institutional readiness — qualified staff, established procedures, and a track record of issuing *fatawa*. The BDI, established under BAA 13, is still building this capacity.

8.6 Recommendation: A Phased Hybrid Strategy

Based on the analysis, the recommended strategy is a **phased hybrid** approach:

Phase 1 (Immediate): Institutionalize the Shari'ah Checkpoint - Formalize the Shari'ah checkpoint as a mandatory step in Parliament's bill-drafting process - Train committee staff on how to conduct Shari'ah analysis using this guidebook - Establish a working relationship between committee staff and the BDI for legislative consultation

Phase 2 (Near-term): Enact Priority Standalone BAAs - **Bangsamoro Waqf Act** — establish a waqf registry, administration framework, and regulatory body - **Bangsamoro Zakat Act** — formalize zakat collection, distribution, and administration - **Bangsamoro Islamic Finance Framework Act** — establish the legal basis for Shari'ah-compliant financial instruments - **Bangsamoro Halal Act** — comprehensive halal certification and regulatory framework

Phase 3 (Medium-term): Foundational Shari'ah Code - Consolidate the principles, institutional framework, and cross-cutting provisions from Phase 1-2 into a comprehensive "Bangsamoro Shari'ah Code" - This code becomes the anchor for all existing and future Shari'ah legislation

Why this sequence? The checkpoint (Phase 1) can be implemented immediately with no new legislation — it is a procedural reform within Parliament. The standalone BAAs (Phase 2) address the most pressing legislative gaps. The foundational code (Phase 3) comes last because it requires the experience of Phases 1-2 to get right.

8.7 Worked Example: Mapping a Legislative Agenda

Scenario: The Committee on Bangsamoro Justice System asks you to recommend a three-year Shari'ah legislative agenda for the next Parliament.

Recommended agenda using the phased hybrid strategy:

Year 1: - Resolution adopting the Shari'ah Checkpoint as a mandatory step in bill drafting - Filing of Bangsamoro Waqf Act (PB) and Bangsamoro Halal Act (PB) - BDI capacity-building: establish legislative review procedures

Year 2: - Enactment of Waqf Act and Halal Act - Filing of Bangsamoro Zakat Act and Islamic Finance Framework Act - Review of all pending bills for Shari'ah dimensions using the checkpoint

Year 3: - Enactment of Zakat Act and Islamic Finance Framework Act - Drafting of comprehensive Bangsamoro Shari'ah Code - Assessment of mainstreaming results: how many BAAs incorporated Shari'ah provisions through the checkpoint?

8.8 Common Pitfalls

- **Waiting for the perfect comprehensive code.** A Shari'ah Code that covers everything will take years to draft. Standalone BAAs on priority subjects can be enacted faster.
- **Mainstreaming without a checkpoint.** If there is no formal process for identifying Shari'ah dimensions, mainstreaming becomes ad hoc and inconsistent.
- **Ignoring BDI capacity.** Any strategy that relies on BDI legislative review must account for the BDI's current staffing, expertise, and procedural readiness.
- **Treating Shari'ah legislation as a separate track.** The goal is integration — Shari'ah principles embedded in governance, not isolated in "Islamic" laws that mainstream agencies ignore.
- **Legislating beyond Art. X, Sec. 4 scope.** Parliament's Shari'ah power has specific boundaries. Legislation that exceeds them risks constitutional challenge.

Quality Checklist

Before submitting a legislative strategy recommendation:

- ☐ Have you analyzed all three approaches (standalone, mainstreaming, hybrid)?
- ☐ Have you assessed Parliament's current legislative capacity?
- ☐ Have you considered BDI readiness for legislative review?
- ☐ Have you checked that proposed legislation falls within Art. X, Sec. 4 scope?
- ☐ Have you verified that proposed legislation does not conflict with PD 1083?
- ☐ Have you included a realistic timeline with phasing?

Footnotes

1. Rep. Act No. 11054, art. X, sec. 4. ↩
2. Based on review of all 89 enacted BAAs through February 2026. See Appendix C for the complete Shari'ah-relevant BAA index. ↩

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09

The Shari'ah Checkpoint for Bill Drafting

Chapter 8 gave you the strategy. This chapter gives you the **process** — a step-by-step checkpoint that every bill should pass through to determine whether it has a Shari'ah dimension and, if so, how to address it.

The checkpoint is not a separate Shari'ah review process layered on top of the existing legislative workflow. It is a screening step *within* the workflow — the same way a constitutional review or a gender analysis is built into the bill-drafting process, not bolted on after.

9.1 When a Bill Has a Shari'ah Dimension

A bill has a Shari'ah dimension when any of the following conditions are met:

Condition	Examples
The subject involves **personal law** for Muslims	Marriage, divorce, inheritance, custody, guardianship, legitimacy, paternity
The subject involves **property relations** between Muslims	Land disputes, communal property, matrimonial property
The subject involves **minor criminal offenses** under Shari'ah court jurisdiction	*Ta'zir* offenses punishable by *arresto menor* or equivalent
The subject intersects with **Islamic finance**	Cooperative bylaws, banking, investment, insurance, bonds
The subject intersects with **halal certification** or regulation	Food safety, product standards, trade, tourism
The subject involves **waqf** (endowment) or **zakat** (alms)	Property administration, social welfare, fiscal policy
The subject involves **Islamic education** or *madaris*	Curriculum, accreditation, teacher qualifications
The subject involves the **BDI** or religious authorities	Institutional mandates, *fatwa* procedures, religious affairs
A provision in the bill **references Shari'ah**, "Islamic law," or "Muslim personal law"	Any bill text that invokes these terms

If none of these conditions are met, the bill has no Shari’ah dimension. Note this in the committee report and proceed with the standard legislative process.

If one or more conditions are met, proceed to the compliance review.[1]

9.2 The Shari'ah Compliance Review Process

The compliance review has four steps:

Step 1: Identify the Shari'ah Provisions

Read the entire bill. For each section, ask: does this provision touch any of the conditions in the table above? Mark every section that does.

Step 2: Map to Enacted Law

For each marked section, determine: - **Does PD 1083 cover this subject?** If yes, verify that the bill does not conflict with PD 1083. The bill can supplement PD 1083 but not override it.[2] - **Does BOL Art. X authorize legislation on this subject?** Confirm the subject falls within Sec. 4's scope: personal/family/property law, commercial matters not in PD 1083, or *ta'zir*. - **Does any existing BAA address this subject?** Check for overlap or conflict with enacted BAAs.

Step 3: Check Constitutional Constraints

Apply the three constitutional constraints from Chapter 2:

1. **"Exclusively Muslim" boundary** — Does the bill apply Shari'ah obligations to non-Muslims? If so, does it include a voluntary submission provision?[3]
2. **Bill of Rights** — Does the bill impose penalties (*ta'zir*)? If so, does it satisfy due process (notice, hearing, proportionality)?
3. **Supreme Court supervision** — Does the bill affect Shari'ah court jurisdiction? If so, does it preserve SC supervisory authority?[4]

Step 4: Determine BDI Consultation Need

Does the bill require the BDI's input? Consult the BDI when: - The bill codifies a *fiqh* position where schools disagree - The bill creates obligations grounded in religious practice - The bill's Shari'ah basis needs authoritative confirmation

If BDI consultation is needed, frame the referral using the protocol in Chapter 7, Section 7.4.

9.3 Drafting Shari'ah-Consistent Legislation

When you have identified and mapped the Shari'ah dimensions, apply these drafting principles:

Principle 1: Use general legislative language in the bill text. Express Islamic principles in neutral, legal terms. Place the specific Qur'anic or Hadith source in a footnote — not in the operative text of the bill. This follows the citation protocol in Chapter 7, Section 7.1.

Principle 2: State the PD 1083 relationship explicitly. If the bill supplements PD 1083, say so: "This Act shall apply in addition to the provisions of Presidential Decree No. 1083, as amended." If the bill addresses a matter not covered by PD 1083, state that too: "This Act governs [subject], a matter not provided for under Presidential Decree No. 1083."

Principle 3: Include a voluntary submission provision if non-Muslims may be affected. Standard clause: "Where a party is a non-Muslim, the provisions of this Act shall apply only if the non-Muslim voluntarily submits to the jurisdiction established herein, in accordance with Section 1, Article X of Republic Act No. 11054."

Principle 4: Identify the implementing agency. If the bill creates new Shari'ah-related functions, assign them to an appropriate agency. For matters requiring religious expertise, the BDI is the natural implementing agency (BAA 13, Secs. 52-56). For regulatory matters, the relevant Ministry (e.g., MTIT for halal, MFBM for Islamic finance).[5]

Principle 5: Include a Shari'ah governance provision for complex bills. For bills on Islamic finance, waqf, or zakat, include a section establishing a Shari'ah advisory board or requiring BDI certification of compliance. This provides ongoing Shari'ah oversight, not just one-time review.

9.4 The Role of the BDI in Legislative Review

The Bangsamoro Darul-Ifta, established under BAA 13, Secs. 52-56, is mandated to "promulgate *fatwa* (religious edicts) pertaining to the whole breadth of Islamic jurisprudence."[6] This mandate extends to legislative review — the BDI can provide authoritative guidance on whether a proposed bill aligns with Shari'ah principles.

Current practice: The BDI's legislative review role is not yet formalized in Parliament's rules of procedure. The Shari'ah checkpoint proposed in this chapter would formalize it.

Recommended process: 1. Committee staff conducts the checkpoint (Secs. 9.1-9.2) 2. If BDI consultation is needed, the committee chair transmits the bill to the BDI with specific questions 3. The BDI reviews and issues a written advisory — not a *fatwa* on the bill, but an advisory opinion on the Shari'ah dimensions identified 4. The committee incorporates the BDI advisory into the committee report 5. Parliament considers the committee report, including the Shari'ah analysis, during deliberations

What this is NOT: This is not a veto power. The BDI advises; Parliament legislates. The BDI's role is advisory — it provides the Shari'ah expertise that committee staff may lack. The legislative decision remains with Parliament.

9.5 Worked Example: Reviewing a Draft BAA

Scenario: The Committee on Trade and Industry receives a proposed "Bangsamoro Halal Industry Development Act." You are asked to conduct the Shari'ah checkpoint.

Step 1: Identify Shari'ah dimensions. - Sec. 3 defines "halal" using Islamic dietary standards — Shari'ah dimension: **halal certification** - Sec. 8 requires all food manufacturers in BARMM to obtain halal certification — Shari'ah dimension: **may affect non-Muslims** - Sec. 12 establishes a Halal Standards Board with BDI representation — Shari'ah dimension: **BDI institutional role** - Sec. 15 imposes penalties for false halal labeling — Shari'ah dimension: **regulatory enforcement**

Step 2: Map to enacted law. - PD 1083 does not cover halal regulation — this is a commercial matter "not provided for" under PD 1083 - BOL Art. X, Sec. 4 authorizes legislation on commercial matters — Parliament has jurisdiction - BAA 13 already establishes the Bangsamoro Halal Board under MTIT — check for overlap

Step 3: Constitutional check. - Sec. 8 (mandatory certification for all manufacturers) could apply Shari'ah standards to non-Muslim businesses — **constitutional issue**. Fix: limit mandatory certification to products marketed as halal; make it voluntary for others. - Sec. 15 (penalties) must satisfy due process — include notice, hearing, and proportional sanctions.

Step 4: BDI consultation. - The definition of "halal" in Sec. 3 needs BDI validation — halal standards are grounded in Islamic dietary law - The composition of the Halal Standards Board (Sec. 12) should include BDI as a mandatory member

Checkpoint result: The bill has a Shari'ah dimension, falls within Parliament's jurisdiction, and needs two fixes (Sec. 8 scope, Sec. 15 due process) plus BDI consultation on the halal definition.

9.6 Common Pitfalls

- **Skipping the checkpoint for "non-Islamic" bills.** A budget bill, an education bill, or a health bill may have Shari'ah dimensions even if the word "Shari'ah" does not appear in the title. Run the checkpoint on every bill.
- **Treating the BDI advisory as a veto.** The BDI advises; Parliament decides. If Parliament disagrees with the BDI advisory, it can proceed — but should explain its reasoning in the committee report.
- **Forgetting PD 1083 check.** Before drafting any Shari'ah-related provision, always check whether PD 1083 already covers the subject.
- **Applying Shari'ah obligations to non-Muslims without voluntary submission.** This is the most common constitutional error. Always include the voluntary submission clause when non-Muslims may be affected.
- **Leaving the implementing agency unclear.** Every Shari'ah-related provision needs a designated implementing agency. Do not assume the BDI handles everything — it has a specific mandate.

Quality Checklist

Before submitting a Shari'ah checkpoint report:

- ☐ Have you screened the bill against all conditions in the Sec. 9.1 table?
- ☐ Have you checked PD 1083 for overlap?
- ☐ Have you confirmed BOL Art. X, Sec. 4 jurisdiction?
- ☐ Have you applied the three constitutional constraints?
- ☐ Have you determined whether BDI consultation is needed?
- ☐ If non-Muslims may be affected, does the bill include voluntary submission?
- ☐ Have you identified the implementing agency for each Shari'ah-related provision?

Footnotes

1. The conditions are derived from BOL Art. X, Secs. 1-4, which define the scope of Shari'ah in BARMM governance. ↩
2. Rep. Act No. 11054, art. X, sec. 4. ↩
3. Rep. Act No. 11054, art. X, sec. 1. ↩
4. Rep. Act No. 11054, art. X, sec. 2. ↩
5. BAA No. 13 (Bangsamoro Administrative Code) establishes all ministries. The BDI is in Book III, Title III, Chapter 1, Section G (Secs. 52-56). MTIT and MFBM are established in their respective Book/Title sections. ↩
6. BAA No. 13, Book III, Title III, Chapter 1, Section G, sec. 54(a). ↩

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10

The Current Legislative Landscape

Chapters 8-9 gave you the strategy and the process. This chapter maps the **current state** — what Parliament has enacted, what is pending, and where the legislative gaps are. Use it as a baseline for any Shari'ah legislative agenda.

10.1 Foundational Codes with Embedded Islamic Principles

Three foundational BAAs embed Islamic principles within their broader governance frameworks:

BAA 13 — Bangsamoro Administrative Code The most important. Establishes the BDI (Secs. 52-56), the Bangsamoro Halal Board (under MTIT), and references Islamic institutions throughout the government structure. This is the institutional home for Shari'ah governance in BARMM.[1]

BAA 17 — Bangsamoro Civil Service Code Establishes the civil service framework. While not explicitly Shari'ah legislation, it governs the personnel system that staffs the BDI, Shari'ah courts, and other Islamic institutions.

BAA 18 — Bangsamoro Education Code Establishes the integrated education system including Islamic education and *madaris*. Directly addresses the intersection of secular and Islamic education within BARMM.[2]

BAA 20 — Dual Hijri-Gregorian Calendar Mandates dual calendar use across all BARMM ministries, agencies, and LGUs. Implemented through the BDI. A small but symbolic exercise of Parliament's authority to integrate Islamic practice into governance.[3]

10.2 Bills with Explicit Shari'ah Integration

Several proposed bills directly address Shari'ah subjects. As of the filing records available:

Bill	Subject	Shari'ah Dimension
PB 379	Death benefit and disability assistance	Provides for *tabarru'* (charitable donation) payments from investment profits

Note: The specific content of pending bills should be verified against the current parliamentary records. Bill numbers and content may change between filing and enactment. Check `parliament.bangsamoro.gov.ph` for the most current status.[4]

10.3 Bills with Implicit Shari'ah Alignment

Some bills do not explicitly reference Shari'ah but align with its principles:

- **Cooperative development legislation** — aligns with Islamic finance principles (*mudarabah*, *musharakah*) even when not explicitly framed as such
- **Social welfare legislation** — may align with *zakat* distribution principles
- **Environmental legislation** — aligns with *hifz al-mal* (protection of property) and stewardship (*khalifah*) principles
- **Health legislation** — aligns with *hifz al-nafs* (protection of life) and may involve halal pharmaceutical standards

These implicit alignments are opportunities for mainstreaming. When such bills pass through the Shari'ah checkpoint (Chapter 9), the implicit alignment can be made explicit through appropriate provisions.

10.4 Legislative Gaps: Where Parliament Has Not Yet Acted

BOL Art. X, Sec. 4 authorizes legislation in areas where no BAA yet exists. The major gaps:

Subject	BOL Basis	PD 1083 Status	Gap
Waqf (endowment)	Art. X, Sec. 4 (property law)	Basic property provisions only	No comprehensive waqf registry, administration, or regulatory framework
Zakat (alms)	Art. X, Sec. 4 (personal/family law)	Not covered	No formal zakat collection, distribution, or administration system
Islamic finance	Art. X, Sec. 4 (commercial matters)	Not covered	No legal framework for *mudarabah*, *musharakah*, *murabaha*, *sukuk*, or *takaful*
Halal regulation	Art. X, Sec. 4 (commercial matters)	Not covered	BAA 13 creates Halal Board but no comprehensive halal regulatory act
Islamic banking	Art. X, Sec. 4 (commercial matters)	Not covered	No BARMM-specific Islamic banking framework
Shari'ah legal profession	Art. X, Sec. 16	Not covered	Parliament authorized to create Shari'ah public assistance office, prosecution service, academy, and Office of the Jurisconsult — none yet created

Each of these gaps represents a legislative opportunity. Chapter 8's phased hybrid strategy recommends prioritizing waqf, zakat, Islamic finance, and halal in the near term.[5]

10.5 Comparative: How Other Autonomous Muslim Regions Legislate Shari'ah

BARMM is not the first autonomous Muslim region to face these legislative questions. Comparative models offer lessons.

Malaysia operates a dual legal system where each state enacts its own Islamic law. Key features: - State-level Shari'ah courts with jurisdiction over Muslims - Federal Islamic Financial Services Act 2013 for Islamic banking and finance - State-level *waqf* and *zakat* administration - **Lesson for BARMM:** Standalone Islamic finance legislation at the national level, combined with state-level personal law, provides comprehensive coverage

Aceh, Indonesia has the broadest Shari'ah authority among Indonesian provinces. Key features: - *Qanun* (regional regulations) on Islamic criminal law, including *ta'zir* - Zakat management through a dedicated government agency (Baitul Mal) - *Waqf* regulation under national law with local implementation - **Lesson for BARMM:** Dedicated zakat administration agency is effective; criminal law beyond *ta'zir* requires careful constitutional navigation

The former ARMM (1989-2019) operated under RA 6734 and RA 9054. Key features: - Limited legislative output on Shari'ah matters - PD 1083 continued as the primary Islamic law framework - No standalone Shari'ah legislation enacted - **Lesson for BARMM:** The BOL gives Parliament significantly broader Shari'ah legislative power than ARMM had — but this power must be actively exercised, or it will remain dormant as it did under ARMM

Common Pitfalls

- **Assuming PBs are enacted.** A pending bill is not law. Verify the status of any bill before citing it as authority.
- **Ignoring the ARMM precedent.** ARMM's failure to exercise its Shari'ah legislative authority is a cautionary tale for BARMM. Authority that is not exercised atrophies.
- **Copying foreign models without adaptation.** Malaysia and Aceh operate within different constitutional frameworks. Their models inform but cannot be directly transplanted.
- **Overlooking Art. X, Sec. 16 opportunities.** Parliament can create a Shari'ah public assistance office, prosecution service, academy, and Office of the Jurisconsult. None has been created yet — these are low-hanging legislative opportunities.

Quality Checklist

Before submitting a legislative landscape analysis:

- ☐ Have you verified the status of every bill cited (pending, enacted, withdrawn)?
- ☐ Have you cross-referenced BAA numbers against the enacted index?
- ☐ Have you identified all legislative gaps under Art. X, Sec. 4?
- ☐ Have you noted Art. X, Sec. 16 institutional creation authority?
- ☐ Have you drawn lessons from comparative models without assuming direct applicability?

Footnotes

1. BAA No. 13 (Bangsamoro Administrative Code), Book III, Title III, Chapter 1, Section G, secs. 52-56 (BDI); the Bangsamoro Halal Board is under Book VI, Title XIV, Chapter 7. ↩
2. BAA No. 18 (Bangsamoro Education Code). ↩
3. BAA No. 20 (Dual Use of Hijri and Gregorian Calendars). ↩
4. Parliamentary bill status should be verified against current records at parliament.bangsamoro.gov.ph. Bill numbers and content are subject to change. ↩
5. Rep. Act No. 11054, art. X, secs. 4 and 16. ↩

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11

Social Justice and Human Development

Every bill that touches health, education, labor, social welfare, or housing in BARMM has a Shari'ah dimension. Not because someone decided to add one — but because the BOL's social justice provisions operate in a region where three of the five *maqasid al-Shari'ah* directly govern how these services must be delivered: preservation of life (*hifz al-nafs*), preservation of intellect (*hifz al-'aql*), and preservation of lineage (*hifz al-nasl*).

This chapter walks through each Art. IX power, shows you where Shari'ah is already legislated, where the gaps are, and how to draft legislation that integrates Shari'ah principles without overreach.

11.1 Art. IX and the Shari'ah Imperative

BOL Article IX (Basic Rights) establishes BARMM's social development mandate through its social justice provisions. It covers health, education, labor, social services, housing, and human rights — the powers that directly shape daily life.[1]

What makes Art. IX different from the rest of the BOL is this: every power here serves at least one *maqsad* (objective) of Shari'ah. Health serves *hifz al-nafs*. Education serves *hifz al-'aql*. Social welfare serves *hifz al-nasl*. This is not an abstract theological point — it means that a health bill without halal compliance provisions, or an education bill that ignores the Madaris system, is not just incomplete governance. It is incomplete Shari'ah compliance.

Three integration models apply across these powers:

1. **Universal standard** — Shari'ah-informed protections apply to all workers, all facilities, all beneficiaries. No opt-out. BAA 82 (Labor Code) uses this model.
2. **Dual-track** — Both conventional and Shari'ah-compliant options exist side by side. The beneficiary chooses. Housing finance should use this model.
3. **Principled integration** — Shari'ah values (*maslahah*, *'adl*, *amanah*) guide policy design, but no specific Shari'ah compliance mechanism is mandated. Human rights legislation uses this model.

The right model depends on the power. This chapter tells you which one to use and why.

11.2 Health: Legislating Hifz al-Nafs

BOL basis: Art. IX, Sec. 22 (health mandate). Art. X, Sec. 4 (Shari'ah legislative authority).[2]

BAA 13 mandate: Sec. 3(j) — the Ministry of Health shall formulate "policies, guidelines, regulations as well as operating procedures congruent to Islamic teachings on health and sanitation."[3] This is the **most explicit Shari'ah integration mandate** for any ministry in the entire Administrative Code. No other ministry has language this direct.

What exists

Parliament has signaled intent but not yet enacted comprehensive legislation:

- **BTA Resolution 201** — urges ibadah-friendly hospital standards[4]
- **BTA Resolution 371** — calls for Muslim Filipino nutritional guidelines[5]
- **Proposed Bill 302** — ibadah-friendly hospital accreditation (pending)[6]
- **BAA 13 Sec. 3(j)** — the standing mandate for the MOH

What is missing

No comprehensive Bangsamoro Health Act exists. No halal pharmaceutical standards. No Shari'ah-compliant bioethics code for reproductive health, organ donation, or end-of-life care. No Darul-Ifta' *fatawa* on health facility standards.

How to legislate

Model: Dual-track — baseline mandatory + optional enhanced standard.

Baseline (all government health facilities): - Halal food service — no pork, no non-halal meat in hospital meals - Prayer space — at minimum, a designated clean area with *qiblah* direction - Modesty accommodation — female health workers available for female patients on request - Halal medicine screening — pharmacy reviews ingredient lists for non-halal components (gelatin capsules, alcohol-based solvents)

Enhanced (ibadah-friendly accreditation): - Dedicated *wudu'* facilities - Friday prayer arrangements for long-stay patients - Islamic end-of-life care protocol (*talqin*, body preparation) - Shari'ah-compliant family planning counseling alongside conventional options - On-call Islamic chaplaincy service

BDI referral triggers: Bioethical questions where *madhhab* positions diverge — assisted reproduction, organ transplantation from non-Muslim donors, brain death criteria. These require a *fatwa*, not staff discretion.

The bill structure: A health BAA should include a Shari'ah compliance chapter (similar to BAA 82's Book III for labor). This chapter sets baseline standards for all government facilities, creates the ibadah-friendly accreditation program, and establishes the BDI consultation mechanism for bioethical questions.

11.3 Education and the Madaris System

BOL basis: Art. IX, Sec. 18 — mandates the Madaris educational system and integration of Islamic and Arabic studies for Muslim pupils.[7] This is not optional — it is a constitutional-level requirement.

Existing legislation: BAA 18 (Bangsamoro Education Code) governs the integrated education system. BAA 13 establishes the MBHTE.[8]

The Shari'ah dimension

Education is one of the few areas where Shari'ah and the BOL give the same instruction: education is an obligation. The Qur'anic tradition of *talab al-'ilm* (seeking knowledge as a religious duty) mirrors Art. IX, Sec. 16's designation of education as BARMM's "top priority."[9]

The preservation of intellect (*hifz al-'aql*) — one of the five *maqasid* — makes education not just a government service but an Islamic obligation. A BARMM education system that fails to provide Islamic and Arabic studies is constitutionally deficient under the BOL *and* religiously deficient under Shari'ah.

What is missing

- **No standalone Madaris Development Act** with dedicated funding formula
- **No codified *waqf*-based education funding** — the traditional Islamic mechanism for sustaining educational institutions
- **Madaris teacher qualification standards** — the boundary between CSC and MBHTE jurisdiction needs legislative clarity
- **No comprehensive curriculum standards law** for Islamic studies in public schools

How to legislate

Model: Direct mandate — the Madaris system is constitutionally required, not optional.

A Madaris Development Act should: 1. Establish dedicated funding through a combination of general appropriations and *waqf* endowment income 2. Set teacher qualifications that recognize both secular education credentials and *'alim* (Islamic scholarship) credentials 3. Define curriculum standards for Islamic and Arabic studies integrated

into the K-12 system 4. Create an accreditation pathway for private Madaris to access government support 5. Include a Darul-Ifta' consultation clause for Islamic curriculum content questions

The *waqf* funding mechanism: A separate provision (or a standalone Bangsamoro Waqf Act) should codify *waqf* property — land, buildings, cash — as a perpetual endowment for Madaris. This mirrors the traditional Islamic model where wealthy patrons funded educational institutions through irrevocable charitable endowments. The *waqf* cannot be sold, gifted, or inherited — its income funds the institution in perpetuity.[10]

11.4 Labor: BAA 82 as the Mainstreaming Model

BOL basis: Art. IX, Sec. 10 (labor power). Art. X, Sec. 4 (Shari'ah legislative authority).[11]

Existing legislation: BAA 82 (Bangsamoro Labor and Employment Code), Book III, Secs. 106-113 — the first Philippine labor statute to codify Islamic workplace practices.[12]

What BAA 82 got right

BAA 82 is the best existing example of how to mainstream Shari'ah into sectoral legislation. Book III does not create a separate "Islamic labor track." It establishes universal standards that apply to **all employers and all workers** in BARMM — Muslim and non-Muslim. The protections are:

Section	Provision	What It Requires
Sec. 106	Religious clothing	Employers must respect Islamic dress for Muslim and non-Muslim workers
Sec. 107	Prayer space	Establishments with 20+ employees must endeavor to provide a prayer area
Sec. 108	Holy day prayer break	60 minutes compensable time for congregational prayer
Sec. 109	Call for prayer	Minimize workplace disturbances during *adhan*
Sec. 110	Pilgrimage leave	Up to 30 days unpaid leave for Hajj/Umrah, once per tenure, after 2 years of service
Sec. 111	Dietary accommodation	No worker may be compelled to handle food or substances against their beliefs
Sec. 113	Ramadhan observance	Employers must accommodate *Iftar* and *Suhoor* meal breaks

Why this model works for other sectors

BAA 82's approach succeeds because it: 1. **Does not create a parallel system** — one labor code for everyone 2. **Accommodates without imposing** — prayer space is provided, but prayer is not mandated 3. **Uses plain statutory language** — no Arabic

terms in operative provisions; *fiqh* concepts are translated into enforceable standards 4. **Applies to all employers** — public and private, Muslim and non-Muslim 5. **Includes enforcement** — MOLE has authority to inspect and penalize

When you draft a Shari'ah-informed bill in any sector, ask: *Can I use the BAA 82 model?* If the answer is yes — universal standard, no parallel track, accommodation without imposition — you have a tested template.

What is still needed

- **Implementing Rules and Regulations (IRR)** for Book III — MOLE has not yet issued these
- **Enforcement mechanism** — how inspections will verify prayer space compliance, dietary accommodation
- **Clarity on dual-registered establishments** — businesses registered under both BARMM and national systems

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11.5 Social Welfare, Housing, and Humanitarian Services

Social Welfare

BOL basis: Art. V, Sec. 2(vv) (social services). Art. X, Sec. 4 (Shari'ah jurisdiction on family/property matters).[13]

PD 1083 intersection: Art. 70-72 — guardianship (*walaya*) of Muslim minors falls under Shari'ah court jurisdiction. This means any social welfare legislation on child placement, foster care, or guardianship **must not conflict** with PD 1083's guardianship provisions.[14]

Key gap: *Kafala* legislation. Islamic fostering (*kafala*) is distinct from Western adoption. Under *kafala*, the child retains their biological family name and inheritance rights. The foster family provides care but does not sever the child's legal ties to their biological parents. No BARMM legislation codifies *kafala*. A Bangsamoro Social Welfare Act should include a *kafala* chapter alongside conventional foster care — the dual-track model.[15]

Key gap: *Zakat* as welfare funding. The eight *zakat* recipient categories (*asnaf*) specified in the Qur'an overlap significantly with social welfare beneficiaries — the poor (*fuqara'*), the needy (*masakin*), debtors (*gharimin*), and wayfarers (*ibn al-sabil*). No Bangsamoro Zakat Act exists to formalize this as a supplementary welfare funding stream.[16]

Housing

BOL basis: Art. V, Sec. 2(cc) (housing). Art. X, Sec. 4 (commercial matters not in PD 1083).[17]

The central problem: Conventional mortgages charge interest (*riba*). Interest is prohibited under Shari'ah. A government housing program that offers **only** interest-bearing finance excludes observant Muslims — or forces them to choose between housing and religious compliance. This is not a theoretical concern. Shelter is a necessity (*daruriyyat*) under the *maqasid*.[18]

How to legislate: Dual-track housing finance.

Track	Instrument	How It Works
Conventional	Mortgage	Bank lends money, borrower repays with interest

Track	Instrument	How It Works
Shari'ah	*Murabaha*	Bank buys the property, sells it to the beneficiary at cost + disclosed markup (installment sale, no interest)
Shari'ah	*Ijarah muntahia bi al-tamlik*	Lease-to-own: beneficiary rents the property, ownership transfers at end of lease term
Shari'ah	*Musharakah mutanaqisah*	Diminishing partnership: bank and beneficiary co-own the property; beneficiary gradually buys out the bank's share

A Bangsamoro Housing Act should mandate that all government housing programs offer at least one Shari'ah-compliant financing option alongside conventional options. The beneficiary chooses. Darul-Ifta' certifies which financing instruments qualify as Shari'ah-compliant.

Humanitarian Services

BOL basis: Art. V, Sec. 2(dd) (humanitarian services). BAA 62 (IDP Protection Act).[19]

The precedent: BAA 62 is the only enacted BAA that expressly incorporates the *maqasid al-Shari'ah* as a binding legal framework. Section 2 states that the law is "guided by the principles and objectives of Shari'ah, including the preservation of life, intellect, faith, posterity, and property."[20] This makes BAA 62 a template for how to integrate Shari'ah into any legislation — cite the *maqasid* in the Declaration of Policy, then let specific provisions implement each objective.

What is needed: A Bangsamoro Disaster Risk Reduction and Management (DRRM) enabling law that follows the BAA 62 model — *maqasid* in the policy declaration, practical accommodations in service delivery (halal relief food, gender-appropriate evacuation centers, prayer space in shelters), and *zakat/sadaqah* as supplementary emergency funding.

11.6 Human Rights through an Islamic Lens

BOL basis: Art. IX, Secs. 6-7 (rights guarantees). BAA 4 (Bangsamoro Human Rights Commission). BAA 62 (IDP Act — *maqasid* integration precedent). BAA 89 (Transitional Justice and Reconciliation).[21]

Model: Principled integration — human rights are universal. The Shari'ah dimension enriches, not restricts.

The five *maqasid al-Shari'ah* map directly onto international human rights:

Maqsad	Human Right Equivalent
Hifz al-nafs (life)	Right to life, right to health
Hifz al-'aql (intellect)	Right to education, freedom of thought
Hifz al-din (faith)	Freedom of religion
Hifz al-nasl (lineage)	Family rights, children's rights
Hifz al-mal (property)	Property rights, economic rights

Why this matters for legislation: When drafting human rights legislation, citing the *maqasid* alongside international standards does two things. First, it gives Shari'ah-grounded legitimacy to the law in a majority-Muslim region. Second, it shows that human rights protections are not "Western imports" but are rooted in Islamic jurisprudence.

BAA 62 demonstrated this approach. BAA 89 (Transitional Justice) builds on it by using Islamic reconciliation concepts (*sulh* and *islah*) alongside transitional justice mechanisms.[22]

What is needed: No standalone BARMM anti-discrimination act exists. The BHRC-CHR operational relationship needs MOA formalization. Future human rights legislation should follow the BAA 62 *maqasid* model.

11.7 Worked Example: Drafting an Ibadah-Friendly Hospital Accreditation BAA

Scenario: A Member of Parliament asks you to prepare a draft bill establishing ibadah-friendly hospital accreditation standards for BARMM government hospitals.

Step 1: Shari'ah Checkpoint (Chapter 9) - Does the subject involve personal law for Muslims? No. - Does it involve health services? **Yes** — *hifz al-nafs* applies. - Does it involve halal certification or regulation? **Yes** — halal food, halal medicine. - Does the bill affect non-Muslims? **Yes** — hospital staff and some patients may be non-Muslim. Include voluntary compliance for private facilities.

Step 2: BOL basis - Art. IX, Sec. 22 — health provision mandate - Art. X, Sec. 4 — Shari'ah legislative authority - BAA 13 Sec. 3(j) — MOH's Islamic teaching mandate

Step 3: PD 1083 check - Does PD 1083 cover hospital standards? **No.** PD 1083 covers personal status, not health regulation. No conflict possible.

Step 4: Draft key provisions - **Sec. 1 (Declaration of Policy):** The Bangsamoro Government recognizes that access to health care is a fundamental right consistent with the preservation of life (*hifz al-nafs*), a core objective of Islamic law and the Bangsamoro Organic Law. - **Sec. 5 (Baseline Standards):** All BARMM government hospitals shall provide: halal food service, prayer space with *qiblah* direction, modesty accommodation, and halal medicine screening. - **Sec. 8 (Enhanced Accreditation):** Hospitals meeting additional standards — *wudu'* facilities, Islamic chaplaincy, end-of-life care protocol — may apply for ibadah-friendly accreditation. - **Sec. 12 (BDI Consultation):** The MOH shall consult the Darul-Ifta' on bioethical questions arising from the implementation of this Act.

Step 5: Shari'ah Compliance Flags - ☑ Shari'ah dimension identified (health, *hifz al-nafs*) - ☑ BOL basis confirmed (Art. IX Sec. 22, Art. X Sec. 4) - ☑ PD 1083 conflict check: No conflict - ☑ BDI consultation clause included (Sec. 12) - ☑ Non-Muslim participation: Voluntary for private facilities

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11.8 Common Pitfalls

- **Assuming all Art. IX powers need the same integration model.** Health needs dual-track (baseline + enhanced). Labor needs universal standard. Human rights needs principled integration. One size does not fit all.
- **Ignoring BAA 13 Sec. 3(j).** This is the strongest existing Shari'ah mandate for any ministry. A health bill that does not reference it misses the legal foundation already laid by Parliament.
- **Drafting *kafala* provisions that conflict with PD 1083 guardianship.** PD 1083 Art. 70-72 governs guardianship of Muslim minors. Any *kafala* legislation must supplement, not contradict, these provisions.
- **Presenting Shari'ah-compliant housing finance as the only option.** The dual-track model means beneficiaries choose. Mandating only Shari'ah-compliant finance would exclude non-Muslim residents and violate the BOL's equal protection guarantees.
- **Forgetting that BAA 82 is already enacted.** When citing Islamic workplace practices, cite BAA 82 Book III — not *fiqh* concepts. The *fiqh* concepts have been codified into positive law. Cite the law.
- **Treating human rights as a "Western" framework incompatible with Shari'ah.** The five *maqasid* predate and align with international human rights standards. BAA 62 proved that Shari'ah integration *strengthens* human rights legislation, not weakens it.

Quality Checklist

Before submitting any work product involving Art. IX social justice powers:

- ☐ Have you identified which *maqasid* objectives apply to your subject?
- ☐ Have you checked BAA 13 Sec. 3(j) for the health Shari'ah mandate?
- ☐ Have you verified whether PD 1083 covers any aspect of your subject?
- ☐ Have you chosen the right integration model — universal, dual-track, or principled?
- ☐ Have you included a BDI consultation clause for questions requiring *fatwa*?
- ☐ If drafting housing finance provisions, have you offered a Shari'ah-compliant alternative?
- ☐ If drafting child welfare provisions, have you checked PD 1083 Art. 70-72 on guardianship?
- ☐ Have you cited BAA 82 Book III (not just *fiqh* concepts) when referencing Islamic workplace practices?
- ☐ Have you followed the BAA 62 *maqasid* integration model for policy declarations?

Footnotes

1. Rep. Act No. 11054, art. IX. ↩
2. Rep. Act No. 11054, art. IX, sec. 22; art. X, sec. 4. ↩
3. BAA No. 13 (Bangsamoro Administrative Code), sec. 3(j). ↩
4. BTA Resolution No. 201. ↩
5. BTA Resolution No. 371. ↩
6. Proposed Bill No. 302 (Ibadah-Friendly Hospital Accreditation). ↩
7. Rep. Act No. 11054, art. IX, sec. 18. ↩
8. BAA No. 18 (Bangsamoro Education Code); BAA No. 13 (Bangsamoro Administrative Code). ↩
9. Rep. Act No. 11054, art. IX, sec. 16. ↩
10. The *waqf* concept is recognized across all four Sunni schools of jurisprudence. BOL Art. X, Sec. 4 authorizes Parliament to legislate on property law matters, which includes *waqf*. ↩
11. Rep. Act No. 11054, art. IX, sec. 10; art. X, sec. 4. ↩
12. BAA No. 82 (Bangsamoro Labor and Employment Code), Book III, secs. 106-113. ↩
13. Rep. Act No. 11054, art. V, sec. 2(vv); art. X, sec. 4. ↩
14. Pres. Decree No. 1083, arts. 70-72. ↩
15. *Kafala* is recognized across all four Sunni schools. It preserves the child's lineage (*nasab*) while providing care — distinct from legal adoption which severs biological family ties. ↩
16. Qur'an, Surah At-Tawbah (9):60. The eight categories are: the poor (*fuqara'*), the needy (*masakin*), *zakat* administrators, those whose hearts are to be reconciled, slaves, debtors (*gharimin*), in the cause of Allah, and wayfarers (*ibn al-sabil*). ↩
17. Rep. Act No. 11054, art. V, sec. 2(cc); art. X, sec. 4. ↩
18. *Daruriyyat* (necessities) is the highest tier of the *maqasid* classification. Shelter falls under *hifz al-nafs* (preservation of life) and *hifz al-mal* (preservation of property). ↩
19. Rep. Act No. 11054, art. V, sec. 2(dd); BAA No. 62 (IDP Protection and Rights Act). ↩
20. BAA No. 62, sec. 2. ↩
21. Rep. Act No. 11054, art. IX, secs. 6-7; BAA No. 4 (Bangsamoro Human Rights Commission); BAA No. 62; BAA No. 89 (Bangsamoro Transitional Justice and Reconciliation Program). ↩
22. BAA No. 89. *Sulh* (settlement) and *islah* (reform/reconciliation) are Islamic dispute resolution mechanisms recognized in Shari'ah jurisprudence. ↩

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12

Shari'ah Courts, Worship, and Identity

BOL Article X exists because the Bangsamoro justice system is not just a court system — it is a constitutional commitment to administer justice "in consonance with Shari'ah."[1] No other article in the BOL carries this weight. Art. X creates the Shari'ah courts, defines Parliament's power to enact Islamic law, recognizes traditional justice, and authorizes alternative dispute resolution — all within the framework of the Philippine Constitution and the Supreme Court's supervisory authority.

This chapter covers the powers that are *directly and inherently Islamic* — the ones where Shari'ah is not an optional overlay but the defining feature. If Chapter 11 showed you how to mainstream Shari'ah into social services, this chapter shows you the powers where Shari'ah *is* the service.

12.1 Art. X: The Shari'ah-Dedicated Article

Article X has 20 sections. Every practitioner working with Shari'ah in BARMM should know what each section covers. Chapter 2 mapped the full article; Chapter 4 detailed the court system. This chapter focuses on what remains to be *legislated* — the unfulfilled mandates.

Five major legislative gaps in Art. X:

1. **Traditional Justice Act** — Art. X, Sec. 17 directs Parliament to enact laws promoting traditional/tribal justice for indigenous peoples. No legislation exists.[2]
2. **ADR Legislation** — Art. X, Sec. 20 authorizes Parliament to legislate conciliation and mediation mechanisms for Shari'ah courts. No legislation exists.[3]
3. **Shari'ah Prosecution Service** — Art. X, Sec. 16 authorizes creation of a public assistance office, prosecution service, and academy. None have been created.[4]
4. **Shari'ah Academy** — Same section. No academy exists for training Shari'ah court personnel and practitioners.[5]
5. **Shari'ah Commercial and Civil Code** — Art. X, Sec. 4 gives Parliament power to legislate on commercial matters, civil actions not covered by PD 1083, and *ta'zir* offenses. No comprehensive legislation has been enacted under this power.[6]

These are not hypothetical — they are constitutional mandates waiting for legislation. Bills have been filed for some (PB 170, 173, 174 for barangay justice; PB 304 for Shari'ah scholarship; PB 363 for a Shari'ah academy), but none have been enacted.

How to legislate Art. X mandates

Model: Mandatory Shari'ah compliance. These are inherently Islamic functions. A Shari'ah prosecution service that does not comply with Shari'ah procedural standards is a contradiction. A traditional justice framework that contradicts established *fiqh* on the matters it adjudicates fails its constitutional purpose.

For each unfulfilled mandate: - Cite the specific Art. X section as the constitutional basis - Include a Darul-Ifta' consultation clause for interpretive questions - Ensure Supreme Court supervisory authority is preserved (Art. X, Sec. 2) - Define the relationship with PD 1083 (supplement, not conflict)

12.2 Hajj and Umrah: Legislating a Religious Obligation

BOL basis: Art. V, Sec. 2(aa) (enumerated power); Art. VII, Sec. 42 (BPA creation).[7]

Hajj is the only enumerated power in Art. V, Sec. 2 that is *directly and exclusively a religious obligation*. It is the Fifth Pillar of Islam — obligatory once in a lifetime for every Muslim who meets the condition of *istita'ah* (financial and physical capacity).[8]

This makes Hajj fundamentally different from every other BOL power. Health, education, labor — these are government services that have Shari'ah dimensions. Hajj *is* Shari'ah. The government does not create the obligation; it facilitates its fulfillment.

What exists

- **BAA 13, Secs. 43-45** — establishes the Bangsamoro Pilgrimage Authority (BPA) with mandate to coordinate with NCMF and manage Saudi engagement (with Chief Minister approval)[9]
- **BAA 85, Ch. XXV** — allocates P200M for the Hajj Financing Program[10]
- **PB 282** — proposes 30-day paid Hajj leave (pending)

What is missing

- **No comprehensive Pilgrimage Act** — the BPA operates under BAA 13 mandate only; no standalone law defines eligibility criteria, pilgrim rights, or operator accreditation
- **No Shari'ah-compliance framework for Hajj financing** — the P200M program operates without statutory requirements that financing must be *riba*-free
- **No Pilgrim Bill of Rights** — consumer protection for pilgrims (refund rules, service standards, complaint mechanisms)
- **No *awqaf* management act** — endowment properties that could fund pilgrimage assistance lack a legislative framework

How to legislate

Model: Mandatory Shari'ah compliance — because Hajj is a purely Islamic obligation.

A Bangsamoro Pilgrimage Act should include:

1. **Shari'ah-compliant financing** — All government Hajj financing must use *qard hasan* (interest-free loan) or outright grants. Interest-bearing loans for Hajj violate the purpose of the pilgrimage.[11]
2. **Sheikh accreditation** — Travel companions and religious guides must be certified by the Darul-Ifta' as qualified to lead rituals
3. **BPA regulation review** — All BPA administrative orders subject to Shari'ah review by the Darul-Ifta' before promulgation
4. **Pilgrim protection** — Service standards, complaint mechanisms, refund rules for cancelled or substandard pilgrimages
5. ***Awqaf* integration** — Endowment income dedicated to subsidizing pilgrimage for those who meet *istita'ah* financially but need partial assistance

BDI referral triggers: Disputed *istita'ah* criteria (does disability waive the physical requirement?), group pilgrimage financing structures, *awqaf* investment policy for pilgrimage funds.

12.3 Culture, Language, and Islamic Heritage

BOL basis: Art. IX, Secs. 24-26 (BCPCH mandate); Art. V, Sec. 2(p) (culture and language power).[12]

Bangsamoro cultural heritage is inseparable from Islamic heritage. The Sultanates of Sulu and Maguindanao were Islamic polities. The *okir* decorative tradition has Islamic geometric roots. Arabic-script manuscripts (*kirim*) document centuries of Islamic scholarship. Mosque architecture defines the built heritage of the region.

The Shari'ah dimension

Three *maqasid* apply: - ***Hifz al-din*** (preservation of faith) — mosques, religious manuscripts, Sultanate records that document Islamic governance are religious heritage, not just cultural artifacts - ***Hifz al-nasl*** (preservation of lineage) — Sultanate genealogies (*tarsila*) and ethno-linguistic identity preservation connect to the Islamic concept of preserving lineage - **Arabic as liturgical language** — language preservation supports Qur'anic literacy and religious practice

What exists

- **BAA 20** — dual Hijri-Gregorian calendar (a symbolic but significant Shari'ah-informed cultural law)[13]
- **BAA 39** — Bangsamoro regional holidays (reflects Islamic cultural dimension)[14]
- **BAA 60 and BAA 61** — site-specific heritage declarations that include the Darul-Ifta' as a member of heritage management boards (a precedent for Shari'ah institutional involvement in cultural governance)[15]
- **BAA 13, Secs. 46-51** — BCPCH mandate and functions[16]

What is missing

- **No comprehensive cultural heritage code** — PB 204 is pending
- **No language preservation act** — Arabic and regional languages lack legislative protection
- **No *waqf*-based cultural endowment** — the traditional Islamic mechanism for funding cultural institutions

- **Art. IX, Sec. 26 site transfer** — the mechanism for transferring national cultural sites to Bangsamoro control is uncodified

How to legislate

Model: Principled integration — Islamic heritage preservation guided by Shari'ah values without mandating specific Shari'ah compliance for all cultural activities.

A Bangsamoro Cultural Heritage Code should: 1. Create heritage categories that distinguish Islamic heritage (mosques, *kirim* manuscripts, Sultanate sites) from indigenous and colonial-era heritage — each with appropriate conservation standards 2. Establish a *waqf*-based cultural endowment fund as an optional financing mechanism alongside government appropriations 3. Include Darul-Ifta' consultation for sacred sites and Islamic heritage artifacts (following the BAA 60/61 precedent) 4. Require culturally appropriate conservation standards — for example, *halal* considerations in heritage site food services, gender-appropriate access to sacred spaces

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12.4 Customary Laws: The Shari'ah-Adat Interface

BOL basis: Art. X, Sec. 1 (justice in consonance with Shari'ah, traditional/tribal laws); Art. X, Secs. 17-18 (traditional justice); Art. IX, Sec. 4 (customary law adoption).[17]

This is the most complex normative intersection in BARMM. Three legal systems coexist: statutory law (BAAs, national law), Shari'ah (PD 1083, Art. X), and customary law (*adat*). The BOL recognizes all three — but does not provide a comprehensive framework for when they conflict.

The Shari'ah-adat relationship

Islamic jurisprudence recognizes custom (*'urf*) as a subsidiary source of law under the maxim *"al-'adah muhakkamah"* (custom is authoritative). But this recognition is conditional — custom is valid **only if it does not contradict established Shari'ah**.[18]

PD 1083, Art. 3 sets the precedent: "customary law shall supplement the provisions of this Code." This means customary law fills gaps in PD 1083 but cannot override it.[19]

The critical question

What happens when *adat* and Shari'ah diverge? Three scenarios:

Scenario	Example	Resolution
Adat consistent with Shari'ah	Elder-mediated dispute settlement (*sulh*)	*Adat* has full force — recognized as valid *'urf*
Adat neutral (Shari'ah silent)	Land use customs, fishing rights traditions	*Adat* applies — Shari'ah does not prohibit what it does not address
Adat contradicts Shari'ah	Customary inheritance rules that override Qur'anic shares	Shari'ah prevails for Muslim parties; Darul-Ifta' or Shari'ah court resolves

What is missing

- **No comprehensive customary law codification** — Bangsamoro Muslim *adat* has no dedicated legislative framework
- **Art. X, Secs. 17-18 mandate unfulfilled** — no traditional justice system legislation enacted

- **No systematic documentation** of unwritten customs
- **No reconciliation mechanism** for when *adat* and Shari'ah diverge

How to legislate

Two-track approach:

1. **Bangsamoro Muslim *adat*** — customs undergo Shari'ah compatibility review. Compatible customs receive formal recognition. Incompatible customs are either reformed or given limited application (e.g., only when all parties consent and no Shari'ah right is prejudiced).
2. **Non-Moro IP customary law** — governed by IPRA (RA 8371) standards, not Shari'ah. The BOL's non-diminution clause (Art. IX, Sec. 3) protects IP rights. Shari'ah compliance is **not applicable** to non-Muslim IP communities.[20]

A Traditional Justice Act should: - Codify the *'urf* recognition principle (valid if not contradicting Shari'ah) - Establish a reconciliation panel for Shari'ah-*adat* conflicts (composed of *ulama* and *adat* leaders) - Document customs through a systematic program (oral history collection, community validation) - Integrate with the barangay justice system (PB 170, 173, 174 address this)

12.5 Indigenous Peoples' Rights and Shari'ah

BOL basis: Art. V, Sec. 2(ff); Art. X, Sec. 17-18 (traditional justice for IPs); BAA 64 (MIPA).[21]

Most indigenous cultural communities (ICCs/IPs) in BARMM are non-Muslim — Teduray, Lambangian, Dulangan Manobo, B'laan, Higaonon. Shari'ah does not directly govern their matters. The BOL treats IP justice as a **separate track** from Shari'ah justice.[22]

The Shari'ah dimension

Indirect but important. In a majority-Muslim autonomous region, non-Muslim IPs need assurance that their rights are protected. Islamic principles provide that assurance:

- ***'Adl*** (justice) — extends to all regardless of religion. Protecting non-Muslim IP rights in a Muslim-majority region is an exercise of *'adl*.[23]
- ***Amanah*** (trust) — IP communal land stewardship mirrors the Islamic *khalifah* concept
- ***Maslahah*** (public interest) — IP welfare serves the common good of the entire region

What exists

- **BAA 64** — creates MIPA with FIDO, IPs Council, and Regional Adjudicators Bureau. Does **not** mandate Shari'ah compliance for any IP institution or process.[24]
- **RA 8371 (IPRA)** — provides the constitutional floor per Art. IX, Sec. 3 non-diminution clause

What is needed

- NCIP-MIPA jurisdictional boundary definition
- Tribal University Charter (Art. IX, Sec. 19 unfulfilled — PB 274 pending)
- Revenue-sharing mechanisms (BAA 64, Sec. 77 IRR) operationalization

How to legislate

Model: Principled — legislation guided by Islamic values (*'adl*, *maslahah*, *amanah*) without requiring IPs to comply with Islamic law. Where Moro and IP communities share territory, mediation of overlapping land claims should draw on both customary law and Shari'ah property principles — but the IP community is never subject to Shari'ah jurisdiction unless they voluntarily submit (Art. X, Sec. 1).

12.6 Worked Example: Drafting a Cultural Heritage Preservation BAA

Scenario: The Committee on Culture and Heritage asks you to prepare a committee report on PB 204 (Bangsamoro Cultural Heritage Code). You need to assess the bill's Shari'ah dimension.

Step 1: Shari'ah Checkpoint (Chapter 9) - Does the subject involve Islamic heritage? **Yes** — mosques, *kirim* manuscripts, Sultanate sites - Does the subject involve the BDI or religious authorities? **Yes** — Darul-Ifta' should review sacred site designations (BAA 60/61 precedent) - Does the bill affect non-Muslims? **Yes** — heritage code covers all Bangsamoro heritage, including non-Moro IP sites

Step 2: BOL basis - Art. IX, Secs. 24-26 — BCPCH mandate - Art. X, Sec. 4 — Shari'ah legislative authority (property, including *waqf* properties)

Step 3: PD 1083 check - Does PD 1083 cover cultural heritage? **No.** PD 1083 covers personal status, not heritage preservation. *Waqf* intersects at Art. 110 et seq. (personal property only — not institutional).

Step 4: Shari'ah provisions to recommend - **Heritage classification** — add "Islamic heritage" as a distinct category alongside "indigenous heritage" and "colonial-era heritage" - **Sacred site protections** — mosques and religious schools should have enhanced conservation standards, including Darul-Ifta' consultation on any modification - ***Waqf* endowment fund** — optional mechanism for cultural funding (perpetuity principle) - **Curatorial ethics** — Islamic artifacts require culturally appropriate handling (e.g., Qur'anic manuscripts should not be displayed with non-Islamic religious texts in ways that could be seen as disrespectful)

Step 5: Shari'ah Compliance Flags - ☑ Shari'ah dimension identified (Islamic heritage, *waqf*) - ☑ BOL basis confirmed (Art. IX Secs. 24-26, Art. X Sec. 4) - ☑ PD 1083 conflict check: No conflict - ☑ BDI consultation: Recommended for sacred sites (BAA 60/61 precedent) - ☑ Non-Muslim inclusion: IP heritage preserved separately, no Shari'ah requirements for IP sites

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12.7 Common Pitfalls

- **Treating Art. X unfulfilled mandates as optional.** They are constitutional requirements. A Traditional Justice Act, an ADR framework, a prosecution service — these are not policy choices. The BOL requires them.
- **Confusing Hajj administration with Hajj itself.** The government does not perform or validate the pilgrimage. It facilitates travel, protects pilgrims, and ensures Shari'ah-compliant financing. The religious obligation belongs to the individual, not the state.
- **Applying Shari'ah to non-Moro IP customary law.** The BOL creates separate tracks. Art. X, Secs. 17-18 address traditional justice for IPs under their own customary systems — not under Shari'ah. BAA 64 confirms this separation.
- **Ignoring the *'urf* compatibility test for Bangsamoro *adat*.** Not all customs are automatically valid under Shari'ah. The maxim *"al-'adah muhakkamah"* (custom is authoritative) is conditional — only customs that do not contradict established Shari'ah receive recognition.
- **Presenting *fiqh* principles as enacted law.** *Hifz al-din*, *ta'aruf*, and *ummah* are Islamic jurisprudential concepts. They inform legislative purpose but are not codified in any BARMM law. Always distinguish between *fiqh* concepts and enacted law.
- **Forgetting the Supreme Court's supervisory authority.** Art. X, Sec. 2 places Shari'ah courts within the Philippine judicial system under SC supervision. No legislation can diminish this authority.

Quality Checklist

Before submitting any work product involving Art. X powers:

- ☐ Have you identified the specific Art. X section that authorizes the legislation?
- ☐ Have you confirmed Supreme Court supervisory authority is preserved?
- ☐ If legislating Hajj matters, is all financing *riba*-free (*qard hasan* or grant)?
- ☐ If codifying customary laws, have you applied the *'urf* compatibility test?
- ☐ If affecting IPs, have you confirmed that Shari'ah compliance is NOT required for non-Muslim communities?
- ☐ Have you distinguished between *fiqh* concepts and enacted BARMM law?
- ☐ Have you included a Darul-Ifta' consultation clause for interpretive questions?
- ☐ Have you checked whether PD 1083 already covers the subject?
- ☐ Have you used "Shari'ah High Court" — not "Shari'ah Appellate Court"?

Footnotes

1. Rep. Act No. 11054, art. X, sec. 1. ↩
2. Rep. Act No. 11054, art. X, sec. 17. ↩
3. Rep. Act No. 11054, art. X, sec. 20. ↩
4. Rep. Act No. 11054, art. X, sec. 16. ↩
5. *Id.* ↩
6. Rep. Act No. 11054, art. X, sec. 4. ↩
7. Rep. Act No. 11054, art. V, sec. 2(aa); art. VII, sec. 42. ↩
8. Hajj is the fifth pillar of Islam, obligatory for every Muslim who meets *istita'ah* (capacity) — financial means, physical ability, and safe travel conditions. ↩
9. BAA No. 13 (Bangsamoro Administrative Code), Book VI, Title I, Chapter 3, secs. 43-45. ↩
10. BAA No. 85 (General Appropriations Act FY 2026), Chapter XXV. ↩
11. *Qard hasan* (benevolent loan) is the only Shari'ah-compliant lending structure — no interest, no markup on the principal. The lender may not benefit financially from the loan. ↩
12. Rep. Act No. 11054, art. IX, secs. 24-26; art. V, sec. 2(p). ↩
13. BAA No. 20 (Dual Use of Hijri and Gregorian Calendars). ↩
14. BAA No. 39 (Bangsamoro Regional Holidays). ↩
15. BAA No. 60 (Sheikh Salamat Hashim and Mimbantas Memorial Site); BAA No. 61 (Camp Abubakar Memorial Marker and Eco-Park). ↩
16. BAA No. 13, Book V, Title XVI, Chapter 4, secs. 46-51. ↩
17. Rep. Act No. 11054, art. X, secs. 1, 17-18; art. IX, sec. 4. ↩
18. The maxim *"al-'adah muhakkamah"* is one of the five universal legal maxims (*al-qawa'id al-kulliyyah*) in Islamic jurisprudence. It appears in the Mejelle (Ottoman civil code), Art. 36. ↩
19. Pres. Decree No. 1083, art. 3. ↩
20. Rep. Act No. 11054, art. IX, sec. 3 (non-diminution of IP rights); Rep. Act No. 8371 (Indigenous Peoples' Rights Act of 1997). ↩
21. Rep. Act No. 11054, art. V, sec. 2(ff); art. X, secs. 17-18; BAA No. 64 (Indigenous Peoples' Affairs). ↩
22. Rep. Act No. 11054, art. X, sec. 17 — Parliament shall enact laws to promote traditional/tribal justice "appropriate for the indigenous peoples." ↩
23. *'Adl* (justice) is considered a foundational attribute of governance in Islamic jurisprudence. The Qur'an commands justice to all, including non-Muslims: "Be just; that is nearer to righteousness" (Surah Al-Ma'idah 5:8). ↩

24. BAA No. 64, as enacted. MIPA operates under IPRA (RA 8371) standards, not Shari'ah. ↩

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13

Economy, Finance, and Natural Resources

Two BOL articles govern BARMM's economic powers. Article XII establishes fiscal autonomy — the block grant, revenue sources, borrowing authority. Article XIII covers the regional economy: Islamic banking, cooperatives, halal development, agriculture, fisheries, environment, mining, trade, tourism, and economic zones. Together, they define how BARMM generates and manages wealth.

The Shari'ah dimension here is not abstract. Art. XIII, Sec. 31 directs the Bangsamoro Government to encourage banks established "in accordance with the principles of the Islamic banking system." Art. XIII, Sec. 30 expressly mandates halal development legislation. Art. XIII, Sec. 32 directs Parliament to enact laws promoting Islamic finance, including a Shari'ah Supervisory Board and tax neutrality. These are constitutional directives that remain largely unfulfilled.

This chapter covers the full economic landscape: from Islamic banking and halal economy to agriculture, natural resources, trade, and environmental stewardship.

13.1 Art. XII-XIII and the Economic Shari'ah Dimension

The governing maqsad: *Hifz al-mal* — preservation of wealth and property. Every economic power in this chapter serves this objective. But *hifz al-mal* in Islamic jurisprudence is not unlimited accumulation — it means wealth acquired through permissible means, used productively, and distributed justly.[1]

Three prohibitions shape all Islamic commercial law: 1. ***Riba*** (interest/usury) — no profit from lending money itself; profit must come from trade, services, or shared risk[2] 2. ***Gharar*** (excessive uncertainty) — contracts must have clear terms; no speculative or ambiguous transactions 3. ***Maysir*** (gambling/speculation) — no zero-sum games where one party's gain is another's loss without productive activity

The recurring principle: *Maslahah* (public interest) appears in 14 of the 15 economic powers covered in this chapter. *Amanah* (trust/stewardship) appears in 12. These two principles justify government regulation of commerce — the state acts as trustee of the public good.

13.2 Islamic Banking and Finance

BOL basis: Art. XIII, Sec. 31 (Islamic banking system); Sec. 32 (Shari'ah-compliant institutions, Shari'ah Supervisory Board, tax neutrality); Sec. 34 (Board functions).[3]

This is the most Shari'ah-intensive economic power. Islamic banking *is* Shari'ah-based finance — without Shari'ah compliance, there is no Islamic banking. The BOL devotes **four consecutive sections** to this power — more than any other single economic subject.

What the BOL mandates

Art. XIII, Secs. 32 and 34 contemplate three things that do not yet exist: 1. **Shari'ah-compliant financial institutions** — not just Al-Amanah Islamic Investment Bank (RA 6848) but a broader framework 2. **Bangsamoro Shari'ah Supervisory Board** — to monitor compliance, certify products, and issue *fatawa* on Islamic finance 3. **Tax neutrality** — Islamic finance instruments must not bear higher tax burdens than conventional equivalents (e.g., *murabaha* involves two property transfers, each potentially taxable; conventional mortgage involves one)[4]

Permissible instruments

Instrument	Arabic	Structure	Risk Sharing
Mudarabah	مضاربة	One provides capital, other provides labor; profits shared by ratio	Loss borne by capital provider
Musharakah	مشاركة	All contribute capital and management; profits per agreement	Loss per capital ratio
Murabaha	مرابحة	Seller discloses cost + agreed markup; sale, not loan	Buyer bears post-sale risk
Ijarah	إجارة	Lease with option to purchase at end of term	Owner bears maintenance risk
Istisnaa	استصناع	Manufacturing/construction contract; payment in stages	Shared per contract terms
Sukuk	صكوك	Asset-backed certificates; returns from underlying asset	Shared with certificate holders

Instrument	Arabic	Structure	Risk Sharing
Takaful	تكافل	Mutual risk-sharing (Islamic insurance); surplus returned	Pooled risk

Critical distinction: These are *fiqh* concepts, not enacted BARMM law. No BAA codifies any of these instruments. Art. X, Sec. 4 authorizes Parliament to legislate — but the legislation has not been enacted. Never present these instruments as positive law in a bill's legal basis section.[5]

How to legislate

A **Bangsamoro Islamic Finance Framework Act** should: 1. Establish the Shari'ah Supervisory Board (Art. XIII, Sec. 34 mandate) 2. Define Shari'ah-compliant financial products recognized in BARMM 3. Create tax neutrality provisions (Art. XIII, Sec. 32 mandate) — the double-transfer tax problem for *murabaha* and *ijarah* must be resolved 4. Coordinate with BSP supervision (Islamic banks remain under BSP, not BTA) 5. Regulate non-bank Islamic financial institutions (cooperatives, microfinance, *takaful*)

13.3 Islamic Finance for Cooperatives and Social Enterprises

BOL basis: Art. XIII, Sec. 24 (cooperative development — named legislative mandate, not a priority code); Art. X, Sec. 4.[6]

Cooperatives are where Islamic finance meets grassroots economic development. A fishing cooperative in Tawi-Tawi, an agricultural cooperative in Maguindanao del Sur, a women's livelihood cooperative in Lanao del Sur — these are the institutions where *mudarabah* and *musharakah* stop being textbook concepts and become working financial structures.

The dual compliance challenge

A Shari'ah-compliant cooperative in BARMM must satisfy two frameworks simultaneously:

RA 9520 Requirement	Shari'ah Alternative
Interest on share capital (Sec. 23)	*Mudarabah* profit distribution (profit from trade, not interest on money)
Savings/deposit operations (Sec. 60)	*Wadiah* (safekeeping) or *mudarabah* (profit-sharing) accounts
Loan/credit services (Sec. 61)	*Murabaha* (cost-plus sale) or *qard hasan* (benevolent loan)
Insurance (Sec. 34)	*Takaful* (mutual risk-sharing)
Investment of surplus (Sec. 86)	Shari'ah-compliant investment (no *riba*, *gharar*, *maysir*)

This is a **dual-track** model — cooperatives choose at registration whether to operate as conventional or Shari'ah-compliant. The choice is structural, not cosmetic. A Shari'ah-compliant cooperative cannot simply relabel interest as "profit" — the underlying transaction must be different.[7]

Shari'ah-compliant cooperative bylaws

Five requirements for a cooperative to be Shari'ah-compliant: 1. **No interest-based transactions** — all earnings from trade, shared investment, or service fees 2. **Transparent profit-sharing ratios** — defined in bylaws, not post-hoc 3. **Shari'ah-compliant in-**

vestment policy — no investment in prohibited sectors (alcohol, gambling, pork) 4. **Zakat provision** — cooperative may facilitate *zakat* collection on member profits (optional) 5. **Shari'ah advisory committee** — at minimum, one member with Islamic finance qualification to review transactions

Waqf and *zakat* as cooperative funding mechanisms

Waqf (perpetual endowment) can fund cooperative infrastructure. A donor endows land or capital; the cooperative uses the income in perpetuity. The endowment itself cannot be sold or distributed — only its returns.[8]

Zakat (obligatory alms) can be channeled through cooperatives to reach the eight recipient categories specified in Qur'an 9:60 — the poor, the needy, *zakat* administrators, those whose hearts are to be reconciled, freeing captives, debtors, in the cause of Allah, and wayfarers.[9]

Neither *waqf* nor *zakat* has dedicated BARMM legislation. A Bangsamoro Waqf Act and a Bangsamoro Zakat Act are among the highest-priority legislative gaps.

Worked example: Structuring a Shari'ah-compliant fishing cooperative

Scenario: Thirty fishermen in Maguindanao del Sur want to form a cooperative. They want Shari'ah-compliant operations.

1. **Capital structure** — *Musharakah*: each member contributes capital (cash, equipment, boats). Profits from collective fishing and processing are distributed according to capital contribution ratios. No interest.
2. **Equipment acquisition** — *Murabaha*: the cooperative buys a motorized boat from a supplier for P500,000, sells it to itself (as a legal entity) for P575,000 payable in 12 monthly installments. Cost and markup are disclosed. This is a sale, not a loan.
3. **Insurance** — *Takaful*: members contribute to a mutual fund. If a boat is damaged, the fund covers repair. Surplus is returned to members annually.
4. **Savings** — *Wadiah* (safekeeping) for liquid reserves. No interest earned on safekeeping.
5. **Bylaws** — register as Shari'ah-compliant with CDA/CSEA; include Shari'ah advisory committee; prohibit investment in non-compliant sectors.

13.4 Halal Economy and Regulatory Framework

BOL basis: Art. XIII, Sec. 30 — expressly mandates Parliament to "enact laws to further strengthen its policy and programs on halal development."[10] This is one of the few Art. XIII sections that explicitly uses the word "halal."

The Bangsamoro Halal Board

BAA 13 establishes the Bangsamoro Halal Board under MTIT (Book VI, Title XIV, Chapter 7).[11] Key features:

- **Chair:** MTIT Minister
- **Vice Chair:** MAFAR Minister
- **Members:** MOST, MOH, MOLE, MOTC, BDI Mufti, MSU representative, 2 Bangsamoro professionals[12]
- **Functions:** Formulate halal standards, conduct certification, regulate halal establishments, coordinate with national Halal Board (RA 10817)

Critical distinction: The Bangsamoro Halal Board is a *policy-making board*, not a full regulatory agency. A comprehensive Bangsamoro Halal Act would need to establish: detailed certification standards, enforcement mechanisms, penalties for false halal claims, laboratory testing requirements, and coordination protocols with the Philippine Halal Board.[13]

Halal beyond food

Halal extends to every product and service that Muslims consume: - **Pharmaceuticals** — gelatin capsules, alcohol-based solvents, animal-derived ingredients - **Cosmetics** — animal fats, alcohol content, testing methods - **Tourism** — halal-friendly hotels (prayer facilities, halal kitchen, no alcohol in minibar), halal tour packages - **Financial services** — Islamic banking products (covered in Sec. 13.2) - **Logistics** — halal supply chain integrity (segregation of halal and non-halal goods in transport)

BARMM's unique position

BARMM is the only region in the Philippines with: - A majority-Muslim population AND its own halal regulatory body - A BOL mandate for halal development (Art. XIII, Sec. 30) - Access to Islamic development finance (IsDB, OIC) - A domestic market and export potential to the global halal market (estimated at over $2 trillion)

How to legislate: A comprehensive Bangsamoro Halal Development Act should cover: standards (food, non-food, services), certification (Halal Board authority, accredited certifiers), enforcement (penalties for false claims, inspection powers), institutional coordination (Bangsamoro Halal Board and Philippine Halal Board under RA 10817), and market development (halal industrial zones within BEZA economic zones, halal tourism certification).[14]

13.5 Agriculture, Fishery, and Marine Resources

BOL basis: Art. V, Sec. 2(c) (agriculture); Art. XIII, Sec. 23 (fishery, consistency with RA 8550); Art. XIII, Sec. 30 (halal program).[15]

Agriculture: Three Shari'ah dimensions

1. Islamic land tenure. PD 1083 governs Muslim property relations, including inheritance (*mirath*) of agricultural land and *waqf* endowments. *Waqf* agricultural land is **inalienable** under Islamic law — it cannot be sold, gifted, or redistributed. This creates a direct tension with CARP (Comprehensive Agrarian Reform Program), which provides for compulsory acquisition and redistribution. A Bangsamoro Agrarian Reform Act must address this: either exempt *waqf* land entirely or create a special category that preserves the endowment while ensuring tenant protections.[16]

2. Agricultural finance. Conventional agricultural credit charges interest. Shari'ah alternatives include *salam* (advance payment for future harvest delivery) and *murabaha* (cost-plus sale for inputs). A Bangsamoro Agricultural Credit Act should offer both conventional and Shari'ah-compliant financing options.[17]

3. Halal production chain. From farm to market: livestock slaughter standards, food processing, packaging, transport, and retail. The Halal Board (BAA 13) coordinates with MAFAR on agricultural halal standards.

Fishery: Stewardship and halal

Fishery intersects with Shari'ah through: - ***Amanah*** (stewardship of marine resources) — the sea is a trust, not a commodity - **Prohibition of *israf*** (waste) — overfishing, destructive fishing methods, excessive bycatch - **Halal compliance** — post-harvest processing, storage, and transport must maintain halal integrity - ***Maslahah*** (food security) — fishing regulation serves the public good

A Bangsamoro Fisheries Code should incorporate stewardship language and halal post-harvest certification through the Halal Board.

13.6 Environment and the Khalifah Stewardship Framework

BOL basis: Art. XIII, Sec. 8 (protected areas — Parliament shall legislate); Sec. 9 (management transfer from DENR); Sec. 3 (comprehensive sustainable development framework).[18]

Environmental stewardship is among the most extensively addressed subjects in Islamic law and theology. The Qur'an establishes humans as *khalifah* (stewards/vicegerents) of the earth — a sacred trust (*amanah*), not ownership.[19]

Five Islamic environmental principles

Principle	Arabic	Application
Khalifah	خليفة	Humans are stewards, not owners, of natural resources
La darar wa la dirar	لا ضرر ولا ضرار	No harm and no reciprocal harm — one of five universal legal maxims
Hima	حمى	Protected reserves — the oldest documented protected area system (14 centuries)
Harim	حريم	Inviolable buffer zones around water sources, wells, and settlements
Ihya al-mawat	إحياء الموات	Reviving dead land — reforestation, land reclamation

How to legislate

Model: Integration, not separate track. Both secular environmental law and Shari'ah mandate protection. The chapter drafts should:

1. **Formally recognize *hima*** as a protected area category alongside NIPAS categories — providing a culturally resonant framework for community-managed conservation
2. **Incorporate *harim*** into watershed and buffer zone regulations — the Islamic precedent for protecting water sources predates modern environmental regulation by centuries
3. **Use *khalifah* stewardship language** in the preamble of any environmental BAA — this gives the law moral authority rooted in the region's dominant faith

4. **Establish community-managed protected areas** modeled on classical *hima* with *ulama* participation in management boards

A **Bangsamoro Protected Areas Act** is expressly mandated by Art. XIII, Sec. 8 but has not been enacted. This is a critical gap.[20]

13.7 Ancestral Domain and Land Administration

BOL basis: Art. V, Sec. 2(d) (ancestral domain); Art. XIII, Sec. 8-16 (natural resources); Art. IX, Sec. 3 (*fusaka inged* native titles).[21]

The Shari'ah dimension

Islamic property law intersects with ancestral domain through: - ***Ihya al-mawat*** (revival of dead land) — long-term cultivation can establish land rights, providing an Islamic basis for ancestral domain claims - ***Fusaka inged*** (native titles) — recognized in BOL Art. IX, Sec. 3(a) and BAA 64; the concept of inherent land rights predating colonial titles has parallels in Islamic property doctrine - **PD 1083 property provisions** — Muslim inheritance (*mirath*) and *waqf* provisions affect how land transfers between generations

Water resources

Inland waters (Art. V, Sec. 2(gg)) and inland waterways (Sec. 2(hh)) have Shari'ah dimensions through: - ***Harim*** — buffer zone protections for rivers and water sources - **Prohibition of *darar*** — no pollution or degradation of communal water - **Prohibition of *israf*** — no wasteful water extraction - ***Maslahah*** — water as a public good, not a private commodity

Land survey and classification

Cadastral land survey (Sec. 2(h)) and public land classification (Sec. 2(j)) have indirect Shari'ah dimensions: - **Mandatory native title screening** — before any cadastral survey, check for *fusaka inged* and Islamic customary tenure claims - **Community consultation** — land classification should recognize *hima* areas and respect customary allocation - **PD 1083 inheritance** — Muslim inheritance rules affect cadastral records; survey procedures must account for multiple heirs under Islamic succession law

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13.8 Trade, Tourism, and Economic Zones

BOL basis: Art. V, Sec. 2(zz) (trade/industry); Sec. 2(yy) (tourism); Sec. 2(e) (barter trade); Sec. 2(u) (economic zones); Art. XIII, Sec. 26 (barter trade); Art. XIII, Sec. 28 (economic zones); Art. XIII, Sec. 35 (tourism).[22]

Trade and industry

Islamic commercial law (*fiqh al-mu'amalat*) provides the framework for ethical trade. The classical concept of *hisbah* — market supervision to prevent fraud, ensure fair pricing, and enforce quality standards — is the Islamic equivalent of modern consumer protection and trade regulation.[23]

How to legislate: Principled integration. A Bangsamoro Trade and Industry Act should include: consumer protection grounded in *maslahah*, halal product standards (coordinated with the Halal Board), Shari'ah-compliant trade financing options, and *hisbah*-informed market supervision.

Tourism

Halal tourism is a growth sector. A halal-friendly tourism certification should cover: - **Accommodation** — prayer facilities, halal kitchen, no alcohol, separate swimming facilities - **Food services** — halal-certified restaurants, no pork - **Tour packages** — heritage tourism featuring Islamic historical sites (Sultanate ruins, old mosques, *kirim* manuscript collections) - **Pilgrimage tourism** — Hajj/Umrah travel services (coordinated with BPA)

Model: Voluntary. Halal tourism certification is a market differentiator, not a regulatory mandate. Establishments opt in.[24]

Barter trade

Art. XIII, Sec. 26 authorizes BARMM to regulate barter trade with ASEAN neighbors. The Islamic framework for barter is *bay' al-muqayadah* (exchange of goods for goods without money). The classic prohibition applies: no *gharar* (excessive uncertainty) and no exchange of identical commodities in unequal quantities (*riba al-fadl*).[25]

Economic zones

Art. XIII, Sec. 28 mandates BEZA (Bangsamoro Economic Zone Authority). Economic zones can include halal industrial parks — designated areas where all tenants must comply with halal production standards. This creates a concentrated halal manufacturing hub with export potential.[26]

13.9 Worked Example: Integrating Khalifah Principles into an Environmental Protection BAA

Scenario: The Committee on Environment asks you to review a proposed Bangsamoro Protected Areas Act. You need to assess Shari'ah integration opportunities.

Step 1: Shari'ah Checkpoint (Chapter 9) - Does the subject involve property law? **Yes** — protected areas restrict property use. - Does it involve natural resources? **Yes** — *khalifah* stewardship applies. - Does the bill affect non-Muslims? **Yes** — universal application. Shari'ah language should complement, not replace, secular environmental justifications.

Step 2: BOL basis - Art. XIII, Sec. 8 — Parliament shall establish protected areas - Art. X, Sec. 4 — property law authority

Step 3: PD 1083 check - Does PD 1083 cover environmental protection? **No.** No conflict possible.

Step 4: Shari'ah provisions to recommend - **Preamble:** Add *khalifah* stewardship language: "Recognizing that the Bangsamoro people are stewards (*khalifah*) of the natural resources entrusted to them..." - **Protected area categories:** Add *hima* as a culturally-recognized protected area category alongside NIPAS designations - **Buffer zones:** Reference *harim* principles for watershed protection areas - **Management boards:** Include *ulama* representative on community-managed protected area boards (following the BAA 60/61 precedent) - **Reforestation programs:** Frame as *ihya al-mawat* (reviving dead land)

Step 5: What NOT to do - Do not make Shari'ah compliance mandatory for environmental regulation — the *khalifah* framework enriches the law, it does not replace technical environmental standards - Do not restrict non-Muslim access to protected areas based on Islamic rationale - Do not present *hima* as a legal requirement — present it as a recognized category alongside existing frameworks

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13.10 Common Pitfalls

- **Presenting Islamic finance instruments as enacted BARMM law.** *Mudarabah*, *musharakah*, *murabaha*, *sukuk* — none are codified in any BAA. They are *fiqh* concepts that Art. X, Sec. 4 authorizes Parliament to enact. Until enacted, they are principles, not law.
- **Claiming the BOL does not mention halal.** It does. Art. XIII, Sec. 30 expressly mandates halal development legislation. This is one of the most common errors in policy documents.
- **Confusing the Bangsamoro Halal Board with the Philippine Halal Board.** The Bangsamoro Board (BAA 13) is a policy-making body. The Philippine Board (RA 10817) is the national regulatory framework. They must coordinate, not compete.
- **Treating the cooperative code as a priority code.** Art. XIII, Sec. 24 is a named legislative mandate, but it is NOT one of the 7 priority codes in Art. XVI, Sec. 4(a).
- **Ignoring the *waqf*-CARP conflict.** *Waqf* agricultural land is inalienable under Islamic law. CARP provides for compulsory redistribution. Any agrarian reform legislation must address this tension explicitly — either through exemption or a special category.
- **Applying *khalifah* stewardship as a regulatory mandate.** Environmental stewardship enriches legislation. It does not replace technical standards (EIA requirements, emission limits, conservation biology). Use it in preamble and policy declarations, not in operative provisions.

Quality Checklist

Before submitting any work product involving Art. XII-XIII economic powers:

- ☐ Have you distinguished between *fiqh* concepts and enacted BARMM law?
- ☐ If citing Islamic finance instruments, have you labeled them as *fiqh* concepts?
- ☐ Have you checked Art. XIII, Sec. 30 for the halal development mandate?
- ☐ If drafting cooperative legislation, have you offered a Shari'ah-compliant registration track?
- ☐ Have you addressed the *waqf*-CARP conflict for agricultural land?
- ☐ Have you coordinated Bangsamoro Halal Board with Philippine Halal Board (RA 10817)?
- ☐ If using *khalifah* language, is it in the preamble — not in operative provisions?
- ☐ Have you checked for tax neutrality requirements (Art. XIII, Sec. 32)?
- ☐ Have you verified BAA numbers against the enacted index?

Footnotes

1. *Hifz al-mal* (preservation of wealth/property) is one of the five objectives (*maqasid*) of Shari'ah. It encompasses both individual property rights and the public interest in productive economic activity. ↩
2. The prohibition of *riba* is established in multiple Qur'anic verses, including Surah Al-Baqarah (2):275-279. ↩
3. Rep. Act No. 11054, art. XIII, secs. 31-34. ↩
4. Rep. Act No. 11054, art. XIII, sec. 32 — directs Parliament to "enact laws that promote the growth of Islamic finance such as those that promote tax incentives and ensure tax neutrality of Islamic finance transactions in the Bangsamoro Autonomous Region." ↩
5. No BAA as of February 2026 codifies any Islamic finance instrument. Art. X, Sec. 4 authorizes Parliament to legislate, but the legislation has not been enacted. ↩
6. Rep. Act No. 11054, art. XIII, sec. 24. Note: The cooperative code is a named legislative mandate but is NOT one of the 7 priority codes in Art. XVI, Sec. 4(a). ↩
7. Rep. Act No. 9520 (Philippine Cooperative Code of 2008); Rep. Act No. 11054, art. X, sec. 4. ↩
8. *Waqf* is recognized in PD 1083, Arts. 104-112 (personal property). BOL Art. X, Sec. 4 authorizes Parliament to legislate on property matters, including institutional *waqf*. ↩
9. Qur'an, Surah At-Tawbah (9):60. ↩
10. Rep. Act No. 11054, art. XIII, sec. 30. ↩
11. BAA No. 13 (Bangsamoro Administrative Code), Book VI, Title XIV, Chapter 7. ↩
12. BAA No. 13, sec. 35 — Halal Board composition includes MTIT (Chair), MAFAR (Vice Chair), MOST, MOH, MOLE, MOTC, BDI Mufti, MSU representative, and 2 Bangsamoro professionals. ↩
13. Rep. Act No. 10817 (Philippine Halal Export Development and Promotion Act of 2016). ↩
14. PB No. 268 (Halal Consumers Act) and PB No. 164 (Halal Labeling) address partial aspects but no comprehensive Halal Development Act has been filed. ↩
15. Rep. Act No. 11054, art. V, sec. 2(c); art. XIII, sec. 23; art. XIII, sec. 30. ↩
16. Pres. Decree No. 1083, arts. 104-112 (*waqf* provisions); Rep. Act No. 6657 (Comprehensive Agrarian Reform Law of 1988). ↩
17. *Salam* (advance purchase contract) and *murabaha* (cost-plus sale) are recognized Islamic commercial instruments for agricultural financing across all four Sunni schools. ↩
18. Rep. Act No. 11054, art. XIII, secs. 3, 8-9. ↩
19. The concept of *khalifah* (stewardship) is established in Qur'an, Surah Al-Baqarah (2):30 — "I will create a vicegerent (*khalifah*) on earth." ↩
20. Rep. Act No. 11054, art. XIII, sec. 8 — "The Bangsamoro Parliament shall enact its own law on protected areas." ↩

21. Rep. Act No. 11054, art. V, sec. 2(d); art. XIII, secs. 8-16; art. IX, sec. 3. ↩
22. Rep. Act No. 11054, art. V, secs. 2(zz), 2(yy), 2(e), 2(u); art. XIII, secs. 26, 28, 35. ↩
23. *Hisbah* (market supervision) is a classical Islamic institution for ensuring fair trade, preventing fraud, and enforcing quality standards. It predates modern consumer protection agencies by centuries. ↩
24. Halal tourism certification as a voluntary market differentiator. No BAA or BOL provision mandates halal compliance for tourism establishments. ↩
25. *Bay' al-muqayadah* (exchange of goods for goods) is governed by the prohibition of *riba al-fadl* — commodities of the same type must be exchanged in equal quantities. ↩
26. Rep. Act No. 11054, art. XIII, sec. 28 — mandates creation of BEZA. No enabling act has been enacted. ↩

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14

Governance, Infrastructure, and Administration

Not every BOL power needs a Shari'ah compliance mechanism. Most governance and administrative powers — budgeting, civil service, public works, municipal creation, disaster risk reduction — are technical functions that operate the same way regardless of the region's religious composition.

But they operate in BARMM. A majority-Muslim region where the BOL commits the dispensation of justice to be "in consonance with Shari'ah."[1] The question is not *whether* Shari'ah applies to these powers — it is *how much* and *in what form*.

This chapter covers the remaining Art. V powers not addressed in Chapters 11-13. The answer, for most of them, is a three-tier integration model: values in the preamble, Shari'ah-compliant financing options where money flows, and mandatory protections only for *waqf* property.

14.1 The Three-Tier Integration Framework

Across the 20+ governance and administrative powers covered in this chapter, one model applies:

Tier 1: Principled Integration (the default)

For: Budgeting, civil service, administrative organization, municipal creation, DRR, business registration, development programs, people's organizations

What it means: Islamic governance values — *amanah* (trust), *maslahah* (public interest), *'adl* (justice), *shura* (consultation) — are embedded in preambles and policy declarations. No mandatory Shari'ah compliance structures. No separate certification bodies. Culture-sensitive accommodations (Ramadhan flextime, gender-appropriate settings, prayer space) are the practical expression.

Why it works: These are technical operations — engineering standards, registration procedures, territorial boundaries. The technical work stays secular. The governance ethos gets the Islamic dimension.

Tier 2: Optional Dual-Track (for financial powers)

For: Revenue sources, loans and credits, public works financing, GOCCs

What it means: Conventional instruments *and* Shari'ah-compliant alternatives exist side by side. The government or transacting party chooses. Shari'ah Advisory Boards certify compliance for the Islamic track. Neither track is mandatory.

Why it works: The *riba* prohibition is real for these powers. A bond issuance, a government loan, an infrastructure financing package — each can be structured as conventional or as *sukuk*, *murabaha*, or *ijarah*. Offering only conventional instruments excludes Islamic finance participation.

Tier 3: Mandatory Shari'ah Protection (for *waqf* property only)

For: Eminent domain (expropriation of *waqf* property)

What it means: *Waqf* is inalienable under Islamic law. Expropriation of *waqf* property requires heightened protections — compelling necessity test, replacement *waqf*, Darul-Ifta' consultation, and trust protection for proceeds. These are not optional.

Why it's different: Every other power in this chapter involves government operations where Shari'ah enriches but does not constrain. Eminent domain is the exception — the state's power to take property collides directly with Islamic endowment law.

14.2 Fiscal Powers: Budgeting, Revenue, and Public Finance

Budgeting

BOL basis: Art. V, Sec. 2(f); Art. XII (Fiscal Autonomy).[2]

Shari'ah dimension: Minimal — ethical framework.

The budget process is a technical operation: estimating revenue, allocating expenditures, monitoring execution. Shari'ah does not prescribe budget formats or appropriation procedures. But three Islamic principles inform budget policy:

- ***Amanah*** — public funds are a sacred trust. Budget officers are trustees, not owners.
- **Prohibition of *israf*** — no extravagance. Public spending should prioritize necessities (*daruriyyat*) over enhancements (*tahsiniyyat*).
- ***Maslahah*** — spending should serve the public good, not private interests.

How to legislate: Embed these principles in the Bangsamoro Budget System Act's (BAA 84) implementing rules — not as enforceable Shari'ah compliance requirements but as governance values that inform fiscal discipline.

Revenue sources

BOL basis: Art. V, Sec. 2(n); Art. XII, Sec. 7 (mandates "culture sensitive system of taxation").[3]

Shari'ah dimension: Significant — *zakat* integration opportunity.

Art. XII, Sec. 7's "culture sensitive" taxation mandate opens the door for the most significant Shari'ah-secular integration in public finance: recognizing *zakat* (obligatory Islamic alms) within the tax system.

Options for a Bangsamoro Revenue Code: 1. ***Zakat* as tax offset** — Muslims who pay verified *zakat* receive a credit against regional taxes (prevents double burden) 2. **Shari'ah-compliant penalty structures** — late payment penalties structured as fixed surcharges rather than compounding interest (*riba*) 3. ***Waqf* property recognition** — *waqf* properties should have a distinct tax classification (endowment exemption or reduced rate)

Loans and credits

BOL basis: Art. V, Sec. 2(ll); Art. XII, Sec. 24 (borrowing authority).[4]

Shari'ah dimension: Significant — *riba* prohibition applies.

Government borrowing through conventional bonds charges interest. Shari'ah-compliant alternatives exist:

Conventional	Shari'ah Alternative	Structure
Government bonds	*Sukuk*	Asset-backed certificates; returns from underlying asset
Bank loans	*Murabaha*	Cost-plus sale of assets needed by government
Lease financing	*Ijarah*	Lease agreement with purchase option

How to legislate: A Bangsamoro Borrowing and Debt Management Act should include an optional *sukuk* issuance framework alongside conventional bonds. The Shari'ah Supervisory Board (Art. XIII, Sec. 34) certifies which instruments qualify. Neither track is mandatory — the Treasury decides based on market conditions and cost.

14.3 Infrastructure and Public Works

BOL basis: Art. V, Sec. 2(qq) (public works).[5]

Shari'ah dimension: Moderate — financing only, not engineering.

Shari'ah does not prescribe road widths, bridge capacities, or building codes. The dimension is entirely about **how infrastructure is financed**:

- ***Istisna'*** — construction contracts with staged payments (Shari'ah-compliant alternative to interest-bearing construction loans)
- ***Sukuk*** — asset-backed infrastructure bonds
- ***Ijarah*** — lease-to-own for public facilities

What NOT to do: Do not apply Shari'ah review to engineering standards, building codes, or construction specifications. These are technical matters governed by national and international standards. The Shari'ah dimension is limited to financing mechanisms and governance values (*maslahah* for equitable geographic distribution, *amanah* for fund stewardship).

14.4 Administrative and Institutional Powers

Civil service

BOL basis: Art. V, Sec. 2(i); BAA 17 (Bangsamoro Civil Service Code).[6]

BAA 17 already includes the formulation that civil servants are "accountable to the people and to God" — an implicit Shari'ah-informed governance principle. Beyond this:

- **Ramadhan accommodation** — flexible work schedules during fasting month (already practiced, needs codification)
- **Pilgrimage leave** — BAA 82 provides 30 days for private sector; civil service equivalent should be standardized
- **Merit-based appointments** — *'adl* (justice) demands merit over nepotism (*wasta*)

Administrative organization

BOL basis: Art. V, Sec. 2(b); BAA 13 (Administrative Code).[7]

Shari'ah integration is already institutionalized through the Darul-Ifta' (BAA 13, Sec. 52-56) and BAGO's Shari'ah policy review function (BAA 13, Sec. 17(3)(d)). No additional Shari'ah compliance mechanism is needed for administrative organization — the existing institutional architecture is sufficient.

Municipal creation and GOCCs

Municipal creation (Art. V, Sec. 2(l)) has minimal Shari'ah dimensions. The plebiscite requirement already satisfies the *shura* (consultation) principle.[8]

GOCCs (Art. V, Sec. 2(m)) have a sector-specific dimension: financial-sector GOCCs (like AAIIBP, which is already Shari'ah-compliant) should have Shari'ah Advisory Boards per Art. XIII, Sec. 34. Non-financial GOCCs need only principled governance values.[9]

14.5 Eminent Domain and *Waqf* Property

BOL basis: Art. V, Sec. 2(w); Art. XII, Sec. 36 (just compensation); PD 1083, Arts. 104-112 (*waqf*).[10]

This is the only administrative power where **mandatory Shari'ah protections** are required.

Waqf (Islamic endowment) is property dedicated for charitable or religious purposes in perpetuity. Under Islamic law, *waqf* property **cannot be sold, gifted, inherited, or expropriated**. It is held in trust for the stated purpose forever.

The state's eminent domain power — the right to expropriate private property for public use — collides directly with this principle.

How to legislate

A Bangsamoro Eminent Domain Act must include a dedicated *waqf* chapter with:

1. **Heightened necessity test** — *waqf* property may only be expropriated when no reasonable alternative exists (ordinary public interest is insufficient)
2. **Replacement *waqf* requirement** — the government must establish a replacement endowment of equal or greater value serving the same charitable purpose
3. **Darul-Ifta' consultation** — mandatory before any *waqf* expropriation proceedings begin
4. **Proceeds protection** — if monetary compensation is paid instead of replacement property, the proceeds must be held in trust and used exclusively for the original *waqf* purpose
5. **Full, fair, and prompt compensation** — consistent with *'adl* (justice) and Art. XII, Sec. 36

This is not optional. A general eminent domain law that treats *waqf* property the same as ordinary private property would violate both Islamic endowment law and the BOL's Shari'ah legislative authority.

14.6 Community and Development Powers

Consultation mechanisms and people's organizations

BOL basis: Art. V, Secs. 2(mm) and 2(nn).[11]

Shura (consultation) is a direct Qur'anic governance mandate. BARMM consultation mechanisms have dual legitimacy — constitutional (BOL requires citizen participation) and Islamic (Surah Ash-Shura 42:38 — "and whose affair is determined by consultation among themselves").[12]

How to legislate: Reference *shura* as the governance foundation for consultation legislation. Ensure gender-appropriate participation modalities. Include *ulama* and *alimat* (female Islamic scholars) engagement — but ensure their advisory roles do not override women's direct participation rights.

People's organizations have a parallel in Islamic organizational forms — *waqf* foundations, *masjid* councils, *jama'ah* organizations. A Bangsamoro People's Organizations Act should recognize these Islamic organizational forms as legitimate PO categories without requiring Shari'ah certification for all POs.

Disaster risk reduction

BOL basis: Art. V, Sec. 2(s); Art. XIII, Sec. 7.[13]

Hifz al-nafs (preservation of life) is the highest of the five *maqasid al-Shari'ah*. Disaster response serves this objective directly. BAA 62 (IDP Act) already set the precedent for *maqasid*-based humanitarian legislation.

Practical accommodations: - Evacuation centers with prayer space and gender-segregated sleeping areas - Halal relief food packages - Mosque and Islamic institution coordination as first-responder hubs - *Zakat* and *sadaqah* as supplementary disaster funds (voluntary, not mandatory)

Development programs

BOL basis: Art. V, Sec. 2(r).[14]

Development programs intersect with Shari'ah primarily through gender-sensitive programming. PD 1083's personal status law affects women's rights in ways that may require navigation between Islamic family law and CEDAW commitments. The approach: culturally responsive programming (Islamic counseling options, gender-appropriate service delivery) that does not compromise international human rights standards.

14.7 Worked Example: Adding Shari'ah Provisions to a DRR BAA

Scenario: You are reviewing a proposed Bangsamoro DRRM Act. The bill is standard disaster management legislation. You need to assess Shari'ah integration opportunities.

Step 1: Shari'ah Checkpoint (Chapter 9) - Does the subject involve personal law? **No.** - Does it involve Islamic finance? **Possibly** — disaster funds, *zakat* mobilization. - Does it affect non-Muslims? **Yes** — universal application.

Step 2: Integration tier This is a **Tier 1 (principled integration)** power. No mandatory Shari'ah compliance.

Step 3: Provisions to recommend - **Preamble:** "Recognizing that the preservation of life (*hifz al-nafs*) is a paramount obligation under both the Constitution and Islamic law..." - **Sec. 12 (Supplementary Disaster Funds):** The BARMM DRRM Fund may accept *zakat* and *sadaqah* contributions for disaster response. Such funds shall be administered in accordance with their charitable intent. - **Sec. 18 (Evacuation Standards):** Evacuation centers shall provide: prayer space with *qiblah* direction, gender-segregated sleeping arrangements where culturally appropriate, and halal food options in relief packages. - **Sec. 25 (Community Coordination):** Mosques and Islamic institutions may be designated as community evacuation points and first-responder coordination hubs.

Step 4: What NOT to include - Do not mandate Shari'ah review of emergency engineering standards - Do not restrict disaster aid to Muslims only - Do not require *fatwa* for emergency response decisions (emergencies require speed, not advisory processes)

14.8 Common Pitfalls

- **Applying mandatory Shari'ah compliance to technical operations.** Engineering standards, cadastral surveys, building codes, registration procedures — these do not need Shari'ah review. The dimension is values and financing, not technical specifications.
- **Ignoring the *waqf* exception.** Eminent domain is the one administrative power where Shari'ah protections are mandatory. A general expropriation law without a *waqf* chapter is constitutionally deficient.
- **Confusing *shura* with veto power.** *Shura* is consultation, not consent. *Ulama* and community leaders advise; Parliament decides. Consultation mechanisms should not give any single group veto authority over legislation.
- **Treating *zakat* as a tax.** *Zakat* is a religious obligation, not a secular tax. It cannot be mandated by law for non-Muslims. The proper legislative approach is voluntary recognition — *zakat* as a tax offset or credit for Muslims who demonstrate compliance.
- **Omitting Shari'ah-compliant financing options from public finance legislation.** If a Bangsamoro borrowing law offers only interest-bearing bonds, it excludes Islamic finance participation in government debt markets. *Sukuk* must be an option.
- **Assuming all GOCCs need Shari'ah boards.** Only financial-sector GOCCs require Shari'ah Advisory Boards (per Art. XIII, Sec. 34). Non-financial GOCCs need good governance principles, not Islamic finance certification.

Quality Checklist

Before submitting any work product involving governance, infrastructure, or administrative powers:

- ☐ Have you identified the correct integration tier (principled, dual-track, or mandatory)?
- ☐ If the power involves public financing, have you included a Shari'ah-compliant alternative?
- ☐ If eminent domain applies, have you included *waqf* property protections?
- ☐ Have you used *amanah*, *maslahah*, *'adl*, and *shura* in policy declarations — not in operative provisions?
- ☐ If consultation mechanisms are involved, have you referenced *shura*?
- ☐ Have you confirmed that technical standards (engineering, survey, registration) are NOT subject to Shari'ah review?
- ☐ If *zakat* is referenced, is it voluntary and limited to Muslims?
- ☐ Have you checked Art. XII, Sec. 7 for the "culture sensitive taxation" mandate?

Footnotes

1. Rep. Act No. 11054, art. X, sec. 1. ↩
2. Rep. Act No. 11054, art. V, sec. 2(f); art. XII. BAA No. 84 (Bangsamoro Budget System Act of 2025). ↩
3. Rep. Act No. 11054, art. V, sec. 2(n); art. XII, sec. 7. ↩
4. Rep. Act No. 11054, art. V, sec. 2(ll); art. XII, sec. 24. ↩
5. Rep. Act No. 11054, art. V, sec. 2(qq). ↩
6. Rep. Act No. 11054, art. V, sec. 2(i); BAA No. 17 (Bangsamoro Civil Service Code). ↩
7. Rep. Act No. 11054, art. V, sec. 2(b); BAA No. 13 (Bangsamoro Administrative Code). ↩
8. Rep. Act No. 11054, art. V, sec. 2(l). Municipal creation requires plebiscite under BOL Art. VI, Sec. 10. ↩
9. Rep. Act No. 11054, art. V, sec. 2(m); art. XIII, sec. 34. Rep. Act No. 6848 (AAIIBP Charter). ↩
10. Rep. Act No. 11054, art. V, sec. 2(w); Pres. Decree No. 1083, arts. 104-112. The constitutional guarantee of just compensation is in 1987 Const., art. III, sec. 9. ↩
11. Rep. Act No. 11054, art. V, secs. 2(mm), 2(nn). ↩
12. Qur'an, Surah Ash-Shura (42):38. ↩
13. Rep. Act No. 11054, art. V, sec. 2(s); art. XIII, sec. 7. ↩
14. Rep. Act No. 11054, art. V, sec. 2(r). ↩

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Sector Directory: All 55 Powers Mapped

This chapter is a reference tool. It maps every one of the 55 BOL powers to its Shari'ah dimension so you can look up any power and immediately know: how strong is the Shari'ah connection, which principles apply, where in this guidebook it is covered, and whether the power needs standalone Shari'ah legislation or values-based mainstreaming.

Use this directory when you encounter a power not covered in depth in Chapters 11-14, or when you need a quick overview before starting research on any legislative subject.

15.1 The Shari'ah Integration Spectrum

Every BOL power falls somewhere on this spectrum:

Level	Meaning	Model	Example
Mandatory	Shari'ah compliance is definitional — the power *is* an Islamic function	Full Shari'ah review	Hajj, Islamic banking, Shari'ah courts
Strong	Enacted legislation already includes Shari'ah provisions	Follow enacted law	Labor (BAA 82), IDP protection (BAA 62)
Significant	BOL expressly mandates Shari'ah-informed legislation	Dual-track or direct mandate	Education (Madaris), halal, revenue (*zakat*)
Moderate	Shari'ah principles meaningfully inform policy design	Principled integration	Health, environment, cooperatives, housing
Minimal	Shari'ah values apply but no specific compliance needed	Values in preamble	Civil service, DRR, public works, business registration

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15.2 Complete Sector Directory

Part IV-A: Social Justice and Human Development (Art. IX) — Chapter 11

#	Power	BOL Ref.	Integration Level	Key Principles	Existing Law	Gap	Ch. Ref.
1	Health	Art. V, 2(bb)	**Moderate**	*Hifz al-nafs*, halal compliance, Islamic bioethics	BAA 13 Sec. 3(j)	No Health Act, no bioethics code	11.2
2	Education	Art. V, 2(v)	**Significant**	*Talab al-'ilm*, *hifz al-'aql*, *waqf*	BAA 18, BOL Art. IX Sec. 18	No Madaris Development Act	11.3
3	Labor	Art. V, 2(jj)	**Strong**	Islamic workplace practices (7 provisions)	BAA 82 Book III	IRR pending	11.4
4	Social Services	Art. V, 2(vv)	**Moderate**	*Kafala*, *zakat*, *hifz al-nasl*	PD 1083 Art. 70-72	No *kafala* law, no Zakat Act	11.5
5	Housing	Art. V, 2(cc)	**Moderate**	*Riba* prohibition, *murabaha*, *ijarah*	None	No Shari'ah housing finance	11.5
6	Human Rights	Art. V, 2(ee)	**Moderate**	*Maqasid* alignment, *'adl*, *sulh*	BAA 4, BAA 62, BAA 89	No anti-discrimination act	11.6
7	Humanitarian	Art. V, 2(dd)	**Moderate**	*Maqasid* (BAA 62 precedent), *zakat*	BAA 62	No DRRM enabling law	11.5

Part IV-B: Shari'ah Courts, Worship, and Identity (Art. X) — Chapter 12

#	Power	BOL Ref.	Integration Level	Key Principles	Existing Law	Gap	Ch. Ref.
8	Admin. of Justice	Art. V, 2(a)	**Mandatory**	*'Adl*, *sulh*, *ta'zir*, *shura*	PD 1083, BAA 5, BAA 13	No ADR, prosecution, academy	12.1
9	Hajj/ Umrah	Art. V, 2(aa)	**Mandatory**	Fifth Pillar, *istita'ah*, *qard hasan*	BAA 13 Sec. 43-45	No Pilgrimage Act	12.2
10	Culture/ Language	Art. V, 2(p)	**Significant**	*Hifz al-din*, *hifz al-nasl*, Arabic	BAA 20, BAA 39	No heritage code	12.3
11	Customary Laws	Art. V, 2(q)	**Significant**	*'Urf*, *sulh*, *maslahah*	PD 1083 Art. 3	No customary law codification	12.4
12	IP Rights	Art. V, 2(ff)	**Minimal**	*'Adl*, *amanah*, *maslahah*	BAA 64	NCIP-MIPA boundary	12.5
13	Libraries/ Museums	Art. V, 2(kk)	**Moderate**	*Hifz al-'aql*, *waqf*, *amanah*	BAA 60, 61 (heritage precedent)	No heritage code	12.3
14	Cultural Exchange	Art. V, 2(o)	**Minimal**	*Ta'aruf*, *maslahah*	None	No framework	12.3

Part IV-C: Economy, Finance, and Natural Resources (Art. XII-XIII) — Chapter 13

#	Power	BOL Ref.	Integration Level	Key Principles	Existing Law	Gap	Ch. Ref.
15	Islamic Banking	Art. XIII, 31-34	**Mandatory**	*Riba/gharar/ maysir* prohibition	RA 11439, RA 6848	No BARMM framework, no Supervisory Board	13.2

#	Power	BOL Ref.	Integration Level	Key Principles	Existing Law	Gap	Ch. Ref.
16	Cooperatives	Art. XIII, 24	**Moderate**	*Mudarabah*, *musharakah*, dual-track	RA 9520	No Bangsamoro Cooperative Code	13.3
17	Halal Development	Art. XIII, 30	**Significant**	Halal standards, *hisbah*	BAA 13 Halal Board	No Halal Development Act	13.4
18	Agriculture	Art. V, 2(c)	**Significant**	*Muzara'ah*, *waqf*-CARP, *salam*	PD 1083 property	No agriculture code	13.5
19	Fishery/ Marine	Art. V, 2(y)	**Moderate**	*Amanah*, *israf* prohibition, halal	BAA 59	No fisheries code	13.5
20	Environment	Art. V, 2(x)	**Moderate**	*Khalifah*, *hima*, *harim*, *la darar*	None	No Protected Areas Act	13.6
21	Ancestral Domain	Art. V, 2(d)	**Moderate**	*Ihya al-mawat*, *khalifah*	BAA 64	No mining code	13.7
22	Trade/ Industry	Art. V, 2(zz)	**Moderate**	*Hisbah*, halal, *maslahah*	None	No trade act	13.8
23	Tourism	Art. V, 2(yy)	**Moderate**	Halal tourism (voluntary)	None	No tourism act	13.8
24	Economic Zones	Art. V, 2(u)	**Moderate**	Halal industrial zones	None	No BEZA enabling act	13.8
25	Barter Trade	Art. V, 2(e)	**Minimal**	*Bay' al-muqayadah*, *gharar*	None	No barter trade act	13.8
26	Grants/ Donations	Art. V, 2(z)	**Moderate**	*Sadaqah*, *waqf*, *amanah*	PD 1083 Art. 104-112	No grants framework	13.2
27	Inland Waters	Art. V, 2(gg)	**Minimal**	*Harim*, *israf*, *darar*	None	No inland waters code	13.7

#	Power	BOL Ref.	Integration Level	Key Principles	Existing Law	Gap	Ch. Ref.
28	Inland Waterways	Art. V, 2(hh)	**Minimal**	*Amanah*, *maslahah*	None	No waterways code	13.7
29	Cadastral Survey	Art. V, 2(h)	**Minimal**	*Fusaka inged*, *ihya al-mawat*	None	No survey act	13.7
30	Land Classification	Art. V, 2(j)	**Minimal**	*Hima* recognition, *maslahah*	None	No classification framework	13.7

Part IV-D: Governance, Infrastructure, and Administration (Art. V) — Chapter 14

#	Power	BOL Ref.	Integration Level	Key Principles	Existing Law	Gap	Ch. Ref.
31	Budgeting	Art. V, 2(f)	**Minimal**	*Amanah*, *israf*, *maslahah*	BAA 84, BAA 85	—	14.2
32	Revenue Sources	Art. V, 2(n)	**Significant**	*Zakat* integration, *riba* prohibition	Art. XII, Sec. 7	No Revenue Code	14.2
33	Loans/ Credits	Art. V, 2(ll)	**Significant**	*Sukuk*, *riba* prohibition	Art. XII, Sec. 24	No *sukuk* framework	14.2
34	Public Works	Art. V, 2(qq)	**Moderate**	*Istisna'*, *sukuk* (financing only)	None	No infrastructure finance act	14.3
35	Civil Service	Art. V, 2(i)	**Minimal**	*Amanah*, *'adl*, *shura*	BAA 17	Ramadhan accommodation	14.4
36	Admin. Org.	Art. V, 2(b)	**Minimal**	*Amanah*, *shura*	BAA 13 (Darul-Ifta')	—	14.4
37	Municipalities	Art. V, 2(l)	**Minimal**	*Shura* (plebiscite), *maslahah*	BAAs 41-48, 53-55	—	14.4
38	GOCCs	Art. V, 2(m)	**Moderate**	*Riba* (financial GOCCs), *amanah*	RA 6848 (AAIIBP)	Advisory Board needed	14.4

#	Power	BOL Ref.	Integration Level	Key Principles	Existing Law	Gap	Ch. Ref.
39	Eminent Domain	Art. V, 2(w)	**Mandatory** (*waqf*)	*Waqf* inalienability, *'adl*	PD 1083 Art. 104-112	No *waqf* expropriation rules	14.5
40	Consultation	Art. V, 2(mm)	**Significant**	*Shura* (Qur'anic mandate)	None	No consultation act	14.6
41	People's Orgs	Art. V, 2(nn)	**Moderate**	*Shura*, *hisbah*, Islamic PO forms	None	No PO act	14.6
42	DRR	Art. V, 2(s)	**Minimal**	*Hifz al-nafs*, *maslahah*	BAA 62 (IDP precedent)	No DRRM enabling law	14.6
43	Dev. Programs	Art. V, 2(r)	**Moderate**	*Maslahah*, *'adl*, PD 1083 intersection	None	—	14.6
44	Business Reg.	Art. V, 2(g)	**Minimal**	*Halal* designation, *maslahah*	None	—	14.4
45	Science/Tech	Art. V, 2(uu)	**Minimal**	*Maslahah*, *hifz al-'aql*	None	—	—
46	Sports/ Recreation	Art. V, 2(ww)	**Minimal**	*Maslahah*, gender accommodation	BAA 12	—	—
47	Technical Coop.	Art. V, 2(xx)	**Minimal**	*Ta'aruf*, *maslahah*	None	—	—
48	Urban/Rural Plan.	Art. V, 2(aaa)	**Minimal**	*Maslahah*, mosque siting	None	—	—
49	Urban Land Reform	Art. V, 2(bbb)	**Minimal**	*Waqf* exemption, *'adl*	None	—	—
50	Water Supply	Art. V, 2(ccc)	**Minimal**	*Harim*, *maslahah*	None	—	—
51	Power Sector	Art. V, 2(oo)	**Minimal**	*Maslahah*, *amanah*	None	—	—
52	Public Utilities	Art. V, 2(pp)	**Minimal**	*Maslahah*, *amanah*	None	—	—

#	Power	BOL Ref.	Integration Level	Key Principles	Existing Law	Gap	Ch. Ref.
53	Solid Waste	Art. V, 2(t)	**Minimal**	*Khalifah*, *la darar*	None	—	—
54	Quarantine	Art. V, 2(rr)	**Minimal**	*Hifz al-nafs*, *maslahah*	None	—	—

15.3 Cross-Reference: Maqasid to Powers

Maqsad	Meaning	Powers Served
Hifz al-din (faith)	Preservation of religion	Hajj, Justice, Culture, Customary Laws, Education (Madaris)
Hifz al-nafs (life)	Preservation of life	Health, DRR, Humanitarian, Social Services, Quarantine
Hifz al-'aql (intellect)	Preservation of intellect	Education, Libraries/Museums, Science/Technology
Hifz al-nasl (lineage)	Preservation of family/lineage	Social Services (*kafala*), Culture (identity), Housing
Hifz al-mal (property)	Preservation of wealth	Islamic Banking, Cooperatives, Trade, Agriculture, Housing, Eminent Domain, Revenue

15.4 Legislative Priority Matrix

Powers are ranked by: (1) whether the BOL expressly mandates Shari'ah-informed legislation, (2) whether a legislative gap exists, and (3) the impact on BARMM's majority-Muslim population.

Critical Priority (BOL express mandate + no legislation)

Power	BOL Mandate	Gap
Islamic Banking Framework	Art. XIII, Sec. 32, 34	No framework act, no Supervisory Board
Halal Development	Art. XIII, Sec. 30	No Halal Development Act
Protected Areas	Art. XIII, Sec. 8	No Protected Areas Act
Traditional Justice	Art. X, Sec. 17	No Traditional Justice Act
ADR for Shari'ah Courts	Art. X, Sec. 20	No ADR legislation

High Priority (Strong Shari'ah dimension + no legislation)

Power	Gap
Bangsamoro Cooperative Code	Art. XIII, Sec. 24 mandate
Housing Finance (Shari'ah track)	No *murabaha/ijarah* framework
Bangsamoro Revenue Code (*zakat* integration)	Art. XII, Sec. 7 "culture sensitive" mandate
Sukuk Framework	No Islamic bond issuance law
Madaris Development Act	BOL Art. IX, Sec. 18 mandate
Bangsamoro Waqf Act	No *waqf* management framework
Bangsamoro Zakat Act	No *zakat* collection/distribution framework

Medium Priority (Moderate dimension + no legislation)

Power	Gap
Fisheries Code (halal certification)	No comprehensive fisheries legislation
Tourism Act (halal certification)	No tourism development act
Agriculture Code (*waqf*-CARP, *salam* credit)	No comprehensive agriculture legislation
Cultural Heritage Code	No heritage framework (PB 204 pending)
Customary Law Codification	No *adat* documentation/recognition framework

Footnotes

1. Rep. Act No. 11054, art. V, sec. 2 (55 enumerated areas of governance authority). ↩

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The Practitioner's Toolkit

This chapter provides the detachable tools you need on the job. Print the ones relevant to your work and keep them at your desk. Each tool is designed to be used independently — you do not need to read the preceding chapters to use a checklist, though the chapters provide the reasoning behind each item.

16.1 Shari'ah Checkpoint Checklist

Use this when screening any bill, policy, or program for Shari'ah dimensions.

Does the subject involve any of the following?

- ☐ Personal law for Muslims (marriage, divorce, inheritance, custody, guardianship)
- ☐ Property relations between Muslims
- ☐ Minor criminal offenses under Shari'ah court jurisdiction (*ta'zir*)
- ☐ Islamic finance (cooperative bylaws, banking, investment, insurance)
- ☐ Halal certification or regulation
- ☐ *Waqf* (endowment) or *zakat* (alms)
- ☐ Islamic education or *madaris*
- ☐ The BDI or religious authorities
- ☐ Any reference to "Shari'ah," "Islamic law," or "Muslim personal law"

If YES to any: Proceed with the full compliance review (Chapter 9, Sec. 9.2).

If NO to all: Document "No Shari'ah dimension identified" and proceed with the standard process.

16.2 Jurisdictional Determination Worksheet

Use this when determining which Shari'ah court has jurisdiction over a case.

Step 1: Party Check - Are all parties Muslim? ☐ Yes ☐ No - If non-Muslim party: Has voluntary submission been confirmed? ☐ Yes ☐ No ☐ N/A

Step 2: Subject Matter - ☐ Marriage/divorce/mahr/property upon divorce → **Circuit Court** (Art. X, Sec. 5) - ☐ Custody/guardianship/legitimacy/paternity → **District Court** (Art. X, Sec. 6) - ☐ Estate settlement → **District Court** (Art. X, Sec. 6) - ☐ Communal property → **Circuit Court** (Art. X, Sec. 5) - ☐ *Ta'zir* (*arresto menor*) → **Circuit Court** (Art. X, Sec. 5) - ☐ Shari'ah-compliant contracts → **District Court** (Art. X, Sec. 6)

Step 3: Monetary Threshold (civil cases) - Real property assessed value: - ☐ ≤ P400,000 → **Circuit Court** - ☐ > P400,000 → **District Court** - Other civil claim: - ☐ ≤ P200,000 → **Circuit Court** - ☐ > P200,000 → **District Court**

Step 4: Appellate Pathway Circuit Court → District Court → High Court → Supreme Court (questions of law only)

Note: Verify Shari'ah High Court operational status before planning appellate strategy.

16.3 Shari'ah Compliance Flags Template

Use this when reviewing a draft bill for Shari'ah implications.

#	Section	Shari'ah Dimension	Enacted Law Reference	Action Required
1				
2				
3				

Muslim Exclusivity Check: - Does the bill apply Shari'ah obligations to non-Muslims? ☐ Yes ☐ No - If Yes: Does it include voluntary submission provision? ☐ Yes ☐ No — **Must fix**

PD 1083 Conflict Check: - Does the bill address a subject covered by PD 1083? ☐ Yes ☐ No - If Yes: Does the bill supplement (not conflict with) PD 1083? ☐ Yes ☐ No — **Must fix**

BDI Consultation Needed? ☐ Yes ☐ No

16.4 Islamic Finance Instrument Quick Reference

Instrument	Arabic	How It Works	Status in BARMM
Mudarabah	مضاربة	One party provides capital, other provides labor. Profits shared by ratio; losses borne by capital provider.	*Fiqh* concept — no BAA. Art. X, Sec. 4 authorizes.
Musharakah	مشاركة	All parties contribute capital and management. Profits shared per agreement; losses per capital ratio.	*Fiqh* concept — no BAA. Art. X, Sec. 4 authorizes.
Murabaha	مرابحة	Seller discloses cost, adds agreed markup. Buyer knows exact cost and profit. Sale, not loan.	*Fiqh* concept — no BAA. Art. X, Sec. 4 authorizes.
Waqf	وقف	Property dedicated for charitable/ religious purposes in perpetuity. Cannot be sold, gifted, or inherited.	*Fiqh* concept — no dedicated BAA. Art. X, Sec. 4 authorizes.
Zakat	زكاة	Obligatory alms — percentage of qualifying wealth. One of the Five Pillars. 8 recipient categories (Qur'an 9:60).	Not in PD 1083. No BAA. Art. X, Sec. 4 authorizes.
Sukuk	صكوك	Islamic bonds — asset-backed certificates. Returns from underlying asset, not interest.	No BAA. Art. XII, Sec. 24 authorizes borrowing.
Takaful	تكافل	Islamic insurance — mutual risk-sharing. Contributions pooled; surplus returned to participants.	No BAA. Art. X, Sec. 4 authorizes.

16.5 PD 1083 Subject Index

Subject	Book	Articles	Key Provisions
Marriage requirements	Two	13-16	Requisites, capacity, consent, solemnization
Marriage effects	Two	27-44	Property, support, obligations
Mahr (dower)	Two	20-21	Specification and payment of dower
Divorce	Two	45-54	*Talaq*, *khul'*, *faskh*, *li'an*
'Iddah and legitimacy	Two	55-61	Waiting periods, divorce effects, legitimacy
Parental authority	Two	62-83	Legitimacy, support, guardianship
Muslim Registry	Two	84-88	Registration of acts and events
Succession	Three	89-136	Heirs, shares, exclusion, debts
Court jurisdiction	Four	137-156	Shari'ah court powers
Agama arbitration	Four	157-163	Family dispute mediation
Jurisconsult	Four	164-168	Islamic legal opinion office
Applicability	Five	169-190	Scope, transition, effectivity

16.6 BOL Art. X Section-by-Section Quick Reference

Sec.	Title	One-Line Summary
1	Justice System	Shari'ah applies exclusively to Muslims; voluntary submission for non-Muslims
2	Shari'ah Courts	Part of Philippine judicial system under SC supervision
3	Sources of Shari'ah	Qur'an, Sunnah (principal); Ijma', Qiyas (secondary)
4	Parliament's Power	Personal/family/property law; commercial not in PD 1083; *ta'zir*
5	Circuit Courts	Marriage, divorce, mahr, communal property, ta'zir, civil ≤ P400K/P200K
6	District Courts	Custody, estate, contracts, civil > P400K/P200K, appellate over Circuit
7	High Court	Annulment of District judgments, appellate over District, final except questions of law to SC
8	Judge Qualifications	Requirements for Shari'ah judges
9	High Court Composition	Five Justices including Presiding Justice
10	Compensation	Same rank/privileges as Court of Appeals Justices
11	Rules of Court	Existing rules continue until SC promulgates new ones
12	Bar Examinations	SC administers Shari'ah special bar exam
13	Practice of Law	Who may practice before Shari'ah courts
14	Court Personnel	SC appoints and disciplines
15	Integrated Bar	SC may integrate the Shari'ah Bar
16	New Offices	Parliament may create: public assistance office, prosecution service, academy, Jurisconsult
17	Traditional Justice	Parliament promotes traditional/tribal justice for IPs
18	Tribal Justice Office	Created to oversee tribal justice preservation and development

Sec.	Title	One-Line Summary
19	Regular Courts	Continue to function under national law
20	ADR	Parliament legislates conciliation/mediation; Shari'ah courts may use ADR

16.7 Kutub al-Sittah Quick Reference

#	Collection	Compiler	Books	Digital Source	Authority
1	Sahih al-Bukhari	Imam al-Bukhari (d. 870 CE)	97	sunnah.com	Highest
2	Sahih Muslim	Imam Muslim (d. 875 CE)	57	sunnah.com	Second
3	Sunan Abu Dawud	Imam Abu Dawud (d. 889 CE)	43	sunnah.com	Strong on *ahkam*
4	Jami' at-Tirmidhi	Imam at-Tirmidhi (d. 892 CE)	49	sunnah.com	Includes grading
5	Sunan an-Nasa'i	Imam an-Nasa'i (d. 915 CE)	51	sunnah.com	Detailed
6	Sunan Ibn Majah	Imam Ibn Majah (d. 887 CE)	38	sunnah.com	Broadest

Search order: Bukhari → Muslim → Abu Dawud → Tirmidhi → Nasa'i → Ibn Majah

Muttafaq 'alayh: A hadith in both Bukhari AND Muslim carries the highest authority.

16.8 Qur'an and Hadith Citation Format Quick Reference

Qur'an Format

```
[n] Qur'an, Surah [Name] ([Number]):[Ayah].
    Arabic: "[exact Arabic text]".
    Translation: "[English translation]".
```

Example:

```
1 Qur'an, Surah Al-Baqarah (2):282.
  Arabic: "يَا أَيُّهَا الَّذِينَ آمَنُوا إِذَا تَدَايَنتُم بِدَيْنٍ إِلَىٰ أَجَلٍ مُّسَمًّى فَاكْتُبُوهُ".
  Translation: "O you who believe, when you contract a debt for a specified
term, write it down."
```

Hadith Format

```
[n] [Collection Name], Book [Number], Hadith [Number].
    "[Arabic text]".
    Translation: "[English translation]".
```

Rule: General principle in legislative text. Exact source in footnote. Never inline scriptural text in operative provisions.

16.9 When to Refer to BDI (Decision Tree)

1. **Is the question answered by enacted law (BOL, PD 1083, BAA)?**
2. Yes → Proceed with legal analysis. No BDI referral needed.
3. No → Continue to question 2.
4. **Is the *fiqh* position well-established and uncontested?**
5. Yes → Proceed with analysis, citing the established position.
6. No → Continue to question 3.
7. **Do the *madhahib* disagree on this point?**
8. No → Proceed with the consensus position.
9. Yes → Continue to question 4.
10. **Does the disagreement materially affect the legal outcome?**
11. No → Present both positions, proceed with analysis.
12. Yes → **Refer to BDI.** Frame the referral with: the specific question, the enacted law context, the scriptural evidence, the *madhhab* positions, and why a ruling is needed.
13. **Does the output create binding policy affecting Muslim religious practice?**
14. Yes → **Refer to BDI** regardless of scholarly consensus.
15. No → Proceed with analysis.

16.10 AI in Practice: AI-Assisted Shari'ah Legal Analysis

Artificial intelligence tools can assist with Shari'ah legal research and analysis. When used properly, they accelerate the research process — searching scriptural sources by keyword, cross-referencing Hadith across collections, identifying relevant enacted law provisions, and structuring legal opinions.

What AI can do well: - Search large text collections (Qur'an, 6 Hadith collections, BOL, PD 1083, 89 BAAs) by keyword - Cross-reference narrations across Hadith collections to identify *muttafaq 'alayh* status - Structure legal analysis using IRAC methodology - Format citations per the Feliciano protocol with Bangsamoro extensions - Identify potential constitutional issues in draft legislation

What AI cannot do: - Issue *fatawa* — binding religious rulings are the BDI's institutional mandate - Determine the "correct" *madhhab* position when scholars disagree - Replace human judgment on matters of religious practice - Guarantee accuracy of scriptural citations — every AI-generated citation must be verified against the source text

The verification rule: Every Qur'anic verse and Hadith citation produced by AI must be verified against the source text before inclusion in any official document. AI tools can fabricate plausible-sounding but incorrect citations. The practitioner is responsible for verification.

Building your source library: Chapter 6 teaches you how to build a searchable Islamic source library using publicly available digital sources. This library serves as the verification baseline for AI-generated citations and as the primary research tool for manual analysis.

This chapter's tools are designed to be photocopied or printed separately. Each section stands alone as a reference sheet for daily use.

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'Aqidah — Islamic creed; the foundational beliefs of Islam (oneness of God, prophethood, afterlife). Matters of *'aqidah* are outside the scope of legislative analysis.

***Agama* Arbitration Council** — A mediation body established under PD 1083 (Art. 157-163) to settle family disputes before they reach Shari'ah courts.

Arresto Menor — A penalty under Philippine law for minor offenses, with imprisonment of one day to thirty days. BOL Art. X, Sec. 4 limits Parliament's *ta'zir* criminal jurisdiction to offenses equivalent to *arresto menor*.

BAA — Bangsamoro Autonomy Act. Regional legislation enacted by the Bangsamoro Parliament. As of February 2026, 89 BAAs have been enacted.

BARMM — Bangsamoro Autonomous Region in Muslim Mindanao. Established by the Bangsamoro Organic Law (RA 11054), ratified by plebiscite in January-February 2019.

BDI — Bangsamoro Darul-Ifta. The consultative body for policy-making through Islamic jurisprudence in BARMM. Established under BAA 13, Book III, Title III, Chapter 1, Section G, Secs. 52-56. Headed by the Bangsamoro Mufti.

BOL — Bangsamoro Organic Law. Republic Act No. 11054, signed July 27, 2018. The foundational law establishing BARMM.

BTA — Bangsamoro Transition Authority. The interim government of BARMM pending elections.

Dalil — Evidence or proof. In Islamic jurisprudence, the scriptural or rational basis for a legal ruling.

Daruriyyat — Necessities. The highest level of the Maqasid hierarchy — what is essential for survival and social order.

Faskh — Judicial dissolution of marriage. One of the forms of divorce recognized under PD 1083 (Art. 47-54).

Fatwa (pl. *fatawa*) — A binding religious ruling issued by a qualified Islamic legal scholar (*mufti*) in response to a specific question. In BARMM, the BDI is the institutional authority for issuing *fatawa*.

Fiqh — Islamic jurisprudence. The human understanding and application of Shari'ah, developed through centuries of scholarly tradition. Distinct from Shari'ah itself (divine law).

Hajiyyat — Needs. The second level of the Maqasid hierarchy — what removes hardship and facilitates life.

Hifz al-'Aql — Protection of intellect. One of the five Maqasid objectives.

Hifz al-Din — Protection of faith. One of the five Maqasid objectives.

Hifz al-Mal — Protection of property. One of the five Maqasid objectives.

Hifz al-Nafs — Protection of life. One of the five Maqasid objectives.

Hifz al-Nasl — Protection of lineage. One of the five Maqasid objectives.

'Iddah — The waiting period following divorce or the death of a husband, during which a woman may not remarry. Governed by PD 1083, Art. 55-57.

Ijma' — Scholarly consensus. One of the four sources of Shari'ah recognized by BOL Art. X, Sec. 3.

Ikhtilaf — Scholarly disagreement. When the schools of jurisprudence hold different positions on a legal question.

Istidlal — Legal reasoning or argumentation. The process of deriving legal rulings from scriptural and rational evidence.

Khalifah — Stewardship. The concept that humans are trustees of God's creation, with responsibility for its preservation and just management.

Khul' — Divorce initiated by the wife, typically involving return of the *mahr* (dower). Recognized under PD 1083 (Art. 46).

Kutub al-Sittah — The Six Books. The six most authoritative Hadith collections in Sunni Islam: Sahih al-Bukhari, Sahih Muslim, Sunan Abu Dawud, Jami' at-Tirmidhi, Sunan an-Nasa'i, and Sunan Ibn Majah.

Li'an — Mutual imprecation. A form of divorce involving sworn accusations of adultery between spouses. Recognized under PD 1083.

Madhhab (pl. *madhahib*) — School of Islamic jurisprudence. The four Sunni schools are Hanafi, Maliki, Shafi'i, and Hanbali. PD 1083 predominantly reflects Hanafi and Shafi'i traditions.

Mahr — Dower. A mandatory gift from the groom to the bride in a Muslim marriage. Governed by PD 1083, Art. 55-61.

Maqasid al-Shari'ah — The higher objectives or purposes of Islamic law. Five objectives: protection of faith, life, intellect, lineage, and property. A scholarly framework, not enacted law.

Mudarabah — Profit-sharing partnership. One party provides capital, the other provides labor. A *fiqh* concept not yet codified by any BARMM BAA.

Mufti — A qualified Islamic legal scholar authorized to issue *fatawa*. The Bangsamoro Mufti heads the BDI.

Murabaha — Cost-plus financing. The seller discloses cost and adds an agreed markup. A *fiqh* concept not yet codified by any BARMM BAA.

Musharakah — Joint venture. All parties contribute capital and share management, profits, and losses. A *fiqh* concept not yet codified by any BARMM BAA.

Muttafaq 'Alayh — Agreed upon. A Hadith narration found in both Sahih al-Bukhari and Sahih Muslim, carrying the highest Hadith authority.

Nawazil — Novel circumstances. New situations not directly addressed by classical Islamic scholarship, requiring fresh juristic reasoning.

PD 1083 — Presidential Decree No. 1083, the Code of Muslim Personal Laws of the Philippines. Signed February 4, 1977. Contains 190 articles across 5 Books governing Muslim personal, family, and property law.

Qiyas — Analogical reasoning. One of the four sources of Shari'ah recognized by BOL Art. X, Sec. 3.

Riba — Interest or usury. Prohibited in Islamic finance. The prohibition is grounded in Qur'anic verses (notably Surah Al-Baqarah 2:275) and Hadith narrations.

Sadaqah — Voluntary charity, as distinguished from *zakat* (obligatory charity).

Sukuk — Islamic bonds. Asset-backed certificates that provide returns based on an underlying asset rather than interest payments. A *fiqh* concept; no BARMM BAA codifies it.

Sunnah — The traditions, sayings, and practices of Prophet Muhammad (SAW). One of the two principal sources of Shari'ah recognized by BOL Art. X, Sec. 3. Preserved in Hadith collections.

Tabarru' — Charitable donation. Used in Islamic social finance. Referenced in PB 379.

Tahsiniyyat — Enhancements. The third level of the Maqasid hierarchy — what improves quality of life.

Takaful — Islamic insurance. Mutual risk-sharing arrangement among participants. A *fiqh* concept not yet codified by any BARMM BAA.

Talaq — Divorce initiated by the husband. Recognized under PD 1083 (Art. 45).

Ta'zir — Discretionary punishment for offenses not specified in the Qur'an or Sunnah. Under BOL Art. X, Sec. 4, Parliament's criminal jurisdiction is limited to *ta'zir* equivalent to *arresto menor*.

'Ulama (sing. *'alim*) — Islamic scholars. Those with formal training in Islamic sciences and jurisprudence.

Waqf — Islamic endowment. Property dedicated for charitable or religious purposes in perpetuity. PD 1083 includes basic property provisions; no comprehensive BARMM BAA exists.

Zakat — Obligatory alms. One of the Five Pillars of Islam, calculated as a percentage of qualifying wealth. Distributed to eight categories of recipients specified in the Qur'an (Surah At-Tawbah 9:60). No BARMM BAA codifies zakat administration.

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Appendix F: AI Declaration

This guidebook was produced with AI assistance (Claude Code, Anthropic). AI was used for Shari'ah legal research — searching the Qur'an, the complete Kutub al-Sittah, BOL Article X, PD 1083, and 89 enacted BAAs by keyword — as well as cross-referencing, first-draft generation from verified fact sheets, fact-checking, citation formatting per the Philippine Manual of Legal Citations (Feliciano, 10th Ed., 2019) with Bangsamoro extensions for Islamic jurisprudence, and PDF generation.

AI did not design the guidebook's structure, methodology, or recommendations. The five-part architecture, the legislative strategy analysis, the Shari'ah checkpoint process, the IRAC methodology adaptation for Islamic sources, and every substantive recommendation come from the author's direct experience in Bangsamoro governance. AI did not interpret Shari'ah or issue religious opinions. The institutional boundary — that legal analysis is the practitioner's work while binding religious rulings are the BDI's mandate — is a principle the author established.

Every Qur'anic verse was verified against the Sahih International translation. Every Hadith citation was verified against the relevant collection in the Kutub al-Sittah. Every BOL and PD 1083 provision was verified against verbatim transcriptions of the enacted law. Every BAA reference was verified against the Bangsamoro legislative archive. The author bears full responsibility for the accuracy and completeness of the published content.

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